Title 17 - STREETS AND SIDEWALKS

Footnotes:

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Charter reference— *Authority of council to acquire property for public streets, Ch. 4, § 15; local improvements and assessments therefor, Ch. 10.*

Cross reference— *Public works development department, § 12.280; duties of city engineer relative to streets and sidewalks, Ch. 22; unattended animals on streets, § 74.10; building code, Title 5; fees Ch. 91; sale of food on streets, § 186.40; courtesy benches on streets, § 283.10 et seq.; location of filling stations or bulk oil plants on or under streets or sidewalks, § 287.80; sale of vehicle lubricants on streets, § 315.90; street photographers, Ch. 335; sale or consumption of liquor on streets, § 364.40; sale or consumption of beer on streets, § 368.40; construction and maintenance of grade crossings by railroads, § 397.30; planning and development, Title 16; traffic, Title 18; zoning, Title 20; trees on streets and parkways, § PB10-1 et seq.*

Special law references—Special act authorizing payment of costs for maintenance of streets and street lighting from general revenues of the city, Laws 1973, Ch. 393, as amended by Laws 1974, Ch. 153; special act relative to authority of city to lease streets and sidewalks not used by public, Laws 1951, Ch. 596; special act relative to establishment of special service district for street-related services, Laws 1985, Ch. 302.

CHAPTER 427. - IN GENERAL

ARTICLE I. - GENERALLY

Footnotes:

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Editor's note— *Ord. No. 2017-018, § 1, adopted Apr. 28, 2017, amended Ch. 427 with the addition of Art. I, Generally, to precede §§ 427.10—427.310.*

427.10. - Boulevards.

(a) *Purpose.* It is the purpose and intent of the City of Minneapolis that boulevards be constructed and maintained to enhance and improve the aesthetic appearance of city streets and highways as an aid to maintaining the quality and livability of the residential neighborhoods of the city. Boulevards are public right-of-way subject to the right of the city to administer, alter and reconstruct for public street purposes. Permits granted by the city pursuant to this chapter do not reduce those rights.

(b) *Definitions:*

(1) Sidewalks, walkways, bikeways, and shared use paths, shall be known and designated as "pathways."

(2) That part of all streets and avenues between the property line and the roadway, excluding boulevard walks, driveways, alleys, and pathways, or when no roadway exists, between the pathway and the property line, shall be known and designated as "boulevards."

(3) That part of a boulevard between the pathway and the roadway which operates as a linear extension of a walkway extending from a building entrance to such pathway shall be known and designated as a "boulevard walk."

(c) *Vegetation.* The growing or planting of flowers, vegetables and other edible plants, grass, trees, hedges, and shrubs is allowed as provided herein:

(1) *Flowers, hedges, shrubs, edible plants, and other vegetation.* Flowers, hedges, shrubs, edible plants, and other vegetation grown on the boulevard are allowed without a permit from the city, provided that they shall not violate any other provision of this Code, including sections 227.90 and 244.1580 which shall be deemed to apply by reference.

(2) *Trees.* Planting trees in boulevards is allowed only upon obtaining a permit as required by Chapter 10 of the Park and Recreation Board Code of Ordinances.

(3) *Weeds.* The growing or planting of any plant with thorns, spines, or sharp-ridged parts, or similar noxious weeds is prohibited.

(4) *Placement of vegetation.* Any planting of vegetation within the boulevard shall comply with the following restrictions:

a. Within forty (40) feet of a road intersection, or within ten (10) feet of an alley or driveway, vegetation shall be no taller than eighteen (18) inches above curb height.

b. Vegetation within three (3) feet of any fixed objects, including fire hydrants, shall be no taller than eighteen (18) inches above curb height.

c. Hedges and shrubs shall be maintained to be no closer to the sidewalk than six (6) inches and no closer to the road gutter than two (2) feet. Vegetation shall be maintained with no encroachment or overhang onto the adjacent pathway, curb, or street.

d. Vegetation taller than eight (8) inches shall not be continuous for more than fifteen (15) feet measured parallel to the curb or pathway. Clear spaces between vegetation taller than eight (8) inches shall be no less than three (3) feet measured parallel to the curb or pathway.

e. Tilling or digging using mechanized equipment is prohibited when planting vegetation within the dripline of boulevard tree and no tree roots may be cut to allow planting.

(d) *Boulevard walks.* No person shall construct or place any boulevard walk upon any boulevard without first obtaining the permit required by section 437.20 of this Code. Such boulevard walk shall be constructed of concrete, or of brick or other suitable material if approved by the city engineer. In no event shall the boulevard walk exceed six (6) feet in width or be constructed of blacktop, asphalt, or similar material.

(e) *Permit required.* Other than such boulevard walk or planting of flowers, hedges, shrubs, edible plants, and other vegetation, no person shall pave over or cover any boulevard, nor place any facilities within the boulevard, unless a permit has been granted by the city.

The city engineer, or their designee, shall process all applications for such permit and determine whether the granting of the permit will have a substantially negative impact on boulevard trees, the well-being of the public, or the aesthetic appearance of adjacent residential properties. In no event shall any person use blacktop, asphalt, or any similar material to pave over or cover any portion of the boulevard.

(f) *Ground cover.* The placement of any alternative ground cover such as double-shredded hardwood bark mulch and landscape rock on any boulevard is prohibited, unless a permit for such is issued by the city.

(1) Natural double-ground or double-shredded hardwood mulch free of dyes and other treatment is allowed to cover the ground between vegetation clusters for up to six (6) feet measured parallel to the curb or pathway without a permit.

(2) Wood chips shall not be allowed as an alternative ground cover in the boulevard.

(3) Any approved alternative ground cover must be placed in such a manner as to not fall or accumulate in the adjacent gutter or catch basin.

(g) *Facilities.*

(1) The installation of boulevard facilities or garden facilities such as irrigation systems, planter walls, garden edging, fences, and like structures on any boulevard is prohibited, unless a permit for such is issued by the city. Rain gardens are allowed only upon obtaining a permit from the city engineer or their designee.

(2) Raised planting beds are allowed without a permit in compliance with the following restrictions:

a. Shall comply with the Minnesota State Fire Code and shall not impede emergency vehicle access.

b. Are prohibited within forty (40) feet of a road intersection.

c. Are prohibited within ten (10) feet of an alley or driveway.

d. Are prohibited within three (3) feet of any fixed objects, including fire hydrants.

e. Shall be maintained to be no closer to the sidewalk than six (6) inches and no closer to the road gutter than two (2) feet.

f. Shall be maintained with no encroachment or overhang onto the adjacent pathway, curb, or street.

g. Shall not be continuous for more than fifteen (15) feet measured parallel to the curb or sidewalk. Clear spaces between raised planting beds shall be no less than three (3) feet measured parallel to the curb or sidewalk.

(h) *Compliance requirements.*

(1) The city engineer, or their designee, shall have the authority to investigate the status of all existing boulevards in all zoning districts of the city and determine which boulevards and/or boulevard walks do not comply with this ordinance. For any property determined to be in violation, the city engineer or their designee shall communicate such information to the city's inspections department. The inspections department shall then enforce compliance with this section in the same procedural manner provided at section 227.100 et seq.

(2) The city engineer, or their designee, may revoke this permit and order modification or removal of any alternative ground cover, plantings, or facilities for the well-being of the public or for a public project. Failure to modify or remove any alternative ground cover, plantings, or facilities shall be considered a violation of this ordinance and enforced pursuant to the procedural manner provided in section 247.10(h).

(3) If the city removes or modifies the alternative ground cover, plantings, or facilities, the city shall be responsible to restore the boulevard only with turf grass seed or sod.

(i) *Exemptions.* Property used for nonresidential educational purposes is exempt from the provisions of this ordinance to the extent that properly designated and constructed vehicle loading areas are created on the boulevard adjacent to such property.

Construction of pedestrian and/or bicycle facilities by the city or the Park Board are not prohibited by the provisions of this ordinance.

(j) *Responsibilities.* Except where specifically defined otherwise by ordinance, the owner of the property abutting the boulevard is responsible for maintaining the boulevard in compliance with the requirements of sections 227.90, 244.1580, and 427.10, regardless of the fee title ownership of the real estate underlying the boulevard.

(k) *Parkways and park roads.* The park and recreation board retains its authority under the City Charter to control, govern, and administer the parkway system. This ordinance does not apply to parkways and park roads and does not transfer any administrative authority to the city for parkways and park roads.

(Code 1960, As Amend., § 570.010; 89-Or-240, § 1, 12-15-89; 99-Or-034, § 1, 4-9-99; 2014-Or-013, § 1, 3-28-14; Ord. No. 2025-009, § 1, 2-27-25)

427.15. - Indemnification and liability.

(a) By reason of allowing planting of vegetation and placement of alternative ground cover on the boulevard without a permit or by the granting of a permit pursuant to section 227.10, the city does not assume any liability:

(1) For injuries to persons, damage to property, or loss of service claims by parties other than the applicant or the city; or

(2) For claims or penalties of any sort resulting from the installation, presence, or maintenance of a boulevard garden, ground cover, or right-of-way encroachment.

(b) By planting a garden or accepting a permit under this Chapter, a gardener or an applicant is required to defend, indemnify, and hold the city whole and harmless from liability or claims of liability for both bodily injury or death to persons, or for property damage, in which the claim:

(1) Alleges a negligent or otherwise wrongful act or omission of the applicant in installing, presence, or maintenance of a boulevard garden, ground cover or right-of-way encroachment and alleges that the city is liable, without alleging any independent negligent, or otherwise wrongful act omission on the part of the city; or

(2) Is based on the city's neglect or otherwise wrongful act or omission in issuing any permit or in failing to properly or adequately inspect or enforce compliance with a term, condition, or purpose of any permit granted to the applicant.

(c) Any person with a garden or alternative ground cover in the adjacent boulevard further agrees that it will not bring, nor cause to be brought, any action, suit or other proceeding claiming damages, or seeking any other relief against the city for any claim nor for any award arising out of the presence, installation, maintenance, or operation of its ground cover, plants or facilities, or any activity undertaken in a public right-of-way, whether or not the act or omission complained of is authorized, allowed, or prohibited by a permit or ordinance.

(d) The foregoing does not indemnify the city for its own negligence except for losses or claims occasioned by the negligent or otherwise wrongful act or omission of the city to the extent authorized in subsection (b) of this section regarding the issuance of a permit or the inspection or enforcement of compliance with a permit.

(e) This section is not, as to third parties, a waiver of any defense or immunity otherwise available to the applicant or to the city; and the applicant, in defending any action on behalf of the city, shall be entitled to assert in any action every defense or immunity that the city could assert in its own behalf.

(Ord. No. 2025-009, § 2, 2-27-25)

427.20. - City council to control streets.

The city council shall have the care, supervision and control of all highways, streets, alleys, public squares and grounds within the limits of the city. The city council may lay out and open new streets and alleys, and extend, widen and straighten any that now exist, or which may hereafter exist. For the purpose of drainage, construction of bridges, or making other necessary public improvements, or for the improvement of the health or sanitary condition of the people of the city, the city council may, through its designated agents or contractors, enter upon, lower, raise, change the course of or divert any stream of water, in accordance with federal and state law, (except the Mississippi River) or any ditch or drain within the limits of the city, and may build, maintain and repair bridges across streams or railway tracks, in accordance with state and federal law, and may provide for the pavement of gutters or of the roadbeds of any street or alley. The widths of streets shall be as established by the council and shall be filed with the city engineer. The city council shall have authority to designate districts or portions of the streets and alleys of the city, for the purpose of cleaning the same, and may provide for the cleaning of these districts by city forces or by contract on such terms as the city council shall deem advisable.

(2014-Or-106, § 1, 12-5-14, eff. 1-1-15)

427.30. - Obstructions, encroachments and littering generally.

No person shall erect, build, set up, keep or maintain any house, store, shop or other building or structure, or leave, deposit or place any boxes, merchandise, timber, planks, boards, shingles, casks, barrels, hogsheads, lumber, bricks, stones, trucks, carts, wagons, sleds, carriages upon or in any street, alley or sidewalk. No person shall place, leave, throw, drop or scatter any stones, bricks, mortar, earth, wood, shavings, offal, garbage, rubbish or any other material or substance upon any street, alley, sidewalk or public ground. Any person drawing or transporting any of the aforesaid articles or substances through or upon any of the streets or alleys shall convey and carry the same in tight wagons, carts or boxes so constructed and covered by canvas or other suitable material that such articles and substances cannot fall out or be scattered upon the streets or alleys. If any such articles or substances shall for any reason fall or be scattered upon any street or alley, the same shall be forthwith removed by the person at such time in charge of the vehicle from which such article or substance fell or was scattered.

(Code 1960, As Amend., § 583.010)

Charter reference— Authority to prevent street and sidewalk obstructions, Ch. 4, § 5(6).

Cross reference— For further prohibition against littering, see § 225.10.

State Law reference— Obstructing public ways declared nuisance, M.S. § 609.74.

427.40. - Depositing injurious matter on highways or adjacent property.

(a) No person shall throw or deposit upon any highway any glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such highway or upon any public or privately owned land adjacent thereto without the owner's consent.

(b) Any person who drops or permits to be dropped or thrown upon any highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

(c) Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.

(d) No person shall drop or hurl any destructive or injurious material or object at or upon any motor vehicle upon any highway or the occupants thereof.

(e) Any person violating the provisions of this section shall be guilty of a misdemeanor. The record of any conviction of or plea of guilty under this section of a person operating a motor vehicle shall be immediately forwarded to the department of public safety for inclusion upon that offender's driving record. Any second offense or offense thereafter under this section shall require a minimum fine in the amount of one hundred dollars ($100.00). Any judge may, for any violation of this section, order the offender to pick up litter along any public highway or road for four (4) to eight (8) hours under the direction of the department of highways, with the option of a jail sentence being imposed. (Code 1960, As Amend., § 407.220)

State Law reference— Similar provisions, M.S. § 169.42.

427.50. - Street grades.

The city council may establish the grade of any street when such grade has not been established, and may by vote of two-thirds (⅔) of the members of the council change the grade of any street after such grade has been established. Accurate profiles of the grades of all streets shall be made and kept in the department of public works. Before any ordinance is passed providing for a change of grade on any street or alley, the city engineer shall notify by mail all owners of property abutting on the street when the proposed grade change is to be made, so far as the owners can be readily ascertained by the city engineer.

Whenever the grade of any street shall be established or changed by the city council, the owner of abutting property may file with the city clerk, within twenty (20) days after the city council votes to establish or change the grade of a street in front of an abutting property, notice that the owner of the abutting property will claim damages by reason of the establishment or change of grade in front of the owner's abutting property, giving the description of the land and the buildings thereon, together with the amount of the value of such land and buildings, in the owner's judgment, and the amount of the alleged damages which such establishment or change of grade will, in the owner's judgment, cause to the owner's land and buildings, which notice shall be sworn to and shall be accompanied by the certificate of the city assessor of the city of the value in the city assessor's judgment of such land and buildings, and of the damages which in the city assessor's judgment such establishment or change of grade will cause to the land and buildings and the city assessor shall examine said buildings and land, and the change of grade, as so voted, and make the requested certificate pursuant to the request of the owner of such property. After the expiration of the twenty (20) days and within thirty (30) days after the expiration of the twenty (20) days, if the city council shall, from the amount of damages claimed by such notices, deem it unwise to establish such grade or to make such change of grade of such street, it may reconsider the vote by which such establishment or change of grade was made, which reconsideration of such vote shall be by a majority of all the members of the city council. But if no such reconsideration of such vote shall be had within fifty (50) days after the vote of the city council so establishing or changing the grade of the street, where damages are so claimed, or if on such reconsideration two-thirds (⅔) of the members of the council shall again vote for such establishment or change of grade, then after the expiration of six (6) months after the work of grading such street shall have been fully completed, the city council shall appoint five (5) free-holders of the city, no two (2) of whom shall reside in the same ward, as commissioners, to view the premises and to ascertain and award the amount of damages and compensation to be paid to the owners of such abutting property and permanent buildings who have filed the sworn notices and certificates of such city assessor required herein, and to assess the amount of such damages and compensation upon the lands and property to be benefited by the improvement, and in proportion to the benefits to be received by each parcel and without regard to a cash valuation. It shall take at least four (4) of these commissioners to make any award of damages. The commissioners shall be sworn by the clerk or any officer authorized to administer oaths, to discharge their duties as such commissioners in the matter, with fidelity and impartiality, and make due return of their action to the city council.

They shall give notice by two (2) publications in the official paper of the city that they will, on a day designated in such notice, which shall be at least ten (10) days after the first publication of such notice, meet at a place designated in the notice on or near the lands and buildings which it is claimed shall have been damaged by the establishment or change in the grade of such street, and view the same, and ascertain and award therefor compensation and damages, and view the premises to be benefited by such improvement, and assess thereon, in proportion to benefits, the amount necessary to pay the compensation and damage, and that they will then and there hear such allegations and proofs as interested persons may offer, and the commissioners shall meet and view the premises pursuant to such notice, and may adjourn from time to time after having viewed the premises, and may for the hearing of evidence and the preparation of their award and assessment, adjourn or go to any other convenient place in the city, and may have the aid and advice of staff of the department of public works and of any other officer of the city. After viewing the premises, and hearing the evidence offered, the commissioners shall prepare and make a true and impartial appraisement and award of the compensation and damages to be paid to each person whose land or buildings shall have been damaged by the establishment or change of grade of the subject street. But if the remainder of the land or of the property on which the subject buildings stand, or the remainder of the lot or parcel connected therewith, shall be benefited by such establishment or change of grade of the street, then the commissioners, in considering and awarding compensation and damages, shall also consider, estimate and offset the benefits which will accrue to the same owner in respect to the remainder of the same property, and award the owner only the excess of the compensation or damages over and above such benefits. The commissioners shall then assess the amount of such compensation and damages so awarded upon the land and real property benefited by such change of grade, and in proportion to the benefits, but in no case shall the amount of the assessment exceed the actual benefit to the lot or parcel of land, or other real property so assessed, deducting therefrom any damages or injuries to the same parcels which are less than such benefits, and assessing only the excess, and prepare and report to the city council their appraisement and award, and if, in the judgment of the commissioners, the whole amount of such compensation and damages, together with the cost of making such improvement, shall exceed the actual benefit to the specific property subject to assessment, they shall so indicate in their report, and shall state the amount of the excess. The commissioners shall also report to the city council an assessment list containing their assessment of such compensation and damages, or so much thereof as shall not exceed the actual benefits to the property so assessed, which list shall contain a brief description of each tract or parcel of real property assessed, the name or names of the owner or owners thereof, if known, and the amount assessed thereon and the amount of the excess of such compensation and damages aforesaid, which they shall return unassessed. The report shall be presented by the commissioners to the city clerk of the city, who shall give notice by one (1) publication in the official paper of the city that the report and assessment list will be presented to the city council for confirmation at the next meeting or session of the council occurring at least one (1) week after the publication of the notice, at which meeting or at any subsequent meeting or session of the council, the city council may act upon the report and hear any complaint touching any award or assessment, or it may refer the matter to a committee of the council to hear any complaints and report thereon. The council may confirm the award and assessment, or either, or send the same back to the commission for further consideration; and the commissioners may in such case again, upon giving notice, published once in the official paper of the city, meet at any time and place to be designated in the notice, which time shall be at least two (2) weeks after the publication of the notice, and hear any further evidence that may be adduced by interested persons, and may adjourn from time to time, and may correct any mistakes in the award and assessments and alter and revise the same as they shall deem just and again report the same to the city council, who may thereupon confirm or annul the same, or the city council may appoint a new commission, with like powers, duties and obligations of the first commission to make such assessment and awards, and to report the same to the city council in like manner that the first commission might do, and when the report and assessment lists are finally confirmed by the city council, such confirmation shall make the award and assessment final and conclusive upon all parties interested. The city council shall proceed, at the same time or any subsequent meeting, to levy the assessment upon the several parcels of land described in the assessment list reported by the commissioners in accordance with the assessment so confirmed, and cause to be made, and adopt, an assessment roll of the same which may be in any form which the city council may adopt, and from which award and assessment as so confirmed by the city council the owner of an affected parcel may appeal to district court by serving notice of appeal upon the mayor or the city clerk within thirty (30) days after the city council has adopted the assessments and by filing the notice with the clerk of district court within ten (10) days after its service; and the city clerk, under the instruction of the city council, shall make and prepare all forms necessary to carry out the provisions of this section. Provided, that no award shall be greater than the amount so claimed in the sworn notice filed with the city clerk. Provided further, that the damages and compensation to be awarded shall be the damages and compensation which shall be apparent at the end of six (6) months after the final completion of the work of the grading of the subject street. (Code 1960, As Amend., § 578.010; 2014-Or-106, § 2, 12-5-14, eff. 1-1-15)

427.60. - Emergency change of grade authorized.

Whenever the owner or occupant of any lot fronting upon or adjoining any street of which a grade shall not have been established, shall not be able, from the nature of the ground, to have convenient ingress to and egress from the lot to the street, the owner or occupant shall be permitted to fill up or excavate the street adjoining such lot or lots, in such manner as shall give convenient access to the same, provided that the same be done without prejudice to the public right-of-way in or over said street. (Code 1960, As Amend., § 578.020; Pet No. 250548, § 1, 10-13-89)

427.70. - Permit required for emergency grade change.

Any person desiring to make any change in the street to accomplish the purpose aforesaid, shall petition the council for permission to make such change, setting forth the nature thereof; and if the petition is granted in whole or in part, a permit shall be granted to such owner or occupant to make such change in the street as may be specified in the permit. Provided, that no changes shall be permitted in the street which will prejudice the public use of the same for street purposes. (Code 1960, As Amend., § 578.030)

427.80. - Driving on fresh paving.

No person shall drive or cause to be driven any vehicle upon any street or highway in the city which has been newly paved and where signs, barricades, markers or other devices have been erected by the city engineer to indicate to the public that vehicular traffic upon said street or highway is prohibited. (Code 1960, As Amend., § 421.120)

427.90. - Owners to build and repair sidewalks.

(a) It is the duty of all owners of land adjoining any street, lane or alley in the city, to construct, reconstruct and maintain in good repair any sidewalks along the side of the street, lane or alley next to the lands of such owner of land as may have been previously constructed, or as shall hereafter be constructed, or directed by the city council to be built. It is the duty to build it of such material and width, and upon such place and grade as the city council, acting through the director of public works, may prescribe. Whenever the city council shall deem it necessary that any sidewalk in the City of Minneapolis shall be constructed or reconstructed, it shall by resolution direct such construction or reconstruction, specifying the width thereof and the material of which the same is to be constructed. The publication of such resolution once in the official paper of the city shall be sufficient notice to the owners of the land along which such sidewalk is to be built to construct the same, and unless such owners shall each along the owner's respective land construct and fully complete the sidewalk within two (2) weeks after the publication of the resolution as aforesaid, the city council shall proceed to ascertain the expense of constructing the same and assess and levy the expense upon and against each lot and parcel of land upon which the sidewalk shall front. The assessment shall be collected as provided for generally in this Code. The city council may either before or after making the assessment cause such portion of such sidewalks as have not been built by the owners of the lands fronting on the same, and all street crossings, to be built by the city. Before ordering the construction of any new sidewalk the city shall, if reasonably necessary, cause the ground on which it is built to be graded in a reasonable manner.

(b) If the owner of any lot or parcel of land shall suffer any sidewalk along the same to become broken, rotten, or out of repair, it shall be the duty of the director of public works to ensure the repair of the same within a reasonable time in a good, substantial and thorough manner, and to report to the city council the cost of such repairs in each case, and a description of the lot or parcel of land abutting which such repairs are made, and such report shall be filed and preserved by the city clerk. The city council shall once in each year, at or as near as conveniently may be to the time of levying the yearly city taxes, assess and levy upon each of the lots and parcels of land fronting or abutting upon sidewalks which have been so repaired the cost of making the repairs. In each case the assessments for all the repairs within the year may be combined in one (1) assessment roll and be collected as provided for in this Code. In the case that any sidewalk shall become so out of repair as to become dangerous, and cannot be made safe without being rebuilt, and there are no funds to defray the expense of the rebuilding, it shall be the duty of the director of public works to ensure the removal of the same entirely, and the expense of such removal shall be added to the cost of rebuilding when the same shall be reconstructed and collected with the assessment for the reconstruction. (2014-Or-106, § 3, 12-5-14, eff. 1-1-15)

427.100. - Reserved.

Editor's note— Ord. No. 2017-046, § 1, adopted Aug. 31, 2017, repealed § 427.100, which pertained to disposition of property found in streets and property lawfully coming into the possession of the city in the course of municipal operations, and derived from Code 1960, As Amend., §§ 583.070, 583.080; Pet No. 250548, § 2, 10-13-89; 96-Or-072, § 1, 8-9-96.

427.110. - Display of merchandise on sidewalks, over streets.

No person shall place or suffer to be placed upon or over any sidewalk, or suspend over any street, any goods, wares or merchandise for sale, show or otherwise beyond the front line of the lot where such goods may be placed, suspended or exposed. The provisions of this section shall not apply to the display of merchandise on the city sidewalk by civic or regularly established neighborhood organizations holding a special permit, granted by the city council, subject to such requirements as the council may deem necessary to adequately protect public interests. (Code 1960, As Amend., § 583.120)

427.120. - Blocking sidewalks while receiving or delivering goods.

No person receiving or delivering goods, wares or merchandise in the city shall place or keep upon any sidewalk any goods, wares or merchandise which he may be receiving or delivering, without leaving a passageway clear upon such sidewalk where such goods may be of not less than four (4) feet wide for the use of foot passengers. No person receiving or delivering such goods shall suffer the same to be or remain on such sidewalk for more than two (2) hours. (Code 1960, As Amend., § 583.130; 81-Or-022, § 1, 1-30-81)

427.130. - Sales on sidewalks.

(a) No person shall sell or attempt to sell, or offer or cry for sale at public auction in the city any goods, chattels, wares, merchandise or personal property whatever to any person upon the sidewalks or streets; nor shall any person by ringing a bell, gong or triangle, or any loud cries, give notice of any auction or sale of any kind upon the streets or sidewalks of the city. This section shall include licensed auctioneers. The chief of police and all police officers, and official inspectors of the city shall cause the strict observance of this and all other provisions relative to the obstruction of sidewalks and streets within the city. The provisions of this section shall not apply to the sale, attempt or offer for sale of any merchandise on the city sidewalk by civic or regularly established neighborhood organizations holding a special permit, granted by the city council, subject to such requirements as the council may deem necessary to adequately protect public interests.

(b) *Exceptions.* A business owner occupying a ground level retail space directly adjacent to the public sidewalk may display and sell merchandise that is also regularly sold and displayed within the adjacent retail business from a portion of the public sidewalk directly in front of the business as follows:

(1) Merchandise displayed and sold on the public right-of-way must be limited to that part of the public right-of-way that is within the thirty (30) inch wide portion of the public sidewalk nearest the point of the exterior retail business building wall, along the lineal storefront area, provided that at least a sixty (60) inch unobstructed, straight pedestrian way can be maintained along the entire length of the storefront.

(2) Merchandise may only be displayed and sold on the public right-of-way pursuant to section 427.130(b) between the hours of 8:00 a.m. and 10:00 p.m.

(3) All merchandise, fixtures, tables, racks, shelving and other related materials must be completely removed from the public right-of-way when not in use or during restricted hours of operation.

(4) No display of merchandise shall block building entrance door openings, nor be located within a distance of fifteen (15) feet from any street or alley intersection where the zoning administrator finds it to obstruct a driver's view of approaching, merging or intersecting traffic.

(5) Protruding objects shall not reduce the clear width of an accessible route or maneuvering space.

(6) Upon notification by the city license official that insufficient public sidewalk exists to safely allow sidewalk sales at a specific address, or that significant violations of the terms of this chapter have been documented, no such display or sale of merchandise may occur at that address until such time as the license official has approved such use. Appeals of a license official's determination will be heard by the city council.

(c) *Maintenance.* The use of a portion of the public sidewalk for retail display or sale shall not be an exclusive use. All public improvements including, but not limited to, trees, light poles, traffic signals, pull boxes or manholes, or any public-initiated maintenance procedures or work, shall take precedence over said use of the public sidewalk at all times. The merchandise and display racks, tables and equipment shall be removed from the sidewalk immediately upon notice to permit such public-initiated maintenance procedures or work.

(d) *Prohibited merchandise.* Liquor, tobacco, tobacco-related products, and sexually oriented images and merchandise, and any merchandise otherwise prohibited from being sold outdoors shall be prohibited from being displayed and sold under this ordinance. (Code 1960, As Amend., § 583.140; 2014-Or-025, § 1, 6-13-14)

Cross reference— Authority to operate cafe notwithstanding provisions of above section, § 265.280.

427.140. - Stopping or driving on walks.

(a) No vehicle shall be driven or operated on any sidewalk except a vehicle may be driven from or to the roadway across the sidewalk when an entry or exit is through a regular driveway where a curb cut has been provided for by law, unless a permit has been obtained from the city engineer.

(b) No vehicle shall be driven or operated over any curb or boulevard to enter upon or exit from any roadway except where entry or exit is through a regular driveway where a curb cut has been provided for by law, unless a permit has been obtained from the city engineer. (Code 1960, As Amend., § 407.260; Ord. of 9-28-73, § 1; Ord. No. 2017-066, § 1, 11-3-17)

427.150. - Placing snow in streets.

No person shall throw, put or push or cause to be thrown, put or pushed, any snow or ice taken from any private premises or building, or from the side of any street, lane or alley into the roadway of any public street, lane or alley. (Code 1960, As Amend., § 583.190)

Cross reference— Dumping snow in problem drainage areas, § 225.25.

427.160. - Dropping heavy objects on sidewalks.

No person shall throw or drop, or cause or suffer to be thrown or dropped, any hard or heavy substance or material of any kind or description whatever upon any sidewalk or curb. (Code 1960, As Amend., § 583.200)

427.170. - Coasting.

No person shall coast or slide carelessly upon any sled, board or other thing upon any sidewalk or footwalk in the city. (Code 1960, As Amend., § 583.220; 78-Or-147, § 1, 8-11-78)

427.180. - Games and fires in streets.

No person shall, within the limits of any street or highway of the city, play at any game of ball or fly any kite or balloon, or throw any stone or missile, or engage in any other game, amusement or exercise interfering with the free, safe and convenient use of such street or highway, by any person traveling or passing along the same; nor shall any person build or cause to be made any fire within the limits of any street or alley of the city. (Code 1960, As Amend., § 583.230)

Cross reference— Prohibition against fires on pavements, § 385.30.

427.190. - Interference with bridges or crossings.

No person, without first obtaining written permission therefor from the city engineer, shall take up, carry away, remove, injure, destroy or in any manner interfere with any planked or paved roadway or any sidewalk or crosswalk or any part or portion thereof, upon, along or over any stream or body of water or any highway, street, lane or alley, unless it be done by duly authorized city officers in making necessary repairs or for the purpose of constructing a new walk, paving or plank roadway pursuant to the order or direction of the city council. (Code 1960, As Amend., § 583.270)

427.200. - Destruction of trees, posts, etc.; attachment of objects prohibited.

No person shall cut down, remove, injure or destroy any tree, shrub or other planting or post, including parking meter posts, streetlight poles, traffic signal posts and signposts, growing or being in any public street, lane, alley, public sidewalk, common or public ground, without the permission of the mayor and city council. No person shall secure, attach or connect in any manner any motorized vehicle, motorized or nonmotorized bicycle or device or any trailer or trailerlike [vehicle or] device to any tree, parking meter post, streetlight post, traffic signal post or post, except that motorized and nonmotorized bicycles may be temporarily attached to signposts where not otherwise prohibited. Bicycles, motorized and nonmotorized, when attached to any object shall not impede the normal and reasonable movement of pedestrian or other traffic. (Code 1960, As Amend., § 583.280; Ord. of 8-8-75, § 1; 78-Or-148, § 1, 8-11-78; 80-Or-012, § 1, 1-25-80)

Cross reference— Trees on streets and parkways, § PB10-1 et seq.

427.210. - Gates, doors opening onto streets.

No person shall allow any gate or door belonging to premises owned or occupied by him or under his control, to swing on, over or into any street or highway. (Code 1960, As Amend., § 583.290)

427.220. - Reserved.

Editor's note— Ord. No. 2016-020, § 1, adopted March 18, 2016, repealed § 427.220, which pertained to congregating on streets or sidewalks and derived from Code 1960, As Amend., § 583.300; Pet. No. 250548, § 3, adopted Oct. 13, 1989.

427.230. - Railroads blocking streets, bike trails/paths.

No person shall obstruct any street, alley or bike trail/path by stopping across it any railway locomotive or railway car, or railway cars, or train of railway cars for any purpose for a time exceeding five (5) minutes. (Code 1960, As Amend., § 583.330; 97-Or-103, § 1, 12-30-97; 98-Or-076, § 1, 7-31-98)

Cross reference— Railroads, Ch. 397.

427.240. - Reserved.

Editor's note— Ord. No. 2006-Or-056, § 1, adopted May 12, 2006, repealed § 427.240, which pertained to dancing on streets. See also the Code Comparative Table.

427.250. - Transferring loads on streets or sidewalks.

Except in cases of emergency caused by some mechanical failure or breakdown, or when directed by a properly authorized officer, no person shall use any street, avenue, boulevard, alley or sidewalk for the purpose of transferring freight, goods, wares, merchandise, baggage or other items from one truck, trailer, van or any vehicle to another vehicle. (Code 1960, As Amend., § 583.350)

427.260. - Hauling metal shavings.

It is unlawful for any person, firm, partnership or corporation to haul or transport upon the streets any steel or other metal splinters, shavings or broken pieces unless the same are transported in such a manner as to prevent the spilling of such splinters, shavings or broken pieces upon any city street.

The prohibitions and penalties in this section shall rest equally upon either the owner or the driver of the vehicle involved. (Code 1960, As Amend., § 583.370)

427.270. - Leaves, grass on streets.

No person shall leave, or cause to be placed, any leaves, grass clippings or other organic debris on or along any public street or alley. (Code 1960, As Amend., § 583.380; Ord. of 6-14-74, § 1)

427.280. - Obstructing driver's view of traffic.

No person shall keep or maintain a tree, shrub, hedge or fence within a distance of twenty (20) feet from any street intersection or street and alley intersection or which the city engineer finds to obstruct or physically interfere with a driver's view of approaching, merging, or intersecting traffic. (Code 1960, As Amend., § 880.040; 88-Or-181, § 1, 10-14-88; Ord. No. 2017-066, § 2, 11-3-17)

427.290. - Bridges.

All bridges in the city crossing the Mississippi River or any natural stream or water course in the city, whatever the form or material used in the construction thereof, together with the guards and embankments connected therewith, and the immediate approaches thereto which form a necessary part of the same, and also all such bridges crossing railway tracks, canals and the approaches thereto or any portions thereof that are not the responsibility of any railway company, any other governmental unit or any other entity, shall be built, maintained and kept in repair by the city as a general city charge unless otherwise determined by the director of finance. (2014-Or-106, § 4, 12-5-14, eff. 1-1-15)

427.300. - Rollerskating and skateboarding.

(a) No person shall ride or propel rollerskates or skateboards upon a public street, highway or sidewalk, except in a prudent and careful manner and unless such a person be capable of efficient control and such rollerskates are operated with reasonable regard to the safety of the operator and other persons upon the streets, sidewalks and other public highways of the city.

(b) No person shall ride or propel rollerskates or skateboards upon the Nicollet Mall, or any other public plaza-like area regulated by the City of Minneapolis or other governmental unit, except in connection with an exhibition, commercial venture, organized play or similar organized event authorized by permit from the city council pursuant to Section 440.20 of the Minneapolis Code of Ordinances or as authorized by the appropriate governmental unit. (80-Or-303, § 1, 12-29-80; 83-Or-252, § 1, 10-14-83; 89-Or-093, § 1, 5-26-89)

427.310. - Reflective materials on refuse containers.

No person shall place or cause to be placed in the public street, for use during construction or for any other purpose, any metal bin or similar device used for the storage of refuse, without first attaching on the front and rear of said device, two (2) strips of reflective material of at least twenty-five (25) square inches each. Such reflective material shall be white in color and shall be mounted at a height of not less than twelve (12) inches nor more than twenty-four (24) inches from the top of said device and shall be so designed and maintained as to be visible at night from a distance of three hundred (300) feet from the device. (90-Or-044, § 1, 1-26-90)

427.320. - Parkway paving, repair, and reconstruction.

(a) The public works department administers the parkway paving program that paves and repaves the parkways managed by the park and recreation board throughout Minneapolis. The parkway paving program was developed by the city council and city engineer with significant coordination with the park and recreation board and their staff with the intent of maintaining the pavement condition across the parkway system. To further this goal, the public works department shall consult with the park and recreation board with respect to the paving and repair of the parkways described in section 6.6 of the city charter. After such consultation and no later than July 1 of each year, the public works department shall prepare recommendations with respect to maintenance, paving, and repair of the parkways for submission to the mayor, the city council, the park and recreation board, and the board of estimate and taxation. If the park and recreation board disagrees with the recommendations of the public works department, the park and recreation board may submit alternative recommendations to the mayor, the city council, and the board of estimate and taxation.

(b) If the recommendations of the public works department in paragraph (a) involve the reconstruction of the parkway system, the park and recreation board and the public works department shall use their best efforts to work cooperatively to investigate, assess, analyze, and develop a program for the reconstruction of the parkway system.

(c) The public works department shall maintain the parkways at a standard not less than the city's standard for other city streets.

(d) The city will present annual updates inclusive of the parkway system pursuant to Section 16.1230(d) of this Code.

(e) Contingent upon appropriation through the city's annual budget process, the city will allocate to the public works department for the purposes of the Parkway Paving Program the minimum amount of:

(1) Seven hundred thousand dollars ($700,000.00) in calendar year 2024;

(2) One million two hundred thousand dollars ($1,200,000.00) in calendar year 2025;

(3) Two million two hundred thousand dollars ($2,200,000.00) in calendar year 2026; and

(4) Two million seven hundred fifty thousand dollars ($2,750,000.00) in calendar year 2027.

(f) The park and recreation board retains its authority under the City Charter to control, govern, and administer the parkway system. This ordinance does not transfer any design authority to the city for parkways and park roads, including the signature, red aesthetic of the pavement. (Ord. No. 2023-069, § 1, 12-7-23)

427.330—427.390. - Reserved.

ARTICLE II. - DOWNTOWN EAST COMMONS

427.400. - Downtown East Commons defined.

The Downtown East Commons shall mean the area in the City of Minneapolis that is bounded by 4th Street South, 5th Street South, 5th Avenue South, and Park Avenue. The Downtown East Commons serves as a public amenity for passive recreation, gatherings, organized events and other park and plaza-like purposes, and is considered a public forum for First Amendment purposes. (Ord. No. 2017-018, § 2, 4-28-17)

427.410. - Conformance with governing policy.

Except as limited by the provisions of this chapter, rules governing conduct in the Downtown East Commons may be adopted and amended from time to time by the city's director of public works. "Rules of the commons" as used in this chapter shall mean the city's written rules approved by and kept on file with the director of public works. (Ord. No. 2017-018, § 2, 4-28-17)

427.420. - Downtown East Commons operator.

The city may, by written contract, designate a not-for-profit organization to carry out the operation and maintenance of the Downtown East Commons. Any such contract must be approved by action of the city council. "Operator" as used in this chapter shall mean any organization falling under the provisions of this section. (Ord. No. 2017-018, § 2, 4-28-17)

427.430. - Assemblies.

Bands, processions, parades, races, military displays, entertainments, exhibitions, public meetings, gatherings and constitutionally protected expressions shall be allowed, given, or held in the Downtown East Commons subject to any applicable ordinances, or rules, regulations, or permitting requirements governing the same in the rules of the commons. (Ord. No. 2017-018, § 2, 4-28-17)

427.440. - Control of public space.

Permits issued pursuant to this chapter shall not operate so as to transfer ownership or control of Downtown East Commons to permittees, or to any other party. (Ord. No. 2017-018, § 2, 4-28-17)

427.450. - Alcohol consumption.

The consumption of alcohol in the Downtown East Commons shall be governed by Title 14, Chapter 364, and any applicable rules of the commons. (Ord. No. 2017-018, § 2, 4-28-17)

427.460. - Compliance with laws.

Persons or entities visiting the Downtown East Commons shall comply with all applicable federal, state, and local laws as they may be amended from time to time. (Ord. No. 2017-018, § 2, 4-28-17)

427.470. - Enforcement.

In addition to any other remedy available at equity or law, failure to comply with the provisions of Title 14, Chapter 364, or this Chapter 427, including but not limited to the governing policy referenced herein, may result in criminal prosecution, administrative fines, restrictions, or penalties as provided in Chapter 2 of this Code. The provisions of this chapter shall not limit or impair the statutory or common law right of the city or its authorized officers, agents, or officials to make arrests or issue citations for violations of applicable laws or ordinances. (Ord. No. 2017-018, § 2, 4-28-17)

CHAPTER 428. - 50th AND FRANCE SPECIAL SERVICE DISTRICT

428.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, sections 428A.01 through 428A.10, there is hereby established a 50th and France Special Service District (otherwise referred to herein as the "district").

(1) *District boundaries.* The district shall consist of the following area:

Beginning at the intersection of the centerline of Beard Avenue South, and the easterly extension of the north line of Lot 9, Block 8, Rutland Lake Harriet Park Addition to Minneapolis; then south along said centerline to its intersection with the centerline of 51st Street West; then west along said centerline to its intersection with the centerline of Ewing Avenue South; then south along the Ewing Avenue South centerline to its intersection with the easterly extension of the south line of Lot 2, Block 1, Hays Brookview Addition to Minneapolis; then west to the southwest corner of said Lot 2; then south to the southeast corner of Lot 3, said Block 1; then west along the south line of said Lot 3 and its westerly extension to the centerline of France Avenue South; then north along the France Avenue South centerline to its intersection with the centerline of 49th Street West; then east along said centerline to its intersection with the northerly extension of the centerline of the north-south alley of Block 5, Rutland Lake Harriet Park Addition to Minneapolis; then south along said alley centerline to its intersection with the westerly extension of the north line of Lot 7 of said Block 5; then east along the north line of Lot 7, of said Block 5, across Ewing Avenue South, along the north lines of Lots 22 and Lot 7, Block 6, Rutland Lake Harriet Park Addition to Minneapolis, across Drew Avenue South, along the north line of Lot 22, Block 7, Rutland Lake Harriet Park Addition to Minneapolis, to the intersection of the easterly extension of the north line of Lot 22, of said Block 7, and the centerline of the north-south alley of said Block 7; then south along said alley centerline to its intersection with the westerly extension of a line parallel with and thirty-five (35) feet south of the north line of Lot 7, said Block 7; then east along said parallel line to its intersection with the centerline of Chowen Avenue South; then south along said Chowen Avenue South centerline to its intersection with the westerly extension of the north line of Lot 20, Block 8, Rutland Lake Harriet Park Addition to Minneapolis; then east to the point of beginning.

(2) *Public hearing.* Before the district may be established, a public hearing shall be held pursuant to Minn. Statute, Section 428A.02, Subd. 1, as may be amended.

(3) *Benefit; objection.* Before the ordinance is adopted or at the hearing at which it is to be adopted, any affected landowner may file written objection pursuant to Minn. Statute, Section 428A.02, Subd. 4, as may be amended.

(4) *Appeal to district court.* Any person aggrieved under this section, who is not precluded by failure to object before or at the hearing, or whose failure to object is due to a reasonable cause, may appeal to the district court by serving a notice upon the mayor or city clerk pursuant to Minn. Statute, Section 428A.02, Subd. 5, as may be amended. (2015-Or-026, § 1, 6-5-15; Ord. No. 2022-040, § 1, 9-22-22)

428.20. - Special services.

Pursuant to Minn. Statute, Section 428A.01, Subd. 3, as may be amended, special services to be furnished within the district may include:

(1) Clean and safe programs, including, but not limited to, sweeping, litter pick up, trash removal, sidewalk cleaning, graffiti abatement, snipe and poster bill removal, snow services, security services, closed circuit television (CCTV) systems and monitoring, etc.

(2) Marketing/promotion/special events, including, but not limited to, event programming, websites, newsletters, etc., district area business recruitment and retention programs, coordination of street markets and street vendors within the district, etc.

(3) Physical enhancements, including, but not limited to, hanging baskets, landscape planters, trash receptacles, etc.

(4) Maintenance of enhanced streetscape components above city standard, including, but not limited to, fixtures, sidewalks, electrical and irrigation systems, landscaping, fountains, etc.

(5) Management and oversight services and administrative services, including usual and customary start-up and ongoing administrative costs.

(6) Special services described in the annual operating plan adopted by the city council, in accordance with section 428.30.

(7) Maintenance and operations of public parking facilities. (2015-Or-026, § 1, 6-5-15)

428.30. - Annual operating plan.

Each year, prior to imposition of any service charge, the city council shall adopt by resolution an operating plan that describes with particularity the special services proposed to be performed during the following calendar year. Any physical enhancements to be installed by the district shall be maintained by the district, and to the extent they are not maintained, the city shall have the right to remove them. The district shall not be obligated to maintain any physical enhancements installed by parties other than the district unless and until said maintenance is included in the adopted operating plan. Each annual operating plan, and any amendments that may be made from time to time by subsequent resolution, is hereby incorporated into this ordinance. Special services may not include a service that is ordinarily provided throughout the city from general fund revenues of the city unless an increased level of the service is provided in the district. (2015-Or-026, § 1, 6-5-15)

428.40. - Provision of services.

Special services to be furnished within the district may be provided using one (1) or more of the following:

(1) The city may perform the services.

(2) The city may contract for services.

(3) The city may enter into a service agreement with a district management entity or a service provider. Notwithstanding any other ordinance provision, the service agreement provided for in this subsection is hereby exempt from the requirements of the following provisions of the Minneapolis Code of Ordinances: section 18.200 (equal benefits provisions in contracts); section 24.220 (prevailing wage); section 139.50 (non-discrimination and affirmative action provisions in contracts); and Chapter 423 (small and underutilized business enterprise program). Provided, however, that the service agreement shall contain provisions that require the district management entity or service provider to do the following:

a. The district management entity or service provider shall, when seeking competitive bids for special services in the district, issue bid solicitations to vendors including those on a list of small and underutilized businesses provided annually by the city.

b. The district management entity or service provider shall maintain a modified affirmative action plan that meets the requirements of Title VII of the Civil Rights Act of 1964 or Minneapolis Code of Ordinances section 139.50.

c. The district management entity or service provider shall extend any benefits offered to its employees based on marital status to employees with domestic partners registered as such pursuant to Minneapolis Code of Ordinances section 18.200.

d. The district management entity or service provider shall agree that any construction work that requires funding from more than one (1) year's assessment cycle shall be subject to the prevailing wage provisions of section 24.220. Further, the district management entity shall or service provider not sell bonds to obtain a larger funding source.

e. The district management entity or service provider shall submit to the city finance officer as soon as practical after each calendar year end but prior to adoption of the next year's budget, an annual report of services activity and an independent audit of financial activity for each calendar year in which services are performed in the district. (2015-Or-026, § 1, 6-5-15)

428.50. - Service charges.

The city may impose service charges within the district at a rate or amount sufficient to produce the revenues required to provide special services in the district pursuant to Minn. Statute, Section 428A.03, as may be amended. Service charges may be collected in advance of, contemporaneously with, or subsequent to the rendering of services to which the service charges relate.

(1) *Public hearing.* Before the imposition of service charges in the district, for each calendar year, a hearing must be held pursuant to Minn. Statute, Section 428A.03, Subd. 1, as may be amended.

(2) *Relationship to services.* The city may impose service charges against properties located within the district pursuant to Minn. Statute, Section 428A.02, Subd. 3, as may be amended.

(3) *Exemptions of certain properties from service charges.* Certain properties shall be exempt from service charges pursuant to Minn. Statute, Section 428A.03, Subd. 2, as may be amended.

(4) *Limitation.* Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase.

(5) *Adjustments for errors and omissions.* The city council may, by resolution, decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular.

(6) *Collection.* Service charges authorized under this chapter shall be levied annually in an aggregate sum equal to the estimated cost of providing the services for the next ensuing calendar year. (2015-Or-026, § 1, 6-5-15)

428.60. - Revenue surpluses; deficits; annual operating plan amendments.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2015-Or-026, § 1, 6-5-15)

428.70. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for a resolution imposing any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, Sections 428A.01 through 428A.10, as may be amended. (2015-Or-026, § 1, 6-5-15)

428.80. - Veto power of owners.

The veto power of owners under this chapter and for a resolution imposing any service charges, fees, or rates, shall be in compliance with Minn. Statute, Section 428A.09, and Section 428A.10, as may be amended. (2015-Or-026, § 1, 6-5-15)

428.90. - Advisory board.

The city may create and appoint an advisory board for the district to advise the city in connection with the construction, maintenance, and operation of improvements, and the furnishing of special services in a district. The advisory board shall make recommendations to the governing body on the requests and complaints of owners, occupants, and users of property within the district and members of the public. Before the adoption of any proposal by the governing body to provide services or impose service charges within the district, the advisory board of the district shall have an opportunity to review and comment upon the proposal. (2015-Or-026, § 1, 6-5-15)

428.100. - Definitions of construction.

The terms used herein shall be defined as provided in Minn. Statute, Sections 428A.01 through 428A.10, and said statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2015-Or-026, § 1, 6-5-15)

428.110. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2015-Or-026, § 1, 6-5-15)

CHAPTER 429. - RIGHT-OF-WAY ADMINISTRATION

Footnotes:

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***Editor's note—** Ord. No. 96-Or-125, § 1, adopted Nov. 22, 1996, repealed former Ch. 429, §§ 429.10—429.70, which pertained to permitted excavations and obstructions. Ord. No. 96-Or-126, § 1, adopted Nov. 22, 1996, added provisions designated as a new Ch. 429 to read as herein set out. See the Code Comparative Table.*

429.10. - Findings and purpose.

In order to provide for the health, safety and well-being of its citizens, as well as to insure the structural integrity of its streets and the use of the public rights-of-way, the city strives to keep its public rights-of-way in a state of good repair and free from unnecessary encumbrances. Although the general population bears the financial burden for the upkeep of the public rights-of-way, a primary cause for the early and excessive deterioration of its public rights-of-way is their frequent excavation by persons whose equipment or facilities are located therein as well as patching and restoration activities by persons undertaking adjacent construction activities.

Public right-of-way obstruction is a source of frustration for merchants, business owners and the general population which must avoid these obstructions or change travel plans because of them. Persons whose equipment or facilities are located within the public right-of-way are the primary cause of these frequent obstructions.

The city recognizes that it holds the public rights-of-way within its geographical boundaries as an asset in trust for its citizens. The city and other public entities have invested millions of dollars in public funds to build and maintain the public right-of-way. It also recognizes that some persons, by placing their equipment or facilities in the public right-of-way and charging the citizens of the city for goods and services delivered thereby, are using this property held for the public good. Although such services are often necessary or convenient for the citizens, such persons receive revenue and/or profit through their use of public property.

In response to the foregoing facts, the city hereby enacts new Chapters 429 and 430 of the Minneapolis Code of Ordinances relating to right-of-way permits and administration, together with an ordinance making necessary revisions to other Code provisions. These ordinances impose reasonable regulations on the placement and maintenance of equipment or facilities currently within its public rights-of-way or to be placed therein at some future time. Under these ordinances, persons disturbing and obstructing the public rights-of-way will bear a fair share of the financial responsibility for their integrity. Finally, these ordinances provide for recovery of out-of-pocket and projected costs from persons using the public rights-of-way. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 1, 4-21-00; Ord. No. 2009-Or-021, § 1, 3-6-09)

429.20. - Definitions.

The following definitions apply in both Chapters 429 and 430 of the Minneapolis Code of Ordinances, (hereafter, "Chapters 429 and 430" or "these ordinances"). References hereafter to "sections" are, unless otherwise specified, references to sections in the Minneapolis Code of Ordinances. Defined terms remain defined terms whether or not capitalized.

Abandoned facility means a facility, no longer in service or physically disconnected from a portion of the operating facility, or from any other facility, that is in use or still carries service. A facility is not abandoned unless declared so by the right-of-way user.

Applicant means any person requesting permission to excavate, disturb or obstruct a right-of-way.

City means the City of Minneapolis, Minnesota.

City management cost means the actual costs incurred by the city for public rights-of-way management; including but not limited to costs associated with registering applicants; issuing, processing, and verifying right-of-way permit applications; creating information and maintaining information on a Geographical Information System ("GIS") mapping system; inspecting job sites and restoration projects; maintaining, supporting, protecting, or moving user equipment or facilities during public right-of-way work; determining the adequacy of right-of-way restoration; restoring work inadequately performed after providing notice and the opportunity to correct the work; and revoking right-of-way permits and performing all of the other tasks required by Chapters 429 and 430, including other costs the city may incur in managing the provisions of this chapter.

City engineer means the city engineer or the city engineer's designee.

Congested right-of-way means a crowded condition in the subsurface of the public right-of-way that occurs when the maximum lateral spacing between existing underground facilities does not allow for construction of new underground facilities without using hand digging to expose the existing lateral facilities in conformance with Minn. Statute, Section 216D.04, Subd. 3, over a continuous length in excess of five hundred (500) feet.

Construction security means any of the following forms of security provided at the city engineer's option:

(1) Individual project bond.

(2) Cash deposit.

(3) Security, of a form listed or approved under Minn. Statute, Section 15.73, Subd. 3.

(4) Letter of credit, in a form acceptable to the city.

(5) Self-insurance, in a form acceptable to the engineer.

(6) A blanket bond for projects within the city, or other form of construction bond, for a time specified and in a form acceptable to the city.

Degradation means a decrease in the useful life of the right-of-way caused by excavation in or disturbance of the right-of-way, resulting in the need to reconstruct such right-of-way earlier than would be required if the excavation did not occur.

Degradation cost means the cost to achieve a level of restoration as determined by the city engineer at the time the permit is issued. When applicable, the cost may not exceed the maximum restoration shown in plates 1 to 13, which are set forth in parts 7819.9900 to 7819.9950.

Degradation fee means the estimated fee established at the time of permitting by the city engineer to recover costs associated with the decrease in the useful life of the right-of-way caused by the excavation, and which equals the degradation cost.

Delay penalty is the penalty imposed as a result of unreasonable delays in right-of-way excavation, obstruction, patching, or restoration as established by permit.

Disruptive cost is the penalty imposed as the result of the adverse impact on city citizens and others who are required to alter travel routes and times resulting from right-of-way obstructions. When applied to utility services, the disruptive cost is the delay penalty.

Downtown business district means that portion of the City of Minneapolis lying within and bounded by the following: On the east by the Mississippi River and Interstate 35W; on the south and west by Interstate 94; and on the north by Plymouth Avenue North.

Emergency means a condition that poses a clear and immediate danger to life or health, or of a significant loss of property, or requires immediate repair or replacement in order to restore service to a customer.

Equipment means any tangible asset used to install, repair, or maintain facilities in any right-of-way.

Excavate or *excavation* means to dig into or in any way remove or physically disturb or penetrate any part of a right-of-way.

Excavation permit means the permit which, pursuant to Chapters 429 and 430, must be obtained before a person may excavate a right-of-way. An excavation permit allows the holder to excavate that part of the right-of-way described in such permit.

Excavation permit fee means money paid to the city by an applicant to cover the costs as provided in Chapter 430.

Facility or *facilities* means any tangible asset in the right-of-way.

Five-year project plan shows projects adopted by the city for construction within the next five (5) years.

High-density corridor means a designated portion of the public right-of-way within which telecommunications right-of-way users having multiple and competing facilities may be required to build and install facilities in a common conduit system or other common structure.

Local representative means the person or persons, or designee of such person or persons, authorized by a registrant to accept service and to make decisions for that registrant regarding all matters within the scope of Chapters 429 and 430.

Minnesota Rules means Minnesota Rules as published by the Revisor of Statutes as they existed on June 1, 1999 whether or not they are currently in force.

Obstruct means to place any tangible object in a right-of-way so as to hinder free and open passage over that or any part of the right-of-way.

Obstruction permit means the permit which, pursuant to Chapters 429 and 430, must be obtained before a person may obstruct a right-of-way.

Obstruction permit fee means money paid to the city by a permittee to cover the costs as provided in Chapter 430.

Patch or *patching* means a method of pavement replacement that is temporary in nature. A patch consists of:

(1) The compaction of the subbase and aggregate base.

(2) The replacement, in kind, of the existing pavement for a minimum of two (2) feet beyond the edges of the excavation in all directions.

A patch is considered full restoration only when the pavement is included in the city's five-year project plan.

Pavement means any type of improved surface that is within the public right-of-way and that is paved or otherwise constructed with bituminous, concrete, aggregate, or gravel.

Permittee means any person to whom a permit to excavate or obstruct a right-of-way has been granted by the city under Chapter 429 or 430.

Person means an individual or entity, subject to the laws and rules of this state, however organized, whether public or private, whether domestic or foreign, whether for profit or nonprofit, and whether natural, corporate, or political.

Examples include:

a. A business or commercial enterprise organized as any type or combination of corporation, limited liability company, partnership, limited liability partnership, proprietorship, association, cooperative, joint venture, carrier or utility, and any successor or assignee of any of them.

b. A social or charitable organization.

c. Any type or combination of political subdivision, which includes the executive, judicial, or legislative branch of the state, a local government unit, or a combination of any of them.

Probation means the status of a person that has not complied with the conditions of Chapters 429 and 430.

Probationary period means one (1) year from the date that a person has been notified in writing that they have been put on probation.

Registrant means any person who:

(1) Has or seeks to have its equipment or facilities located in any right-of-way, or

(2) In any way occupies or uses, or seeks to occupy or use, the right-of-way or any equipment or facilities located in the right-of-way.

Registration fee means money paid to the city to cover the cost associated with registration.

Restore or *restoration* means the process by which an excavated right-of-way and surrounding area, including pavement and foundation, is returned to the same condition that existed before excavation.

Restoration cost means the amount of money paid to the city by a permittee to cover the cost of restoration.

Right-of-way or *public right-of-way* means the area in, on, below, or above a public roadway, highway, street, cartway, bicycle lane and public sidewalk in which the city has an interest, including other dedicated rights-of-way for travel purposes and utility easements of the city. A right-of-way does not include the airwaves above a right-of-way with regard to cellular or other nonwire telecommunications or broadcast service.

Right-of-way permit means either the excavation permit or the obstruction permit, or both, depending on the context, required by Chapters 429 and 430.

Right-of-way user means:

(1) A telecommunications right-of-way user as defined by Minn. Statute, Section 237.162, Subd. 4; or

(2) A person owning or controlling a facility in the public right-of-way that is used or is intended to be used for providing utility service and who has a right under law, franchise, or ordinance to use the public right-of-way.

Service or *utility service* includes:

(1) Those services provided by a public utility as defined in Minn. Statute 216B.02, Subds. 4 and 6.

(2) Services of a telecommunications right-of-way user, including transporting of voice or data information.

(3) Services of a cable communications system as defined in Minn. Statute Chapter 238.

(4) Natural gas or electric energy or telecommunications services provided by the city.

(5) Services provided by a cooperative electric association organized under Minn. Statute, Chapter 308A.

(6) Water, sewer, steam, cooling or heating services.

Supplementary application means an application made to excavate or obstruct more of the right-of-way than allowed in, or to extend, a permit that had already been issued. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 1, 8-8-97; 2000-Or-025, § 2, 4-21-00; Ord. No. 2009-Or-021, § 2, 3-6-09)

429.30. - Administration.

The city engineer of the department of public works shall be the principal city official responsible for the administration of the rights-of-way, right-of-way permits, and the ordinances related thereto. The city engineer may delegate any or all of the duties hereunder. (96-Or-126, § 1, 11-22-96)

429.40. - Utility coordination committee.

There is hereby created a utility coordination committee. This committee shall be voluntary and advisory to the city engineer. It may be composed of any registrants or other individuals that wish to assist the city in obtaining information and by making recommendations regarding ways to take greater responsibility for the right-of-way, and to improve the process of performing construction work therein. The city engineer shall determine the size of such committee, make all appointments to such committee, and establish rules governing such committee. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 3, 4-21-00)

429.50. - Registration and right-of-way occupancy.

Each person who occupies, uses, or seeks to occupy or use, the right-of-way or any equipment or facility located in the right-of-way, or who has, or seeks to have, equipment or facility located in any right-of-way must register with the city engineer. Registration will consist of providing application information as required by the city engineer and payment of any registration fee.

No person may construct, install, repair, remove, relocate, or perform any other work on, or use any equipment or facility or any part thereof located in any right-of-way.

Nothing herein or in Chapter 430 shall be construed to repeal or amend the provisions of a city ordinance permitting persons to plant or maintain boulevard plantings or gardens or in the area of right-of-way between their property and the street curb. Persons planting or maintaining boulevard plantings or gardens shall not be deemed to use or occupy the right-of-way, and shall not be required to obtain any permits or satisfy any other requirements for planting or maintaining such boulevard plantings or gardens under this chapter or Chapter 430. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 2, 8-8-98; 2000-Or-025, § 4, 4-21-00)

429.60. - Enforcement.

Failure to comply with the provisions of this chapter may result in permit cancellation, administrative fines, restrictions, or penalties as provided in Chapters 2, 429 and 430 of this Code. (2003-Or-095, § 1, 7-11-03)

429.70. - Registration information.

The information provided to the city engineer at the time of registration shall include, but not be limited to:

(1) Each registrant's name, Gopher State One-Call registration certificate number, address and e-mail address if applicable, and telephone and facsimile numbers.

(2) The name, address and e-mail address, if applicable, and telephone and facsimile numbers of a local representative. The local representative shall be available at all times. Current information regarding how to contact the local representative in an emergency shall be provided at the time of registration.

(3) A certificate of insurance or self-insurance acceptable to the city:

a. Verifying that an insurance policy has been issued to the registrant by an insurance company licensed to do business in the State of Minnesota, or is covered by self-insurance which provides the city with protections equivalent to that of a Minnesota licensed insurance company, legally independent from registrant.

b. Verifying that the registrant is insured against claims for personal injury, including death, as well as claims for property damage arising out of the:

1. Use and occupancy of the right-of-way by the registrant, its officers, agents, employees and permittees, and

2. Placement and use of equipment or facilities in the right-of-way by the registrant, its officers, agents, employees and permittees, including, but not limited to, protection against liability arising from completed operations, damage of underground facilities and collapse of property.

c. Naming the city as an additional insured as to whom the coverages required herein are in force and applicable and for whom defense will be provided as to all such coverages.

d. Requiring that the city engineer be notified thirty (30) days in advance of cancellation of the policy or material modification of a coverage term.

e. Indicating comprehensive liability coverage, automobile liability coverage and umbrella coverage, workers' compensation in amounts established by the director of the office of risk management in amounts sufficient to protect the city and carry out the purposes and policies of Chapters 429 and 430.

(4) If the person is a corporation, a copy of the certificate required to be filed under Minn. Statute, Section 300.06 as recorded and certified by the secretary of state.

(5) A copy of the person's order granting a certificate of authority from the Minnesota Public Utilities Commission, or other applicable state or federal agency, where the person is lawfully required to have such certificate from said commission or other state or federal agency.

The registrant shall keep all of the information listed above current at all times by providing to the city engineer information of changes within fifteen (15) days following the date on which the registrant has knowledge of any change. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 3, 8-8-97; 2000-Or-025, § 6, 4-21-00)

429.80. - Reporting obligations.

Each registrant shall, at the time of registration and by December 1 of each year, file a construction and major maintenance plan with the city engineer. Such plan shall be submitted using a format designated by the city engineer and shall contain the information determined by the city engineer to be necessary to facilitate the coordination and reduction in the frequency of excavations and obstructions of rights-of-way.

The plan shall include, but not be limited to, the following information:

(1) The locations and the estimated beginning and ending dates of all projects to be commenced during the next calendar year (in this section, a "next-year project").

(2) To the extent known, the tentative locations and estimated beginning and ending dates for all projects contemplated for the four (4) years following the next calendar year (in this section, a "five-year project").

The term "project" in this section shall include both next-year projects and five-year projects.

By January 1 of each year the city engineer will have available for inspection in its offices a composite list of all projects of which it has been informed in the annual plans. All registrants are responsible for keeping themselves apprised of the current status of this list.

Thereafter, by February 1, each registrant may change any project in its list of next-year projects, and must notify the city engineer and all other registrants of all such changes in said list. Notwithstanding the foregoing, a registrant may at any time join in a next-year project of another registrant that was listed by the other registrant.

Notwithstanding the foregoing, the city engineer may, for good cause shown, allow a registrant to submit additional next-year projects. Good cause includes, but is not limited to, the criteria set forth in Chapter 430 concerning the discretionary issuance of permits. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 4, 8-8-97; 2000-Or-025, § 7, 4-21-00)

429.90. - Mapping data.

Pursuant to the authority of Minnesota Rules, Part 7819.4000 and 7819.4100, each registrant and permittee shall provide mapping information as required by this chapter, when applicable to utility services.

Within six (6) months of the acquisition, installation, or construction of additional equipment or any relocation, abandonment, or disuse of existing equipment, each registrant shall supplement the mapping information required herein.

A person wishing to undertake a project within the public right-of-way shall submit a right-of-way permit application which contains the following information:

(1) Location and approximate depth of applicant's mains, cables, conduits, switches, and related equipment and facilities, with the location based on:

a. Offsets from property lines, distances from the centerline of public right-of-way, and the curb lines as determined by the city engineer.

b. Coordinates derived from the coordinate system being used by the city engineer.

c. Any other system agreed upon by the right-of-way user and the city engineer.

(2) The type and size of the utility facilities.

(3) A description showing above ground appurtenances.

(4) A legend explaining symbols, character, abbreviations, scale and other data shown on the map.

(5) Any facilities to be abandoned, if applicable, in conformance with Minn. Statute, Section 216D.04, Subd. 3.

The permittee shall submit "as built" drawings reflecting any subsequent changes and variations from the information provided under this section.

The right-of-way user is not required to provide or convey mapping information or data in a format or manner that is different from that which it currently utilizes and maintains. The right-of-way user shall, however, include the cost to convert the data furnished by the right-of-way user to a format currently in use by the city engineer as part of the permit application fee. These data conversion costs, unlike other costs that make up permit fees, may be included in the permit fee after the permit application process is completed and shall be immediately due to the city upon the ascertainment of the cost and notice of the fee to the applicant. Any permit for which such fee has not been paid within thirty (30) days of notice from the city engineer may upon written notice be revoked. The city engineer shall not issue any other permits to the registrant related to any city right-of-way until such fee is paid.

At the request of the city engineer, a right-of-way user shall provide existing data on its existing facilities within the public right-of-way in the form maintained by the user at the time the request was made, if available.

At the request of any registrant, any information requested by the city engineer which qualifies as a "trade-secret" under Minn. Statute, Section 13.37(b) shall be treated as trade secret information as detailed therein. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 5, 8-8-97; 2000-Or-025, § 8, 4-21-00; Ord. No. 2009-Or-021, § 3, 3-6-09)

429.100. - Location of facilities.

(a) *Undergrounding.* Unless otherwise permitted by an existing franchise, Section 99.860 of the Minneapolis Code of Ordinances or Minn. Statute, Section 216B.36, or unless existing above-ground facilities are used, the installation of new facilities and replacement of old facilities shall be done underground or contained within buildings or other structures in conformity with applicable codes.

The city engineer may approve the above ground location and installation of the following if they do not create any unreasonable safety, maintenance, or aesthetic concerns, or conflict with the current use of the right-of-way. In approving the above ground locations, the city engineer shall consider the size of the proposed facility in relation to the proposed site.

(1) New poles and new pole lines under six hundred (600) feet in length which do not conflict with existing or planned trees or other facilities.

(2) New ancillary facilities and appurtenances to existing facilities, such as transformers, meters, junction boxes and splice boxes.

(3) New junction boxes for existing underground utility service to individual locations and homes.

(4) New communication towers, antennae, and related new facilities and appurtenances which have already received zoning and any other necessary approvals.

(5) The repair or placement of existing above ground facilities with similar new facilities.

(6) Any other new facilities which the city engineer has determined that, due to expense, nature, or function cannot be placed underground.

(b) *Locations.* The city engineer shall assign specific locations within the right-of-way, or any particular segment thereof as may be necessary, for each type of facility that is or, pursuant to current technology, that the city engineer expects will someday be located within the right-of-way. All excavation, obstruction, or other permits issued by the city engineer involving the installation or replacement of facilities shall designate the proper corridor for the facilities.

(c) *Nuisance.* One year after the passage of this chapter, any equipment or facility found in a right-of-way that has not been registered shall be deemed to be a nuisance. The city may exercise any remedies or rights it has at law or in equity, including, but not limited to, abating the nuisance taking possession of the equipment or facilities and restoring the right-of-way to a useable condition.

(d) *Limitation of space.* The city engineer shall have the power to prohibit or limit the placement of new or additional facilities at specific locations within the right-of-way if there is insufficient space to accommodate all of the requests of registrants or persons to occupy and use the right-of-way. In making such decisions, the city engineer shall strive to the extent possible to accommodate all existing and potential users of the right-of-way, but shall be guided primarily by considerations of the public interest, the public's needs for the particular utility service, the condition of the right-of-way, the time of year with respect to essential utilities, the protection of existing facilities in the right-of-way, and future city plans for public improvements and development projects which have been determined to be in the public interest. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 6, 8-8-97; 2000-Or-025, § 9, 4-21-00; 2000-Or-061, § 1, 7-14-00)

429.110. - Relocation of existing facilities.

A right-of-way user shall promptly and at its own expense, with due regard for seasonal working conditions, permanently remove and relocate its facilities in the right-of-way when it is necessary to prevent interference, and not merely for convenience of the city, in connection with:

(1) A present or future city use of the right-of-way for a public project;

(2) The public health or safety; or

(3) The safety and convenience of travel over the right-of-way.

Notwithstanding the foregoing, a right-of-way user is not required to remove or relocate its facilities from a right-of-way that has been vacated in favor of a nongovernmental entity unless and until the reasonable costs to do so are first paid to the right-of-way user. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 7, 8-8-97; 2000-Or-025, §§ 10, 11, 4-21-00)

429.120. - Pre-excavation facility location.

In addition to complying with the requirements of Minn. Statute, Section 216D.01-.09 ("One call excavation notice system") before the start date of any right-of-way excavation, each registrant who has facilities located in the area to be excavated shall be responsible to mark the horizontal placement of all said facilities. To the extent its records contain such information, each registrant shall provide information regarding the approximate vertical location of their facilities to excavators upon request. Nothing in this subsection is meant to limit the rights, duties and obligations of the facility owners or excavators as set forth in Minn. Statute, Sections 216D.01-.09.

Any right-of-way user whose facilities are less than twenty (20) inches below a concrete or asphalt surface shall notify and work closely with the excavation contractor in an effort to establish and mark the exact horizontal and vertical location of its facility and the best procedure for excavation. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 12, 4-21-00; 2000-Or-061, § 2, 7-14-00)

429.130. - Damage to other facilities.

When the city engineer performs work in the right-of-way and finds it will be necessary to maintain, support, or relocate a person's facilities in order to protect them, the city engineer shall order such person to maintain, support or relocate their facilities and, upon failure of such person to comply with the order to maintain, support of relocate the facilities, the city engineer may assess the costs associated therewith that will be billed to that person and must be paid within thirty (30) days from the date of billing.

Each person shall be responsible for the cost of repairing any equipment or facility in the right-of-way that it or its equipment or facilities damages.

Each person shall be responsible for the cost of repairing any damage to the equipment or facilities of another registrant person caused during the city's response to an emergency occasioned by that person's equipment or facilities. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 8, 8-8-97; 2000-Or-025, § 13, 4-21-00)

429.140. - Right-of-way vacation.

If the city vacates a right-of-way which contains the facilities of a registrant, and if the vacation does not require the relocation of registrant's facilities, the city shall reserve, to and for itself and all registrants having facilities in the vacated right-of-way, the right to install, maintain and operate any equipment or facilities in the vacated right-of-way and to enter upon such right-of-way at any time for the purpose of reconstructing, inspecting, maintaining or repairing the same.

If the vacation requires the relocation of registrant facilities; and

(1) If the vacation proceedings are initiated by the right-of-way user, the right-of-way user must pay the relocation costs; or

(2) If the vacation proceedings are initiated by the city for a public project, the right-of-way-user must pay the relocation costs unless otherwise agreed to by the city and the right-of-way user.

(3) If the vacation proceedings are initiated for the purpose of benefiting a person other than the right-of-way user, the benefitted person must pay relocation costs. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 14, 4-21-00)

429.150. - Indemnification and liability.

By reason of the acceptance of a registration or the grant of a right-of-way permit, the city does not assume any liability:

(1) For injuries to persons, damage to property, or loss of service claims by parties other than the registrant or the city; or

(2) For claims or penalties of any sort resulting from the installation, presence, maintenance, or operation of equipment or facilities by registrants or activities of registrants.

By accepting a permit under Chapters 429 and 430, a registrant is required to defend, indemnify, and hold the city whole and harmless from liability or claims of liability for both bodily injury or death to persons, or for property damage, in which the claim:

(1) Alleges a negligent or otherwise wrongful act or omission of the registrant or its employee, agent or independent contractor in installing, maintaining, or repairing its equipment or facilities, and alleges that the city is liable, without alleging any independent negligent, or otherwise wrongful act omission on the part of the city; or

(2) Is based on the city's neglect or otherwise wrongful act or omission in issuing the permit or in failing to properly or adequately inspect or enforce compliance with a term, condition, or purpose of the permit granted to the registrant.

The registrant further agrees that it will not bring, nor cause to be brought, any action, suit or other proceeding claiming damages, or seeking any other relief against the city for any claim nor for any award arising out of the presence, installation, maintenance or operation of its or facilities, or any activity undertaken in a public right-of-way, whether or not the act or omission complained of is authorized, allowed or prohibited by a right-of-way permit.

The foregoing does not indemnify the city for its own negligence except for losses or claims occasioned by the negligent or otherwise wrongful act or omission of the city to the extent authorized in part (2) of this section regarding the issuance of a permit or the inspection or enforcement of compliance with the permit, or when otherwise provided in an applicable franchise agreement.

This section is not, as to third parties, a waiver of any defense or immunity otherwise available to the registrant or to the city; and the registrant, in defending any action on behalf of the city, shall be entitled to assert in any action every defense or immunity that the city could assert in its own behalf. (96-Or-126, § 1, 11-22-96; 97-Or-068, § 9, 8-8-97; 2000-Or-025, § 15, 4-21-00)

429.160. - Future uses.

In placing any equipment or facility, or allowing it to be placed, in the right-of-way, the city is not liable for any damages caused thereby to any registrant's equipment or facility that is already in place. No person is entitled to rely on the provisions of Chapter 429 or 430, and no special duty is created as to any person. Chapters 429 and 430 are enacted to protect the general health, welfare and safety of the public at large. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 16, 4-21-00)

429.170. - Discontinued operations.

A registrant who has determined to discontinue all or a portion of its operations in the city must provide information satisfactory to the city engineer that the registrant's obligations for its facilities in the right-of-way under this chapter and Chapter 430 have been lawfully assumed by another registrant or the city. (96-Or-126, § 1, 11-22-96; 2000-Or-025, § 17, 4-21-00)

429.175. - Abandoned facilities.

Any registrant who has abandoned facilities in any right-of-way shall remove it from that right-of-way if required in conjunction with other right-of-way repair, excavation, or construction, or as otherwise required by law, unless this requirement is waived by the city engineer. (2000-Or-025, § 18, 4-21-00)

429.180. - Reservation of regulatory and police powers.

The city by the granting of a right-of-way permit, or by registering a person under section 429.50, does not surrender or to any extent lose, waive, impair, or lessen the lawful powers and rights, which it has now or may be hereafter vested in the city under the Constitution and statutes of the State of Minnesota and under the Charter of the City of Minneapolis to regulate the use of the right-of-way by the permittee; and the permittee by its acceptance of a right-of-way permit or of registration under section 429.50 must agree that all lawful powers and rights, regulatory power, or police power, or otherwise as are or the same may be from time to time vested in or reserved to the city, shall be in full force and effect and subject to the exercise thereof by the city at any time. A permittee or registrant is deemed to acknowledge that its rights are subject to the regulatory and police powers of the city to adopt and enforce general ordinances necessary to the safety and welfare of the public and is deemed to agree to comply with all applicable general laws and ordinances enacted by the city pursuant to such powers.

Any conflict between the provisions of a registration or of a right-of-way permit and any other present or future lawful exercise of the city's regulatory or police powers shall be resolved in favor of the latter. (96-Or-126, § 1, 11-22-96)

429.190. - Severability.

If any section, subsection, sentence, clause, phrase, or portion of this chapter or Chapter 430 is for any reason held invalid or unconstitutional by any court or administrative agency of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions thereof. If a regulatory body or a court of competent jurisdiction should determine by a final, non-appealable order that any permit, right or registration issued under Chapters 429 and 430 or any portions of these chapters is illegal or unenforceable, then any such permit, right or registration granted or deemed to exist hereunder shall be considered as a revocable permit with a mutual right in either party to terminate without cause upon giving sixty (60) days written notice to the other. The requirements and conditions of such a revocable permit shall be the same requirements and conditions as set forth in the permit, right or registration, respectively, except for conditions relating to the term of the permit and the right of termination. If a permit, right or registration shall be considered a revocable permit as provided herein, the permittee must acknowledge the authority of the city council to issue such revocable permit and the power to revoke it. (96-Or-126, § 1, 11-22-96)

429.200. - Franchise holder exemption.

In the instance of a person holding a franchise agreement with the city, and a conflict in language occurs between the franchise and Chapters 429 and/or 430, the conflict shall be resolved by honoring the terms of the franchise.(96-Or-126, § 1, 11-22-96; 2000-Or-025, § 19, 4-21-00; 2003-Or-095, § 2, 7-11-03; Ord. No. 2024-029, § 1, 8-15-24)

CHAPTER 430. - RIGHT-OF-WAY PERMITS

430.10. - Purpose.

In order to provide for the health, safety and well-being of its populace as it uses the rights-of-way, as well as to ensure the structural integrity of its rights-of-way, the city desires to minimize the number of obstructions and excavations taking place thereon.

The purpose of this chapter is to regulate obstructions of and excavations in the rights-of-way by providing, among other things, for the issuance of permits granting authority to obstruct or excavate therein and by providing for the subsequent restoration of the rights-of-way.

The findings and purpose statement in Chapter 429 is hereby incorporated in and adopted as part of this chapter. (96-Or-127, § 1, 11-22-96)

430.20. - Definitions.

The definitions found in section 429.20 of the Minneapolis Code of Ordinances (hereinafter, "Code") apply to this chapter. (96-Or-127, § 1, 11-22-96)

430.30. - Permit requirement.

Except as otherwise provided in the Code, no person may obstruct or excavate any right-of-way without first having obtained the appropriate right-of-way permits from the city engineer to do so.

(1) *Excavation permit.* An excavation permit is required to excavate that part of the right-of-way described in such permit and to hinder free and open passage over the specified portion of the right-of-way by placing equipment or facilities described therein, to the extent and for the duration specified therein.

(2) *Obstruction permit.* An obstruction permit is required to hinder free and open passage over the specified portion of right-of-way by placing equipment described therein on the right-of-way for the duration specified therein.

(3) *Street use permit.* A street use permit is a form of obstruction permit required for placing dumpsters, as defined herein, and storage containers, as defined herein, in the public right-of-way. A street use permit for a dumpster, or for a storage container, is subject to the following additional requirements for the owners and/or operators of the dumpster or storage container as conditions of permitting the dumpster or storage container to be in the right-of-way:

a. The dumpster or storage container must be placed in front of or adjacent to the property where the street use permit is issued and the address of which is shown on the face of the permit, unless some other location is specifically designated in the permit.

b. The dumpster or storage container shall not be located (as the following terms are defined in Title 18 of this Code):

1. On a sidewalk or on a boulevard between a sidewalk and a roadway;
2. In front of a public or private driveway or alley or within five (5) feet of the end of radius or side slope of any public or private driveway or alley with any street or highway;
3. Within an intersection;
4. Within ten (10) feet of a fire hydrant;
5. On a crosswalk;
6. Within twenty (20) feet of a crosswalk at an intersection;
7. Between a safety zone and the adjacent curb or within thirty (30) feet of points on the curb immediately opposite the ends of a safety zone unless a different length is indicated by signs or markings;
8. Within a designated or marked bus stop;
9. Within fifty (50) feet of the nearest rail of a railroad crossing;
10. Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) feet of said entrance when properly signposted;
11. Alongside or opposite any street excavation or obstruction when such placement would obstruct traffic;
12. Along the curb adjacent to any school property unless the dumpster is placed for the benefit of the school and with the explicit written permission of the school;
13. Upon or under any bridge or approach or other elevated structure upon a street or highway or within a street or highway tunnel unless specifically called out and allowed by the terms of the written permit in the specific place to be used by metes and bounds description;
14. In a location that has the effect of blocking reasonable access to a fire escape or to the exit from any building;
15. At any place on any pathway, sidewalk area for pedestrians or other portion of any public property which is not intended for the use of vehicles for a public roadway;
16. At any place where marked and signed fire lanes have been established by authorization of the city council; and
17. At any place where official signs prohibit the stopping, standing or parking of vehicles, unless specially called out and allowed by terms of the written permit in the specific place to be used by metes and bounds description.

c. No person shall move a dumpster or storage container not owned by such person into any prohibited area or away from a curb to a distance that is unlawful.

d. Upon the declaration by the city of a snow emergency, the owner and/or operators of any dumpster or storage container located in a street or other right-of-way subject to the snow emergency shall remove the dumpster or storage container until the street is plowed curb to curb.

e. No person shall place or cause to be placed in the public street any dumpster or storage container, without first attaching on the front and rear of the dumpster or storage container, two (2) strips of reflective material of at least twenty-five (25) square inches each. Such reflective material shall be white in color and shall be mounted at a height of not less than twelve (12) inches nor more than twenty-four (24) inches from the top of the dumpster or storage container and shall be so designed and maintained as to be visible at night from a distance of three hundred (300) feet from the dumpster or personal storage container.

f. A "dumpster" for the purposes of this section is a container that is not a vehicle as defined in Title 18 of this Code, that is intended to receive building debris and other permissible solid waste and/or recyclable materials from nearby construction projects, building renovation projects, building service projects, or re-location projects as a part of the process of actively transferring waste or recyclable materials away from the site.

g. A "storage container" for the purposes of this section is a storage container that is contracted to be delivered to a residence and used to store personal items and then picked up by a hauler and stored at a facility until it is requested to be delivered back to a residence so that the personal items may be retrieved, or a storage container that is used for the purpose of moving personal items from or to a residence as part of a change of residence.

h. The city engineer or designee may grant an exception to these additional requirements for dumpster obstruction permits and storage container obstruction permits upon making findings that: (1) an exception is necessary to prevent substantial hardship to the applicant or a customer of the applicant, (2) an exception will not unreasonably subject the public to harm, (3) an exception is in the public interest, and (4) practical difficulties with complying with the additional requirements exist because of conditions or circumstances unique to the individual project.

i. The city engineer, the director of regulatory services, the planning director, the licensing official and the chief of police and their designees may enforce these additional requirements for street use permits and may delegate enforcement authority therefor to any city employee.

j. Permits pursuant to this section are subject to the requirements of Section 91.20 of this Code.

k. Dumpsters must be covered during all non-work hours so as to prevent the escape of any particulates.

No person may excavate or obstruct the right-of-way beyond the date or dates specified in the permit unless:

(1) Such person makes a supplementary application for another right-of-way permit before the expiration of the initial permit.

(2) A new permit or permit extension is granted.

Permits issued under this chapter shall be conspicuously displayed at all times at the indicated work site and shall be available for inspection by the city engineer or other city personnel acting in the line of duty. Street use permits shall be attached to the exterior of the dumpster or storage container. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 1, 8-8-97; 2000-Or-026, § 1, 4-21-00; 2014-Or-114, § 1, 12-5-14)

430.35. - Enforcement.

Failure to comply with provisions of this chapter may result in permit cancellation, administrative fines, restrictions or penalties as provided in Chapters 2, 429 and 430 of this Code. (2003-Or-096, § 1, 7-11-03)

430.40. - Permit applications.

Application for a permit is made to the city engineer.

Right-of-way permit applications shall contain, and will be considered complete only upon compliance with the requirements of the following provisions:

(1) Registration with the city engineer pursuant to Chapter 429.

(2) Submission of a completed permit application form, including all required attachments, and scaled drawings showing the location and area of the proposed project and the location of all existing and proposed facilities when applicable.

(3) Payment of all money due to the city for:

a. Permit fees and costs.

b. Prior obstructions or excavations.

c. Any loss, damage, or expense suffered by the city as a result of applicant's prior excavations or obstructions of the rights-of-way or any emergency actions taken by the city.

(4) The posting of construction security. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 2, 8-8-97; 2000-Or-026, § 2, 4-21-00; Ord. No. 2009-Or-022, § 1, 3-6-09)

430.50. - Issuance of permit; conditions.

If the city engineer determines that the applicant has satisfied the requirements of Chapters 429 and 430 the city engineer shall issue a permit.

The city engineer may impose reasonable conditions upon the issuance of the permit and the performance of the applicant thereunder in order to protect the public health, safety and welfare, to insure the structural integrity of the right-of-way, to protect the property and safety of other users of the right-of-way, and to minimize the disruption and inconvenience to the traveling public. (96-Or-127, § 1, 11-22-96; 2000-Or-026, § 3, 4-21-00)

430.60. - Permit fees.

(a) *Excavation permit fee.* The excavation permit fee shall be in an amount sufficient to recover the following costs, if applicable:

(1) The city management cost.

(2) The disruptive cost.

(3) The mapping data cost.

(4) The degradation cost.

(b) *Obstruction permit fee.* The obstruction permit fee shall be in an amount sufficient to recover the following costs, if applicable:

(1) The city management cost.

(2) The disruptive cost.

(3) The mapping data cost.

(c) *Payment of permit fees:* No excavation permit or obstruction permit fee shall be issued without payment of excavation or obstruction permit fees.

(d) *Non refundable:* Permit fees that were paid for a permit that the city engineer has revoked for a breach of these chapters are not refundable.

(e) *Application to franchises:* Unless otherwise agreed to in a franchise, city management costs shall be charged separately from and in addition to the franchise fees imposed on a right-of-way user.

(f) *Permit fees:* All permit fees, pursuant to Chapters 429 and 430, shall be proposed by the city engineer and established from time to time by city council resolution.

(96-Or-127, § 1, 11-22-96; 97-Or-069, § 3, 8-8-97; 2000-Or-026, § 4, 4-21-00)

430.65. - Delay penalty.

The city engineer shall impose a delay penalty for unreasonable delays in the right-of-way excavation, obstruction, patching, or restoration. The delay penalty shall be proposed by the city engineer as established from time to time by city council resolution, and shall be in accordance with Minnesota Rules, Section 7819.1000, Subd. 3, when applicable. (2000-Or-026, § 5, 4-21-00; Ord. No. 2009-Or-022, § 2, 3-6-09)

430.70. - Right-of-way patching and restoration.

The work to be done under the excavation permit, and the patching and restoration of the right-of-way as required herein, must be completed within the dates specified in the permit, increased by as many days as work could not be done because of circumstances beyond the control of permittee or when work was prohibited as unseasonable or unreasonable under this chapter. In addition to patching its own work, the permittee must restore the general area of the work, and the surrounding areas, including the paving and its foundations, to the same condition that existed before the commencement of the work. The permittee must ensure compliance with this section by inspecting the area of the work before commencement and following completion of all work performed under the permit.

In its application for an excavation permit, the permittee may indicate a preference either to have the city restore the right-of-way or to restore the right-of-way itself. The city retains the right of first refusal for all or any portion of restoration work within the right-of-way.

(1) *City restoration.* If the city restores all or any portion of the right-of-way, permittee shall pay the costs thereof within thirty (30) days of billing.

(2) *Permittee restoration.* If the city foregoes its right of first refusal under this section and the permittee restores all or any portion of the right-of-way itself permittee shall at the time of application of an excavation permit post construction security. If, following such restoration by permittee, the pavement settles due to defective work, the permittee shall pay to the city, within thirty (30) days of billing, all costs associated with correcting the defective work.

When performing any work in the right-of-way, the permittee shall act according to the standards of and shall utilize the materials specified by the city engineer. The city engineer shall have the authority to prescribe the manner and extent of the restoration, and may do so in written procedures of general application or on a case-by-case basis. The city engineer in exercising this authority shall be guided by Minnesota Rule 7819.1100 when applicable.

Methods of restoration may include, but are not limited to, patching, replacement of the right-of-way base, and milling and overlay of the entire area of the right-of-way affected by the work.

The permittee shall correct defects in patching or restoration performed by the permittee or its agents upon notification from the city engineer, and correct all restoration work to the extent necessary using the method required by the city engineer. Said work shall be completed within five (5) calendar days of the receipt of the notice from the city engineer, not including days during which work cannot be done because of circumstances constituting force majeure or days when work was prohibited as unseasonable or unreasonable pursuant to Chapter 429 and 430.

If the permittee fails to restore the right-of-way in the manner and to the condition required by the city engineer, or fails to satisfactorily and timely complete all restorations required by the city engineer, the city engineer, at his or her option, may do such work at the expense of permittee and/or the city engineer may pursue collection of any construction security required under this chapter.

In lieu of right-of-way restoration the city engineer may impose a degradation fee. However, the right-of-way user shall remain responsible for patching, and the degradation fee shall not include the cost to accomplish these responsibilities. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 4, 8-8-97; 2000-Or-026, § 6, 4-21-00; Ord. No. 2009-Or-022, § 3, 3-6-09)

430.80. - Joint applications.

Registrants are encouraged to make joint application for permits to excavate or obstruct the right-of-way at the same place and time.

Registrants who join in a scheduled obstruction or excavation performed by the city engineer, whether or not it is a joint application by two (2) or more registrants or a single application, are not required to pay the obstruction and degradation portions of the permit fee.

Registrants who apply for permits for the same obstruction or excavation, which is not performed by the city engineer, may share in the payment of the obstruction or excavation permit fee. Registrants must agree among themselves as to the portion each will pay and indicate the same on their applications. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 5, 8-8-97)

430.90. - Supplementary applications.

A right-of-way permit is valid only for the area of the right-of-way specified in the permit. No permittee may perform any work outside the area specified in the permit, except as provided herein. Any permittee who determines that an area greater than that specified in the permit must be obstructed or excavated must, before working in that greater area:

(1) Make application for a permit extension and pay any additional fees necessitated thereby.

(2) Be granted a new permit or permit extension.

A right-of-way permit is valid only for the dates specified in the permit. No permittee may begin its work before the permit start date or, except as provided herein, continue working after the end date. If a permittee does not finish the work by the permit end date, it must make application for a new permit for the additional time it needs, and receive the new permit or an extension of the old permit before working after the end date of the previous permit. This supplementary application must be approved before the permit end date. (96-Or-127, § 1, 11-22-96; 2000-Or-026, § 7, 4-21-00)

430.100. - Other obligations.

Obtaining a right-of-way permit does not relieve permittee of its duty to obtain all other necessary permits, licenses, and authority and to pay all fees required by any other city or other applicable rule, law or regulation.

A permittee shall comply with all requirements of local, state and federal laws, including Minn. Statute, Sections 216D.01-.09 ("One Call Excavation Notice System").

A permittee shall perform all work in conformance with all applicable codes and established rules and regulations, and is responsible for all work done in the right-of-way pursuant to its permit, regardless of who performs the work.

Except in the case of an emergency, and with the approval of the city engineer, no right-of-way obstruction or excavation may be performed when seasonally prohibited or when conditions are unreasonable for such work.

A permittee shall not so obstruct a right-of-way that the natural free and clear passage of water through the gutters or other waterways shall be interfered with.

Private vehicles may not be parked within or adjacent to a permit area. The loading or unloading of trucks adjacent to a permit area is prohibited unless specifically authorized by the permit. (96-Or-127, § 1, 11-22-96; 2000-Or-026, § 8, 4-21-00)

430.110. - Denial of permit.

(a) *Prescriptive denial.* Except in the case of an emergency, no right-of-way permit will be granted:

(1) To any person required to be registered who has not done so.

(2) To any person required to file an annual report but has failed to do so.

(3) For any next-year project not listed in the construction and major maintenance plan required under Chapter 429, reporting obligations, except that a permit will not be denied when the right-of-way user has used commercially reasonable efforts to anticipate and plan for the project.

(4) For any project which requires the excavation of any portion of a right-of-way which was constructed or reconstructed within the preceding five (5) years.

(5) To any person who has failed within the past three (3) years to comply, or is presently not in full compliance, with the requirements of Chapters 429 and 430.

(6) To any person who has outstanding debt owed to the city that is in arrears, due, owing, and unpaid.

(7) To any person as to whom there exists grounds for the revocation of a permit under Chapter 430.

(b) *Permissive denial.*

(1) The city engineer may deny a permit when necessary in order to:

a. Protect the public health, safety, and welfare;

b. Prevent interference with the safety and convenience of ordinary travel over the right-of-way;

c. Prevent a conflict or interfere with an exhibition, celebration, festival, or any other event; or

d. Protect the right-of-way and its users.

(2) The city engineer, at the city engineer's discretion, may consider one (1) or more of the following non-exclusive factors when making a decision under this section:

a. The extent to which right-of-way space where the permit is sought is available.

b. The competing demands for the particular space in the right-of-way.

c. The availability of other locations in the right-of-way or in other rights-of-way for the equipment facilities of the permit applicant.

d. The applicability of ordinance or other regulations of the right-of-way that affect location of facilities in the right-of-way.

e. The degree of compliance of the applicant with the terms and conditions of its franchise, Chapters 429 and 430, engineering standards and other applicable ordinances and regulations.

f. The degree of disruption to surrounding communities and businesses that will result from the use of that part of the right-of-way.

g. The condition and age of the right-of-way, and whether and when it is scheduled for total or partial reconstruction.

h. The balancing of the costs of disruption to the public and damage to the right-of-way, against the benefits to that part of the public served by the expansion into additional parts of the right-of-way.

(c) *Discretionary issuance.*

Notwithstanding the provisions of sections 430.110(a) and 430.110(b), the city engineer may issue a permit in any case where the permit is necessary to:

(1) Prevent substantial economic hardship to a customer of the permit applicant; or

(2) Allow such customer to materially improve its utility service; or

(3) Allow a new economic development project and where the permit applicant did not have knowledge of the hardship, the plans for improvement of service, or the development project when it was required to submit its list of next year projects.

(d) *Permits for additional next-year projects.* Notwithstanding the provisions this chapter, the city engineer may issue a permit to a registrant who was allowed under Chapter 429 to submit an additional next-year project, such permit shall be subject to all other conditions and requirements of law, including such conditions as may be imposed under Chapter 430.

(96-Or-127, § 1, 11-22-96; 97-Or-069, § 6, 8-8-97; 2000-Or-026, § 9, 4-21-00; Ord. No. 2023-003, § 1, 1-26-23)

430.115. - Appeal.

A right-of-way user that:

(1) has been denied registration;

(2) has been denied a permit;

(3) has had a permit revoked; or

(4) believes that the fees imposed are invalid,

may have the denial, revocation, or fee imposition reviewed, upon written request, by the city council. The written request must be delivered to the director of public works within ten (10) days of the notification of denial, revocation, or the imposition of fees. A decision by the city council affirming the denial, revocation, or fee imposition will be in writing and supported by written findings establishing the reasonableness for the decision. (2000-Or-026, § 10, 4-21-00; Ord. No. 2023-003, § 1, 1-26-23)

430.120. - Installation requirements.

The excavation, backfilling, patching restoration, and all other work performed in the right-of-way shall be done in conformance with specifications as promulgated by the city engineer, Minnesota Rules 7819.1100 and 7819.5000 when applicable, and at a location required by this Code. (96-Or-127, § 1, 11-22-96; 2000-Or-026, § 11, 4-21-00; Ord. No. 2009-Or-022, § 4, 3-6-09)

430.130. - Inspection.

When the work under any permit hereunder is completed, the permittee shall submit a completion certificate to the city engineer at the time the project is completed, including any and all testing results and supporting documents generated to meet the requirements of restoration established by the city engineer. The completion statement, signed by a person designated by the right-of-way user as a responsible employee, shall show the completion date for the work performed, identify the installer and designer of record, and certify that the work was completed according to the requirements of the city engineer.

Permittee shall make the work site available to the city engineer and to all others as authorized by law for inspection at all reasonable times during the execution and upon completion of the work.

At the time of inspection, the city engineer may order the immediate cessation of any work which poses a serious threat to the life, health, safety or well-being of the public.

The city engineer may issue an order to the permittee for any work that does not conform to the applicable standards, conditions or codes. The order shall state that failure to correct the violation will be cause for revocation of the permit. Within ten (10) days after issuance of the order, the permittee shall present proof to the city engineer that the violation has been corrected. If such proof has not been presented within the required time, the city engineer may revoke the permit. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 7, 8-8-97; 2000-Or-026, § 12, 4-21-00; Ord. No. 2009-Or-022, § 5, 3-6-09)

430.140. - Work done without a permit.

(a) *Emergency situations.* Each registrant shall immediately notify the city engineer or the city engineer's designee of any event regarding its facilities which it considers to be an emergency. The registrant may proceed to take whatever actions are necessary in order to respond to the emergency. Within two (2) business days after the occurrence of the emergency, the registrant shall apply for the necessary permits, pay the fees associated therewith and fulfill the rest of the requirements necessary to bring itself into compliance with Chapters 429 and 430 for the actions it took in response to the emergency.

In the event that the city engineer becomes aware of an emergency regarding a registrant's equipment or facilities, the city engineer may attempt to contact the local representative of each registrant affected, or potentially affected, by the emergency. In any event, the city engineer may take whatever action it deems necessary in order to respond to the emergency, the cost of which shall be borne by the registrant whose equipment or facilities occasioned the emergency.

(b) *Non-emergency situations.* Except in the case of an emergency, any person who obstructs or excavates a right-of-way without a permit must subsequently obtain a permit, pay double the normal fee for said permit, pay double all the other fees required by the Code, deposit with the city engineer the fees necessary to correct any damage to the right-of-way and comply with all of the requirements of Chapters 429 and 430. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 8, 8-8-97; 2000-Or-026, § 13, 4-21-00)

430.150. - Supplementary notification.

If the obstruction or excavation of the right-of-way begins later or ends sooner than the date given on the permit, permittee shall notify the city engineer of the accurate information as soon as this information is known.

If the obstruction of a right-of-way is of a shorter duration than that estimated on the permit application, the city engineer will, upon request, refund or credit to the permittee a proportionate amount of the permit fee. (96-Or-127, § 1, 11-22-96; 97-Or-069, § 9, 8-8-97)

430.160. - Revocation of permits.

Registrants hold permits issued pursuant to the Code as a privilege and not as a right. The city reserves its right, as provided herein, to revoke any right-of-way permit, without fee refund, in the event of a substantial breach of the terms and conditions of any statute, ordinance, rule or regulation, or any condition of the permit. A substantial breach by permittee shall include, but shall not be limited to, the following:

(1) The violation of any material provision of the right-of-way permit;

(2) An evasion or attempt to evade any material provision of the right-of-way permit, or the perpetration or attempt to perpetrate any fraud or deceit upon the city or its citizens;

(3) Any material misrepresentation of fact in the application for a right-of-way permit;

(4) The failure to maintain the required construction security and/or insurance;

(5) The failure to complete the work in a timely manner; or

(6) The failure to correct a condition indicated on an order issued pursuant to this chapter.

If the city engineer determines that the permittee has committed a substantial breach of a term or condition of any statute, ordinance, rule, regulation or any condition of the permit the city engineer shall make a written demand upon the permittee to remedy such violation. The demand shall state that continued violations may be cause for revocation of the permit. Further, a substantial breach, as stated above, will allow the city engineer, at the city engineer's discretion, to place additional or revised conditions on the permit.

Within twenty-four (24) hours of receiving notification of the breach, permittee shall contact the city engineer with a plan, acceptable to the city engineer, for its correction. Permittee's failure to so contact the city engineer, or the permittee's failure to submit an acceptable plan, or permittee's failure to reasonably implement the approved plan, shall be cause for immediate revocation of the permit. Further, permittee's failure to so contact the city engineer, or the permittee's failure to submit an acceptable plan, or permittee's failure to implement the approved plan, shall automatically place the permittee on probation for one (1) full year.

From time to time, the city engineer may establish a list of conditions of the permit, if breached will automatically place the permittee on probation for one (1) full year, such as, but not limited to, working out of the allotted time period or working on right-of-way grossly outside of the permit.

If a permittee, while on probation, commits a breach as outlined above, permittee's permit will automatically be revoked and permittee will not be allowed further permits for one (1) full year, except for emergency repairs.

If a permit is revoked, the permittee shall also reimburse the city for the city's reasonable costs, including restoration costs and the costs of collection and reasonable attorneys' fees incurred in connection with such revocation.

(96-Or-127, § 1, 11-22-96; 2000-Or-026, § 14, 4-21-00; Ord. No. 2009-Or-022, § 6, 3-6-09)

430.170. - Non-exclusive remedy.

The remedies provided in this chapter and in Chapter 429 and other chapters in the Code are not exclusive or in lieu of other rights and remedies that the city may have at law or in equity. The city is hereby authorized to seek legal and equitable relief for actual or threatened injury to the public rights of way, including damages to the rights of way, whether or not caused by a violation of any of the provisions of this chapter or other provisions of the Code. (96-Or-127, § 1, 11-22-96)

430.175. - Liability for obstruction and excavation of streets.

All persons who shall, by means of any excavations in or obstructions upon any street of said city, not authorized by law or the ordinances of said city, render such street unsafe for travel, or who shall by negligence in the management of any such excavation or obstructions as shall be authorized, or by failure to maintain proper guards or lights thereat, render such street insufficient or unsafe for travel, shall be liable for all damages not caused by the negligence of the party injured, to whomsoever resulting, by reason of such obstruction or negligence, and no action shall be maintained against said city for such damages unless such person or persons shall be joined as party defendants; and in case of judgment against the defendants in such action execution shall at first issue only against the defendant causing such insufficiency, and the city shall not be required to take steps to pay such judgment until such execution shall be returned unsatisfied, and if the city shall pay such judgment it shall become the owner of the same and may enforce payment of the same from the other defendant and shall be entitled to execution therein against the other defendant, and to take such other proceedings as judgment creditors are entitled to take. (2014-Or-107, § 1, 12-5-14, eff. 1-2-15)

CHAPTER 431. - STREET LIGHTING

Footnotes:

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Editor's note— *Ord. No. 2009-Or-062, § 1, adopted August 14, 2009, repealed Ch. 431, in its entirety, which pertained to street lighting. Ord. No. 2009-Or-063, § 1, adopted August 14, 2009, enacted provisions designated as a new Ch. 431 to read as herein set out. See also the Code Comparative Table.*

Cross reference— *Exterior electrical regulations and installations, Ch. 99*

ARTICLE I. - GENERALLY

431.10. - Definitions.

As used in this chapter:

Parcel is a portion of land recorded as the property of one (1) or more persons, claimants, or companies according to the records of the Hennepin County Taxpayer Services Department.

Standard street lighting is the city-wide street lighting parameters as determined and established by the city engineer.

Street lighting is a system of lighting, servicing streets and sidewalks that is facilitated by the city and located within its geographic boundaries.

Street lighting district is an area containing one (1) or more streets or part of a street upon which there is or shall be constructed, installed, maintained and operated a uniform system of street lighting poles, equipment and facilities by which lighting in excess of standard street lighting is provided, the city's costs for which shall be paid by the benefited property owners. (2009-Or-063, § 1, 8-14-09)

431.20. - Findings and determinations.

The city finds it to be in the interest of all citizens that the city establish, construct, operate and maintain a city-wide street lighting system. It is further found that the establishment, construction, operation and maintenance of street lighting promotes the general health, safety and well-being of the citizenry and provides a benefit to each and every parcel within the city. The city has determined that the cost of street lighting operation and maintenance may be offset by use of the city's general tax funds and by imposing a street lighting fee upon benefited parcels that are otherwise exempt from ad valorem taxation. (2009-Or-063, § 1, 8-14-09)

431.30. - Street lighting charge.

(a) *Street lighting fee established.* Subject to the provisions of this chapter, a street lighting fee may be imposed upon parcels within the city that are exempt from ad valorem taxation. This street lighting fee shall be determined and set by the city council and may be amended from time to time by the city council.

(b) *Street lighting fee application.* The street lighting fee shall be applied on an equitable basis and shall not be in excess of the benefit received by each, separate parcel that is subject to the fee. (2009-Or-063, § 1, 8-14-09)

431.40. - Collection and appeal procedure.

(a) *Procedures.* The city council shall adopt an assessment roll levying a special assessment upon each benefited parcel that is subject to the fee, which shall be transmitted to the county auditor and included with the tax levy upon such parcels and collected in the same manner as special assessments under Chapter 10, Section 8 of the Charter of the City of Minneapolis.

(b) *Duration of assessment.* The street lighting fee shall be established as a stated amount as provided in section 431.30(a) and may continue on a reoccurring, annual basis for a period of time not to exceed 20 years. (2009-Or-063, § 1, 8-14-09)

ARTICLE II. - STREET LIGHTING DISTRICTS

431.50. - Street lighting districts.

Notwithstanding the provisions of sections 431.30 and 431.40, all parcels affected by section 431.60 shall be treated in the manner set out in this article. (2009-Or-063, § 1, 8-14-09)

431.60. - Procedure for establishing street lighting districts.

The city engineer shall determine and designate the location, extent and character of each street lighting district, or the expansion thereof, or other changes therein. Thereupon, the city engineer shall make and present to the city council a report containing a list and description of the several parcels of land within the district, together with the number of square feet of each parcel benefiting from the street lighting improvement and the names of the owners of the several parcels as nearly as the city engineer can readily ascertain the same. A report shall be made and published in the record of the proceedings of the city council. In addition to the publication of this report, the city clerk shall give written notice by mail to the listed owner of each of the parcels in the street lighting district of a hearing before the city council committee to be held not earlier than two (2) weeks after the mailing of the notice. Any interested party may appear at the hearing and give evidence and enter any objection to the delineation or establishment of any such street lighting district. (2009-Or-063, § 1, 8-14-09)

431.70. - Assessments against benefited property.

After a street lighting district has been established, the city council may levy and assess against benefited property in the district all or part of the city's construction, operating and/or maintenance costs as applicable. That part of the assessment which is for operation and maintenance may include the amount in excess of the cost of standard street lighting. Such assessment shall be made in the same manner as assessments under Chapter 10, Section 8 of the Charter of the City of Minneapolis and may continue on a reoccurring, annual basis for a period of time not to exceed 20 years. (2009-Or-063, § 1, 8-14-09)

431.80. - Severability.

In the event that any portion or section of this chapter is determined to be invalid, illegal or unconstitutional by a court of competent jurisdiction, the decision shall in no manner affect the remaining portions or sections of this chapter, which shall remain in full force and effect. (2009-Or-063, § 1, 8-14-09)

CHAPTER 432. - 54TH & LYNDALE SPECIAL SERVICE DISTRICT

432.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, sections 428A.01 through 428A.10, there is hereby established a 54th & Lyndale Special Service District (otherwise referred to herein as the "district").

(1) *District boundaries.* The district shall consist of the following area:

Commencing at the intersection of the centerlines of Garfield Avenue South and 56th Street West, thence west along said centerline to the centerline of Aldrich Avenue South; thence north along said centerline to the centerline of 53rd Street West; thence east along said centerline to the southerly extension of a line 24 feet east of the west line of Lot 5, Block 1, BADGER AND DEAN'S ADDITION TO MINNEAPOLIS; thence north along said line to a point on the south line of Lot 20, said Addition; thence east along said south line and its easterly extension to a line 7 feet east of the west lines of Lots 1 and 2 said Addition; thence north along said line and its northerly extension to the centerline of West Minnehaha Parkway; thence easterly along said centerline to a point on the northerly extension of a line 50 feet east of the west line of Lot 22, AUDITOR'S SUBDIVISION NO. 148; thence south along said line to the south line of said Lot 22; thence east 10 feet along said south line to a line 60 feet east of the west line of Lot 23, AUDITOR'S SUBDIVISION NO. 148; thence south along said line to a point on the north line of 53rd Avenue South; thence south across 53rd Avenue, and continuing along the centerline of Garfield Avenue South to the centerline of 54th Street West; thence west along said centerline to a point on the northerly extension of the west line of Lot 88, AUDITOR'S SUBDIVISION NO. 149; thence south along said west line to the southwest corner of said Lot 88; thence east along the south lines of Lots 88 and 87 to the centerline of Garfield Avenue South; thence south along said centerline to the point of commencement and there terminating.

(2) *Public hearing.* Before the district may be established, a public hearing shall be held pursuant to Minn. Statute, section 428A.02, Subd. 1, as may be amended.

(3) *Benefit; objection.* Before the ordinance is adopted or at the hearing at which it is to be adopted, any affected landowner may file written objection pursuant to Minn. Statute, section 428A.02, Subd. 4, as may be amended.

(4) *Appeal to district court.* Any person aggrieved under this section, who is not precluded by failure to object before or at the hearing, or whose failure to object is due to a reasonable cause, may appeal to the district court by serving a notice upon the mayor or city clerk pursuant to Minn. Statute, section 428A.02, Subd. 5, as may be amended. (2014-Or-019, § 1, 5-9-14)

432.20. - Special services.

Pursuant to Minn. Statute, section 428A.01, Subd. 3, as may be amended, special services to be furnished within the district may include:

(1) Clean and safe programs, including, but not limited to, sweeping, litter pick up, trash removal, sidewalk cleaning, graffiti abatement, snipe and poster bill removal, snow services, security services, closed circuit television (CCTV) systems and monitoring, etc.

(2) Marketing/promotion/special events, including, but not limited to, event programming, websites, newsletters, etc., district area business recruitment and retention programs, coordination of street markets and street vendors within the district, etc.

(3) Physical enhancements, including, but not limited to, hanging baskets, landscape planters, trash receptacles, etc.

(4) Maintenance of enhanced streetscape components above city standard, including, but not limited to fixtures, sidewalks, electrical and irrigation systems, landscaping, fountains, etc.

(5) Management and oversight services and administrative services, including usual and customary start-up and on-going administrative costs.

(6) Special services described in the annual operating plan adopted by the city council, in accordance with Section 432.30. (2014-Or-019, § 1, 5-9-14)

432.30. - Annual operating plan.

Each year, prior to imposition of any service charge, the city council shall adopt by resolution an operating plan that describes with particularity the special services proposed to be performed during the following calendar year. Any physical enhancements to be installed by the district shall be maintained by the district, and to the extent they are not maintained, the city shall have the right to remove them. The district shall not be obligated to maintain any physical enhancements installed by parties other than the district unless and until said maintenance is included in the adopted operating plan. Each annual operating plan, and any amendments that may be made from time to time by subsequent resolution, is hereby incorporated into this ordinance. Special services may not include a service that is ordinarily provided throughout the city from general fund revenues of the city unless an increased level of the service is provided in the district. (2014-Or-019, § 1, 5-9-14)

432.40. - Provision of services.

Special services to be furnished within the district may be provided using one or more of the following:

(1) The city may perform the services.

(2) The city may contract for services.

(3) The city may enter into a service agreement with a district management entity or a service provider. Notwithstanding any other ordinance provision, the service agreement provided for in this subsection is hereby exempt from the requirements of the following provisions of the Minneapolis Code of Ordinances: section 18.200 (equal benefits provisions in contracts); section 24.220 (prevailing wage); section 139.50 (non-discrimination and affirmative action provisions in contracts); and Chapter 423 (small and underutilized business enterprise program). Provided, however, that the service agreement shall contain provisions that requiring the district management entity or service provider to do the following:

a. The district management entity or service provider shall, when seeking competitive bids for special services in the district, issue bid solicitations to vendors including those on a list of small and underutilized businesses provided annually by the city.

b. The district management entity or service provider shall maintain a Modified Affirmative Action Plan that meets the requirements of Title VII of the Civil Rights Act of 1964 or Minneapolis Code of Ordinance section 139.50.

c. The district management entity or service provider shall extend any benefits offered to its employees based on marital status to employees with domestic partners registered as such pursuant to Minneapolis Code of Ordinances section 18.200.

d. The district management entity or service provider shall agree that any construction work that requires funding from more than one year's assessment cycle shall be subject to the prevailing wage provisions of section 24.220. Further, the district management entity or service provider shall not sell bonds to obtain a larger funding source.

e. The district management entity or service provider shall submit to the city finance officer as soon as practical after each calendar year end but prior to adoption of the next year's budget, an annual report of services activity and an independent audit of financial activity for each calendar year in which services are performed in the district. (2014-Or-019, § 1, 5-9-14)

432.50. - Service charges.

The city may impose service charges within the district at a rate or amount sufficient to produce the revenues required to provide special services in the district pursuant to Minn. Statute, sections 428A.03, as may be amended. Service charges may be collected in advance of, contemporaneously with, or subsequent to the rendering of services to which the service charges relate.

(1) *Public hearing.* Before the imposition of service charges in the district, for each calendar year, a hearing must be held pursuant to Minn. Statute, section 428A.03, Subd. 1, as may be amended.

(2) *Relationship to services.* The City may impose service charges against properties located within the district pursuant to Minn. Statute, section 428A.02, Subd. 3, as may be amended.

(3) *Exemptions of certain properties from service charges.* Certain properties shall be exempt from service charges pursuant to Minn. Statute, section 428A.03, Subd. 2, as may be amended.

(4) *Limitation.* Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase.

(5) *Adjustments for errors and omissions.* The city council may, by resolution, decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular.

(6) *Collection.* Service charges authorized under this chapter shall be levied annually in an aggregate sum equal to the estimated cost of providing the services for the next ensuing calendar year. (2014-Or-019, § 1, 5-9-14)

432.60. - Revenue surpluses; deficits; annual operating plan amendments.

Any annual revenue surplus or deficit shall be addressed in accordance with one of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action, no later than May 1st of such subsequent year, to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action, no later than May 1st of the subsequent year, to recoup the excess costs. (2014-Or-019, § 1, 5-9-14)

432.70. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for a resolution imposing any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, sections 428A.01 through 428A.10, as may be amended. (2014-Or-019, § 1, 5-9-14)

432.80. - Veto power of owners.

The veto power of owners under this chapter and for a resolution imposing any service charges, fees, or rates, shall be in compliance with Minn. Statute, section 428A.09, and section 428A.10, as may be amended. (2014-Or-019, § 1, 5-9-14)

432.90. - Advisory board.

The city may create and appoint an advisory board for the district to advise the city in connection with the construction, maintenance, and operation of improvements, and the furnishing of special services in a district. The advisory board shall make recommendations to the governing body on the requests and complaints of owners, occupants, and users of property within the district and members of the public. Before the adoption of any proposal by the governing body to provide services or impose service charges within the district, the advisory board of the district shall have an opportunity to review and comment upon the proposal. (2014-Or-019, § 1, 5-9-14)

432.100. - Definitions of construction.

The terms used herein shall be defined as provided in Minn. Statute, sections 428A.01 through 428A.10 and said statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2014-Or-019, § 1, 5-9-14)

432.110. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the Commissioner of Revenue. (2014-Or-019, § 1, 5-9-14)

CHAPTER 433. - VACATING

> ***Footnotes:***
> --- ***(5)*** ---
> ***Charter reference—*** *Authority of council to vacate streets, Ch. 8, § 3; authority of park and recreation board to vacate streets passing through lands appropriated for park purposes, Ch. 16, § 8.*

433.10. - Referral to planning commission.

Before taking final action, the city council shall refer to the city planning commission for investigation and report any matter involving vacation of any street or alley or any part thereof, in the city. The director of public works shall furnish the commission with information regarding the changes that will result from the proposed vacation. (Code 1960, As Amend., § 573.010; Ord. No. 2017-066, § 3, 11-3-17)

433.20. - Report by commission.

The commission shall make an investigation, and within thirty (30) days after said reference shall make a report and recommendation to the city council on the proposed vacation. Said investigation and report shall cover the effect of said proposed vacation upon the access by abutting and adjacent property owners to their property. (Code 1960, As Amend., § 573.020)

433.30. - Public hearing.

If the city council, when referring a proposed vacation of street or alley, requests that the planning commission hold a public hearing on such proposal, or if the planning commission deems that a public hearing should be held then the time of making a report and recommendation by the planning commission may extend beyond thirty (30) days. (Code 1960, As Amend., § 573.030)

433.40. - Application to vacate street or alley required.

Any person, persons, firm or corporation desiring the vacation of any public street or alley or portion thereof shall file with the city clerk an application therefor, which said application shall specifically designate the public street or alley or portion thereof desired to be vacated, and shall submit with such application a map or plat specifically delineating the street, alley or portion thereof sought to be vacated. (Code 1960, As Amend., § 573.040)

433.50. - Application fee.

With the filing of such application the applicant shall pay to the city the sum of three hundred dollars ($300.00) for each street or alley or portion of such street or alley designated in the application to defray the cost of the city in investigating, reporting, acting on the application, and the publication thereof. No application or petition for the vacation of any street or alley or portion thereof shall be received until full payment of the fees required herein has been made and evidenced by receipt of the city comptroller-treasurer [finance officer]. (Code 1960, As Amend., §§ 573.050, 573.060; 80-Or-282, § 1, 11-26-80)

CHAPTER 434. - WEST BROADWAY IMPROVEMENT SPECIAL SERVICE DISTRICT

434.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, sections 428A.01 through 428A.10, there is hereby established a West Broadway Improvement Special Service District (otherwise referred to herein as the "district").

(1) *District boundaries.* The district shall consist of the following area:

Commencing at intersection of the centerlines of West River Road North and 22nd Avenue North; thence Southerly along the centerline of West River Road North to the easterly extension of the south line of Lot 1, Block 1, NORTH WASHINGTON INDUSTRIAL CENTER 2ND ADDITION; thence westerly along said south line and its westerly extension to the centerline of 1st Street North; thence southerly along said centerline to the easterly extension of the south line of Lot 3, Block 34, BASSETT, MOORE AND CASE'S ADDITION TO THE TOWN OF MINNEAPOLIS; thence westerly along said south line to a point 5 feet west of the southwest corner of said Lot 3; thence southwesterly along LINE "A" to a point on the west line of Lot 8 distant 34.70 feet north of the southwest corner thereof; thence south along the west line of Lot 8 to the southwest corner thereof; then westerly on the west extension of Lot 8 to the centerline of 2nd Street North; thence south along said centerline to the centerline of 17th Avenue North; thence west along said centerline to the centerline of Washington Avenue North; thence north along said centerline to the centerline of 18th Avenue North; thence west along said centerline including vacated segments and parts taken for highway purposes to the centerline of Girard Avenue North; thence north along said centerline to the centerline of Golden Valley Road; thence west along said centerline to the centerline of Newton Avenue North; thence north along said centerline to the centerline of 21st Avenue North; thence northwesterly along said centerline to the centerline of Oliver Avenue North; thence north along said centerline to the centerline of 23rd Avenue North; thence northwest along said centerline to the centerline of Penn Avenue North; thence north along said centerline to the easterly extension of the south line of Lot 1, Block 1, WYANT & KIICHLI'S ADDITION TO MINNEAPOLIS to the west corner of said Lot 1; thence northerly across Mcnair Avenue to the centerline of the vacated alley in HERMANN'S FIRST ADDITION TO MINNEAPOLIS; thence northwesterly a distance of approximately 132 feet to the intersection with the centerline of the southwesterly leg of said vacated alley; thence northeasterly along said centerline to the southwest line of Lot 7, HERMANN'S FIRST ADDITION TO MINNEAPOLIS; thence northwesterly along said lot line to the northwest corner of said Lot 7; thence northwesterly across 24th Avenue North to the centerline of the dedicated alley in AUDITOR'S SUBDIVISION NO. 150; thence northwest along said centerline to the east line of the SUBDIVISION OF LOTS IN FERRANTS 1ST ADDITION TO MINNEAPOLIS; thence north along said east line to the northeast corner of Lot 1, said Subdivision; thence east along the north line of said Lot 1 and its extension to the centerline of Sheridan Avenue North; then north along said centerline to the westerly extension of the south line of Block 5, NICHOLS-FRISSELL CO.'S PENN-LAWN ADDITION TO MINNEAPOLIS; thence east along said south line, continuing across Russell Avenue North, along the south line of Block 6, said addition and its extension to the centerline of Queen Avenue North; thence south along said centerline to the westerly extension of the centerline of the vacated alley in Block 1, WENZ ADDITION TO MINNEAPOLIS; thence easterly and southeasterly along said centerline, across Penn Avenue North, thence southwesterly along the centerline of the alley and its southeasterly extension in Block 20, FOREST HEIGHTS, to the centerline of Logan Avenue North; thence southerly along said centerline to the northwesterly extension of the alley in Block 19, FOREST HEIGHTS; thence easterly to the intersection with the centerline with the north/south alley in said Block 19; thence southerly and southeasterly along said alley centerline to its intersection with the southwest right of way line of James Avenue North; thence northeasterly across James Avenue North to a point where the southwest line of Lot 45, Block 17, FOREST HEIGHTS, intersects with a line described as 1 foot north of the southeast line of Lot 45, Block 17, FOREST HEIGHTS; thence northeast long said line and its extension to the centerline of the alley in said Block 17; thence easterly along said centerline and its extension to the centerline of Irving Avenue North; thence north along said centerline to the centerline of 21st Avenue North; thence east along said centerline to the centerline of Girard Avenue North; thence north along said centerline to the centerline of 22nd Avenue North; thence east along said centerline to the centerline of Fremont Avenue North; thence south along said centerline to the centerline of 21st Avenue North; thence east along said centerline to the centerline of 2nd Street North; thence north along said centerline to the centerline of 22nd Avenue North; thence east along said centerline to the point of commencement and there terminating.

DESCRIPTION OF LINE "A"

A line across Lots 7 and 8, Block 34, BASSETT, MOORE AND CASE'S ADDITION TO THE TOWN OF MINNEAPOLIS, described as commencing at the southwest corner of said Lot 8, thence north along the west line thereof a distance 34.70 feet to the point of beginning of Line "A"; thence deflecting right 66 degrees, 19 minutes, 00 seconds, a distance of 139.70 feet; thence northeasterly to a point on the south line of said Lot 8, Block 34, 5 feet west of the northeast corner of said Lot 7.

(2) *Public hearing.* Before the district may be established, a public hearing shall be held pursuant to Minn. Statute, section 428A.02, Subd. 1, as may be amended.

(3) *Benefit; objection.* Before the ordinance is adopted or at the hearing at which it is to be adopted, any affected landowner may file written objection pursuant to Minn. Statute, section 428A.02, Subd. 4, as may be amended.

(4) *Appeal to district court.* Any person aggrieved under this section, who is not precluded by failure to object before or at the hearing, or whose failure to object is due to a reasonable cause, may appeal to the district court by serving a notice upon the mayor or city clerk pursuant to Minn. Statute, section 428A.02, Subd. 5, as may be amended. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.20. - Special services.

Pursuant to Minn. Statute, section 428A.01, Subd. 3, as may be amended, special services to be furnished within the district may include:

(1) Clean and safe programs including, but not limited to, sweeping, litter pick up, trash removal, sidewalk cleaning, graffiti abatement, snipe and poster bill removal, snow services, security services, closed circuit television (CCTV) systems and monitoring, etc.;

(2) Marketing/promotion/special events, including, but not limited to, event programming, websites, newsletters, etc., district area business recruitment and retention programs, coordination of street markets and street vendors within the district, etc.;

(3) Physical enhancements, including, but not limited to, hanging baskets, landscape planters, trash receptacles, etc.;

(4) Maintenance of enhanced streetscape components above city standard, including, but not limited to, fixtures, sidewalks, electrical and irrigation systems, landscaping, fountains, etc.; and

(5) Management and oversight services and administrative services, including usual and customary start-up and on-going administrative costs.

(6) Special services described in the annual operating plan adopted by the city council, in accordance with section 434.30. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.30. - Annual operating plan.

Each year, prior to imposition of any service charge, the city council shall adopt by resolution an operating plan that describes with particularity the special services proposed to be performed during the following calendar year. Any physical enhancements to be installed by the district shall be maintained by the district, and to the extent they are not maintained, the city shall have the right to remove them. The district shall not be obligated to maintain any physical enhancements installed by parties other than the district unless and until said maintenance is included in the adopted operating plan. Each annual operating plan, and any amendments that may be made from time to time by subsequent resolution, is hereby incorporated into this ordinance. Special services may not include a service that is ordinarily provided throughout the city from general fund revenues of the city unless an increased level of the service is provided in the district. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.40. - Provision of services.

Special services to be furnished within the district may be provided using one (1) or more of the following:

(1) The city may perform the services.

(2) The city may contract for services.

(3) The city may enter into a service agreement with a district management entity or a service provider. Notwithstanding any other ordinance provision, the service agreement provided for in this subsection is hereby exempt from the requirements of the following provisions of the Minneapolis Code of Ordinances: section 18.200 (equal benefits provisions in contracts); section 24.220 (prevailing wage); section 139.50 (non-discrimination and affirmative action provisions in contracts); and Chapter 423 (small and underutilized business enterprise program). Provided, however, that the service agreement shall contain provisions requiring the district management entity or service provider to do the following:

a. The district management entity or service provider shall, when seeking competitive bids for special services in the district, issue bid solicitations to vendors including those on a list of small and underutilized businesses provided annually by the city.

b. The district management entity or service provider shall maintain a Modified Affirmative Action Plan that meets the requirements of Title VII of the Civil Rights Act of 1964 or Minneapolis Code of Ordinances section 139.50.

c. The district management entity or service provider shall extend any benefits offered to its employees based on marital status to employees with domestic partners registered as such pursuant to Minneapolis Code of Ordinances section 18.200.

d. The district management entity or service provider shall agree that any construction work that requires funding from more than one (1) year's assessment cycle shall be subject to the prevailing wage provisions of section 24.220. Further, the district management entity or service provider shall not sell bonds to obtain a larger funding source.

e. The district management entity or service provider shall submit to the city finance officer as soon as practical after each calendar year end but prior to adoption of the next year's budget, an annual report of services activity and an independent audit of financial activity for each calendar year in which services are performed in the district. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.50. - Service charges.

The city may impose service charges within the district at a rate or amount sufficient to produce the revenues required to provide special services in the district pursuant to Minn. Statute, sections 428A.03, as may be amended. Service charges may be collected in advance of, contemporaneously with, or subsequent to the rendering of services to which the service charges relate.

(1) *Public hearing.* Before the imposition of service charges in the district, for each calendar year, a hearing must be held pursuant to Minn. Statute, section 428A.03, Subd. 1, as may be amended.

(2) *Relationship to services.* The city may impose service charges against properties located within the district pursuant to Minn. Statute, section 428A.02, Subd. 3, as may be amended.

(3) *Exemptions of certain properties from service charges.* Certain properties shall be exempt from service charges pursuant to Minn. Statute, section 428A.03, Subd. 2, as may be amended.

(4) *Limitation.* Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and then only in an amount sufficient to pay for the increase.

(5) *Adjustments for errors and omissions.* The city council may, by resolution, decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular.

(6) *Collection.* Service charges authorized under this chapter shall be levied annually in an aggregate sum equal to the estimated cost of providing the services for the next ensuing calendar year. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.60. - Revenue surpluses; deficits; annual operating plan amendments.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2)

If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action, no later than May 1st of such subsequent year, to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action, no later than May 1st of the subsequent year, to recoup the excess costs. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.70. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for a resolution imposing any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, sections 428A.01 through 428A.10, as may be amended. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.80. - Veto power of owners.

The veto power of owners under this chapter and for a resolution imposing any service charges, fees, or rates, shall be in compliance with Minn. Statute, section 428A.09, and section 428A.10, as may be amended. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.90. - Advisory board.

The city may create and appoint an advisory board for the district to advise the city in connection with the construction, maintenance, and operation of improvements, and the furnishing of special services in a district. The advisory board shall make recommendations to the governing body on the requests and complaints of owners, occupants, and users of property within the district and members of the public. Before the adoption of any proposal by the governing body to provide services or impose service charges within the district, the advisory board of the district shall have an opportunity to review and comment upon the proposal. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.100. - Definitions of construction.

The terms used herein shall be defined as provided in Minn. Statute, sections 428A.01 through 428A.10 and said statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.110. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2014-Or-020, § 1, 5-9-14; Ord. No. 2019-026, § 1, 6-21-19)

434.120 - Reserved.

Editor's note— Ord. No. 2025-031, § 1, adopted July 24, 2025, repealed § 434.120, which pertained to district sunset, renewal and derived from 2014-Or-020, § 1, adopted May 9, 2014; Ord. No. 2019-026, § 1, adopted June 21, 2019; Ord. No. 2024-030, § 1, adopted September 5, 2024.

CHAPTER 435. - PARCEL AND STRUCTURE NUMBERING

Footnotes:
*--- **(6)** ---*
***Editor's note—** Ord. No. 2004-Or-062, § 1, adopted May 28, 2004, amended the title of Ch. 435 from "building numbering" to "parcel and structure numbering." See also the Code Comparative Table.*

435.10. - Administration.

The director of inspections shall assign address numbers, keep records of address assignments, and exercise such other powers as are necessary to carry out the provisions of this chapter. (Code 1960, As Amend., § 574.010; Ord. of 12-21-73, § 2; Ord. of 2-13-76, § 1; Pet No. 250548, § 7, 10-13-89; 2004-Or-062, §§ 2, 3, 5-28-04)

435.20. - Document adopted.

That certain document entitled "Minneapolis Street Naming and Address Standard," a copy of which shall be maintained in the office of the city clerk, is adopted by reference and made a part of this Code, as if fully set forth herein. The provisions thereof, as they may be amended and supplemented from time to time by ordinance or resolution of the city council, shall govern the assigning of addresses to land parcels, buildings, and units within the city. (Code 1960, As Amend., § 574.020; Ord. of 5-25-73, § 1; Ord. of 12-21-73, § 3; 2004-Or-062, §§ 4, 5, 5-28-04)

Charter reference— Authority to regulate numbering of buildings and to require the owners thereof to place the designated number thereon, Ch. 4, § 5(32).

Cross reference— Buildings receiving city's rubbish removal service to be numbered, § 225.620; dwellings to have legal address number posted, § 244.970; permit to turn water on not to issue unless house number is prominently displayed and right to turn water off if such number is not displayed, § 509.970.

435.30. - Owner responsibility.

Whenever any new building is erected, a building egress is modified, units are added in a building or changed in a building, or the occupancy of a building is changed in a manner requiring an address assignment as described in the Minneapolis Street Naming and Address Standard, the owner shall procure the correct address number or numbers designated by the director of inspections and pay required fees. The owner shall prior to occupancy or within thirty (30) days of assignment, whichever occurs later, place the assigned address number(s) upon the building or in a manner and location as provided in this chapter. (Code 1960, As Amend., § 574.030; 2004-Or-062, §§ 6, 7, 5-28-04)

435.40. - Permits and certificates of occupancy.

(a) No new construction or remodeling building permits shall be issued by the city for construction that requires new addresses, unless the owner has obtained parcel, structure, and unit addresses from the director of inspections.

(b) No certificate of occupancy shall be issued for any building unless the proper building number has been posted as required by this chapter.

(2004-Or-062, § 8, 5-28-04)

435.50. - Eligibility.

Addresses will only be assigned to officially designated streets as deemed by the director of public works.

(2004-Or-062, § 9, 5-28-04)

435.60. - Address display.

New and existing buildings shall have approved address numbers, building numbers or approved building identification placed in a position that is plainly legible and visible:

(1) from the street or road fronting the property; and

(2) from the rear or on a building accessory to the building at the rear.

The rear address number may be omitted if there is no public way at the rear of the building. The numbers shall contrast with their background. Address numbers shall be Arabic numerals. Numbers shall be a minimum of four (4) inches high with a minimum stroke width of one-half (½) inch. The numbers shall not be comprised of spray painted or hand-painted numbers nor shall the numbers be otherwise hand-applied by marker, tape or similar product not pre-fabricated for the specific purpose of address identification. Numbers applied with a stencil designed for the purpose of address identification shall be permitted if otherwise in conformance with this section.

(2004-Or-062, § 10, 5-28-04; 2010-Or-046, § 1, 4-30-10)

435.70. - Alteration of building number, improper number.

It is unlawful for any person to cause or knowingly permit a building number to be displayed that is different than that assigned pursuant to this chapter.

(2004-Or-062, § 11, 5-28-04)

CHAPTER 436. - ESTABLISHING AND NAMING OF STREETS

436.10. - Purpose.

The purpose of this chapter is to establish uniform criteria and procedures for establishing and changing public and private street names. (2004-Or-063, § 1, 5-28-04)

436.20. - Authority to name streets.

The official name of all public and private streets shall be as approved by the city council and shall be maintained by the director of public works in a master street name file. (2004-Or-063, § 1, 5-28-04; Ord. No. 2017-066, § 4, 11-3-17)

436.30. - Street name by plat.

Any new public or private street name created by plat shall be approved in accordance with the provisions set forth in this chapter, except that the application may proceed without the required petition. (2004-Or-063, § 1, 5-28-04)

436.40. - Application.

An application to name or rename a public or private street shall be submitted to the director of public works on a form prepared by the director of public works. The application shall be accompanied by a petition signed by at least two-thirds (⅔) of all owners of properties abutting the subject street. The petition shall contain the following information:

(1) The current, if any, official city name of the street.

(2) The proposed new street name.

(3) The name and address of each owner requesting the street name.

Upon receipt of a petition, the director of public works shall verify that the petition contains the required two-thirds (⅔) signatures. Upon verification the director of community planning and economic development shall set a public hearing before the planning commission of the City of Minneapolis. The director of public works shall make a report to the planning commission as to the merits of the name request. The director of public works shall also consider the comments of the director of community development and economic development and may also request other city departments and agencies, including private utilities and the U.S. Postal Service, to comment on the application. The planning commission shall forward its recommendations to the city council for final approval. (2004-Or-063, § 1, 5-28-04; Ord. No. 2017-066, § 5, 11-3-17)

436.50. - Required findings.

The director of public works shall make findings that the proposed street name or name change is in conformance with the criteria for naming streets as set forth in the Minneapolis Street Naming and Address Standard. (2004-Or-063, § 1, 5-28-04; Ord. No. 2017-066, § 6, 11-3-17)

436.60. - Application without petition.

(a) The mayor or city council members may submit proposals for street naming to the director of public works without the required petition or application fee.

(b) The director of public works may submit proposals for street naming without the required petition or application fee. (2004-Or-063, § 1, 5-28-04; Ord. No. 2017-066, § 7, 11-3-17)

436.70. Application fee. - (a) In general. In recognition of the cost of services performed and work and materials furnished, persons who desire to name or rename a street shall pay a fee of three hundred dollars ($300.00). Successful applicants may also be charged a fee to cover the cost of street sign installation or replacement.

(b) *Postage and publication.* For applications requiring notice of a public hearing to affected property owners, the applicant shall pay the cost of first class postage based on the number of property owners to be notified. In addition, for applications requiring publication in a newspaper of general circulation, the applicant shall pay a fee of twenty five dollars ($25.00).

(c) *Exceptions.* The application fee required by this section shall be waived where the application to name or rename a street is submitted as part of a complete application for land subdivision approval pursuant to Chapter 598 of this Code. (2004-Or-063, § 1, 5-28-04)

436.80. - Hearing on application.

The planning commission shall hold a public hearing on all complete applications. Notice of the public hearing shall be given in the following manner. The failure to give mailed notice to individual property owners, or defects in the notice, shall not invalidate the proceedings provided a bona fide attempt to comply with this section has been made.

(1) *Newspaper of general circulation.* The director of community planning and economic development shall publish notice of the time, place and purpose of the public hearing at least once, not less than fifteen (15) days before the hearing, in a newspaper of general circulation.

(2) *Registered neighborhood groups.* The director of community planning and economic development shall mail notice of time, place and purpose of the public hearing to the registered neighborhood group(s) for the neighborhood in which the subject street is located not less than twenty-one (21) days before the hearing.

(3) *Affected property owners.* The director of community planning and economic development shall mail notice to all owners of record of property located in whole or in part within three hundred fifty (350) feet of the boundaries of the subject street, not less than fifteen (15) days before the hearing. (2004-Or-063, § 1, 5-28-04)

CHAPTER 437. - SIDEWALK, CURB AND GUTTER CONSTRUCTION

Footnotes:
*--- **(7)** ---*

Cross reference— *Manner of service, on nonresident, of notice to construct sidewalks, § 14.20; provisions of park and recreation board code relative to construction of sidewalks, curbs and gutters, § PB8-1 et seq.*

437.10. - City engineer to control.

The city engineer shall have control and supervision of the construction and repair of all sidewalks, curb or curb and gutter, and shall so supervise or construct such sidewalk and curb and gutter whenever the same shall be ordered by the city council. (Code 1960, As Amend., § 575.010)

437.20. - Permit Required.

(a) No person shall construct any sidewalk, curb, curb and gutter, or other pavement within the public right-of-way without first obtaining a permit from the public works director. The public works director may, at the public works director's discretion, impose reasonable conditions upon the issuance of the permit and the performance of the applicant thereunder, including but not limited to payment of a permit fee sufficient to offset the city's costs of administration and management, evidence of insurance, and posting of security as required by law. The provisions of chapter 429.150 related to indemnification and liability shall be deemed to expressly apply to this section 437.20.

(b) Except in the case of an emergency, any person who constructs any sidewalk, curb, curb and gutter, or other pavement within the public right-of-way without a permit must subsequently:

(1) Obtain a permit;

(2) Pay double the normal fee for said permit;

(3) Pay double all the other fees required by the Code;

(4) Deposit with the city engineer the fees necessary to correct any damage to the right-of-way; and

(5) Comply with all of the requirements of the Code.

(c) A permit application may be administratively denied by the permitting official for any of the following reasons:

(1) The person has unresolved violations relating to unpermitted work;

(2) The person has unresolved orders to cure defective work;

(3) The person owes overdue fines, taxes, or fees to the City of Minneapolis;

(4) The application is incomplete;

(5) The proposed work does not comply with applicable rules or regulations;

(6) The person does not possess the license or qualifications necessary; or

(7) The proposed work presents an unacceptable risk to the public or property.

(d) A person may have their permit denial reviewed, upon written request, by the city council. The written request must be delivered to the director of public works within ten (10) days of the notification of denial. A decision by the city council affirming the denial will be in writing and supported by written findings establishing the reasonableness for the decision.

(Code 1960, As Amend., § 575.020; Ord. of 2-22-74, § 1; 77-Or-004, § 1, 1-14-77; 80-Or-200, § 1, 8-22-80; 86-Or-044, § 1, 3-14-86; 89-Or-241, § 1, 12-15-89; 99-Or-008, § 1, 1-22-99; Ord. No. 2017-066, § 8, 11-3-17; Ord. No. 2018-068, § 1, 11-16-18; Ord. No. 2023-003, § 1, 1-26-23)

437.30. - Assessment for defective or incomplete work.

In addition to all other rights and remedies the city may have at law or in equity, the public works director shall retain the right to reject defective or incomplete work permitted under section 437.20. The public works director is authorized, at the public works director's discretion, to remedy any such deficiency and to determine the cost therefore. Any cost incurred by the city to remedy a deficiency may be charged to the owner of the lot abutting such defective or incomplete work. If said charges are not paid within ninety (90) days after a bill of charges has been mailed to the owner, the city council shall assess and levy the amount as a special assessment upon and against the property benefited in the manner provided by law for other assessments. (Ord. No. 2018-068, § 2, 11-16-18)

Editor's note— Ord. No. 2018-068, § 2, adopted Nov. 16, 2018, repealed the former § 437.30, and enacted a new § 437.30 as set out herein. The former § 437.30 pertained to bond required and derived from the Code of 1960, As Amend., § 575.030; Ord. No. 2017-066, § 9, adopted Nov. 3, 2017.

437.40. - Marking with name and date required.

Every such principal who lays or constructs any sidewalk, curb or curb and gutter shall stamp or affix thereon his name and the true date, or dates, on which such sidewalk, curb or curb and gutter was laid or constructed. The date of construction so indicated thereon shall be prima facie evidence of the date of the commencement of the two-year maintenance period required of the said principal under the terms of his bond, as required by this chapter. Such name and date, or dates, shall be placed in such sidewalk, curb or curb and gutter in at least one place in every fifty (50) lineal feet thereof, or in one place if a lesser number of feet thereof is constructed. The city engineer shall provide in the specifications for sidewalk, curb or curb and gutter construction the style, size of lettering and manner of stamping or affixing the name and date of construction thereof as herein required. (Code 1960, As Amend., § 575.040)

CHAPTER 438. - UPTOWN SPECIAL SERVICE DISTRICT

Footnotes:

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Editor's note— *Ord. No. 98-Or-147, § 1, adopted Dec. 4, 1998, amended the title of Ch. 438 to read as herein set out. See the Code Comparative Table.*

Special law reference—Special act relative to authorization of three additional special service districts inn the City of Minneapolis.

438.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302, as amended in Laws of Minnesota, 1993, Chapter 375, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by 28th Street, centerline and its southerly extension of north-south alley in blocks eight (8) and nine (9) of Windom's Addition to Minneapolis, centerline of former one hundred (100) foot right-of-way of Hastings and Dakota Division of the Chicago, Milwaukee and St. Paul Railway (now part of the Hennepin County Regional Railroad Authority right-of-way), Dupont Avenue south, a line parallel to and one hundred thirty-five (135) feet southerly of the southerly line of Lake Street west, centerline of north-south alley in blocks twelve (12) and thirteen (13) of "Calhoun Park," 31st Street, centerline of north-south alley as dedicated in blocks sixteen (16) and twenty seven (27) of "Calhoun Park," a line parallel to and one hundred thirty-five (135) feet southerly of the southerly line of Lake Street west, centerline and its northerly extension of Knox Avenue south, centerline of Lake Street west, centerline and its southerly extension of Knox Avenue south, centerlines and their westerly and easterly extensions of east-west alleys in Hill and Latham's Addition to Minneapolis and in blocks nine (9) and ten (10) of Dean's Addition to Minneapolis, centerline and its northerly extension of Humboldt Avenue south, centerline and its westerly extension of Lagoon Avenue and centerline and its southerly and northerly extensions of north-south alley in block one (1) of Dean's Addition to Minneapolis. (86-Or-152, § 1, 7-11-86; 95-Or-001, § 1, 1-13-95)

438.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way. (86-Or-152, § 1, 7-11-86, 95-Or-001, § 2, 1-13-95)

438.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 438.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (86-Or-152, § 1, 7-11-86; 2013-Or-014, § 1, 2-22-13)

438.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 438.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 438.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1986 for services rendered or to be rendered during the calendar years 1986 and 1987. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (86-Or-152, § 1, 7-11-86; 93-Or-137, § 1, 9-17-93; 2013-Or-014, § 1, 2-22-13)

438.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 438.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (86-Or-152, § 1, 7-11-86; 2013-Or-014, § 1, 2-22-13)

438.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance [chapter] for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1986 for services rendered and to be rendered in the calendar years 1986 and 1987. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 438.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined without regard to captured or original assessed value under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08.

Property exempt from taxation by Minn. Statute, Section 272.02, shall be exempt from such tax. Taxes levied under this section shall not be reduced pursuant to Minn. Statute, Section 273.13, subdivisions 7, 7d or 14a. (86-Or-152, § 1, 7-11-86)

438.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (86-Or-152, § 1, 7-11-86; 2015-Or-027, § 1, 6-5-15)

438.80. - Limitation.

Taxes and service charges may be levied pursuant to this ordinance [chapter] to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (86-Or-152, § 1, 7-11-86)

438.90. - Advisory board.

(a) An advisory board to be known as the Uptown Special Service District Advisory Board consisting of seven (7) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each odd-numbered year, the first term to commence in 1987. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (86-Or-152, § 1, 7-11-86; 98-Or-147, § 2, 12-4-98; 2010-Or-024, § 1, 4-16-10; 2015-Or-027, § 2, 6-5-15; Ord. No. 2023-054, § 2, 10-19-23)

438.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302, and this ordinance [chapter] shall be construed consistently therewith. (86-Or-152, § 1, 7-11-86)

CHAPTER 439. - NICOLLET MALL

Footnotes:
*--- **(9)** ---*
Editor's note— *Ord. No. 2017-079, § 1, adopted Dec. 8, 2017, amended Ch. 439, §§ 439.10—439.200, in effect repealing and reenacting said chapter, §§ 439.10—439.90, as set out herein. Former Ch. 439 pertained to similar subject matter and derived from Code 1960, As Amend., §§ 586.010, 586.020(a), (b), 586.030—586.050; Ord. of 4-7-66, §§ 1—3; Ord. of 2-28-75, §§ 1—3; Ord. of 11-26-75, § 1; Ord. of 12-18-75, § 1; Ord. No. 78-Or-047, §§ 1—13, adopted March 30, 1978; Ord. No. 78-Or-108, § 1, adopted June 30, 1978; Ord. No. 82-Or-066, § 1, adopted April 9, 1982; Ord. No. 84-Or-068, § 1, adopted April 27, 1984; Ord. No. 87-Or-023, §§ 1, 2, adopted Feb. 6, 1987; Pet. No. 250548, §§ 8, 9, adopted Oct. 13, 1989; Ord. No. 91-Or-067, § 1, adopted April 12, 1991; Ord. No. 93-Or-099, §§ 1, 2, adopted July 16, 1993; Ord. No. 93-Or-151, § 1, adopted Oct. 29, 1993; Ord. No. 94-Or-041, §§ 1—8, adopted April 15, 1994; Ord. No. 2000-Or-117, § 1, adopted Nov. 22, 2000; and Ord. No. 2008-Or-105, § 1, adopted Dec. 12, 2008.*
Cross reference— *Areaways, Nicollet Mall, § 95.150.*
Special law reference—For a special act authorizing the city to conduct a hearing on the Nicollet Mall improvements and the assessments on said improvements, see Laws 1989, Ch. 115, accepted by 89-R-206 on May 31, 1989.

439.10. - Establishment of pedestrian mall.

(a) The city council hereby finds and states that Nicollet Avenue from Washington Avenue to Alice Rainville Place in the City of Minneapolis, Minnesota is not a part of any state highway, is located primarily in a central business district of said city, is improved to its maximum width for roadway and sidewalk purposes, and is congested during all or some substantial part of normal business hours; that reasonably convenient alternate routes exist for private vehicles to other parts of said city and state, that continued unlimited use of such part of such street by private vehicles may constitute a hazard to the safety of pedestrians, that properties abutting such part of such street can reasonably and adequately receive and deliver merchandise and materials from other streets and alleys or by reason of provision herein made for limited use of such street by carriers of such merchandise and materials, and that it would be to the best interests of said city and the public and of benefit to adjacent properties to use such part of such street primarily for pedestrian purposes, and pedestrian use is the highest and best use of such street from Washington Avenue to Alice Rainville Place.

(b) The city council hereby finds and states that Nicollet Avenue from Alice Rainville Place to Grant Street east and west in the City of Minneapolis is not a part of any state highway, is located primarily in a central business district of said city, is improved to its maximum width for roadway and sidewalk purposes, and is congested during all or some substantial part of normal business hours; that reasonably convenient alternate routes exist for private vehicles to other parts of the city and state, that continued unlimited use of such part of such street by private vehicles may constitute a hazard to the safety of pedestrians, that properties abutting such part of such street can reasonably and adequately receive and deliver merchandise and materials from other streets and alleys or by reason of provision herein made for limited use of such part of such street by carriers of such merchandise and materials, and it would be to the best interests of the city and the public and of benefit to adjacent and nearby properties to use such part of such street primarily for pedestrian purposes; and pedestrian use is the highest and best use of said street from Tenth Street south to Grant Street east and west; and Alice Rainville Place between Nicollet and Marquette Avenues would be used to the best interests of the city and public and of benefit to adjacent and nearby properties if used primarily for pedestrian purposes and easterly and westerly bound automobile traffic which is found to be the highest and best use of said street from Nicollet to Marquette Avenues to be used primarily for recreation and pedestrian purposes, and pedestrian use is the highest and best use of such streets from Tenth Street south to Grant Street east and west; and that it would be of the best interest of said city, the public, and of benefit to adjacent and nearby properties to use Alice Rainville Place between Nicollet and Marquette Avenues primarily for pedestrians' use and for easterly bound automobile traffic as a means of access to said pedestrian mall area which is found to be the highest and best use of such portion of such street.

(c) By original declaration effective as of April 17, 1966, and pursuant to the provisions of Chapter 430, Minn. Statute, 1961, as amended by Chapter 504 of the Session Laws of Minnesota for 1963, Nicollet Avenue from Washington Avenue to Alice Rainville Place in the City of Minneapolis, Minnesota is hereby designated as a pedestrian mall. By original declaration effective as of March 30, 1978, and pursuant to the same law, Nicollet Avenue from Tenth Street south to Grant Street east and west and Alice Rainville Place between Nicollet and Marquette Avenues, all of which are in the City of Minneapolis, are also hereby designated as pedestrian malls (all segments named in this section collectively hereinafter called "such part of Nicollet Avenue").

(d) Except as herein otherwise provided, the surface of such part of Nicollet Avenue is at all times hereby limited to pedestrians and the classes of vehicles herein described, and the use of the surface of such part of Nicollet Avenue by any other vehicle is hereby prohibited. (Ord. No. 2017-079, § 1, 12-8-17)

439.20. - Allowed vehicles.

The following classes of vehicles may enter upon and use such part of Nicollet Avenue, subject, however, to the further provisions of this section and general laws and ordinances applicable to the use of streets of the city:

(1) *Emergency vehicles*: Public police and fire vehicles and public and private ambulances;

(2) *Public works, maintenance and service vehicles*: Public and private street repair and construction vehicles and equipment, public and private street cleaning and snow removal vehicles and equipment, public and private water and sewer repair and construction vehicles and equipment, and public and private vehicles and equipment engaged in construction, service and repair of electric, gas, telephone or any other public utility facility;

(3) *Public carriers*: Vehicles engaged in mass transportation of persons within the city by bus.

(4) *Special permit vehicles*: Vehicles engaged in delivery of merchandise and materials or receiving merchandise and materials from the owners or occupants of property abutting on such part of Nicollet Avenue pursuant to permit issued by the city.

(5) *Passenger automobiles*: May travel upon such part of Nicollet Avenue between 6:00 p.m. and 10:00 p.m. on Thanksgiving Day of every year. Such vehicles shall not travel at a speed greater than ten (10) miles per hour, and may not pass another vehicle or stop or park upon such part of Nicollet Avenue and must enter/exit only at Washington Avenue South or Grant Street; and

(6) *Bicycles*: Any device propelled by human power upon which a person may ride, having two (2) tandem wheels either of which is over fourteen (14) inches in diameter, or any device generally recognized as a bicycle though equipped with two (2) front or rear wheels or a unicycle. Such vehicles shall not travel at a speed greater than ten (10) miles per hour. (Ord. No. 2017-079, § 1, 12-8-17)

439.30. - Intersecting streets.

No limitation or prohibition of use herein contained shall apply to vehicles on a street intersecting or crossing such part of Nicollet Avenue. (Ord. No. 2017-079, § 1, 12-8-17)

439.40. - Deliveries and special access permits.

(a) Street areas, within such part of Nicollet Avenue, and outside of the roadway and which have been designated by the city council as driveway and loading areas, and clearly posted and marked as such, may be used by authorized vehicles for such driveway and loading purposes during the posted hours and times permitted for such operations. Vehicles conducting such operations shall make use of such driveway and loading areas wherever and whenever practicable, rather than parking within the roadway.

(b) The city council hereby finds and declares that certain properties abutting on such part of Nicollet Avenue do not abut and access to another street or alley for delivery of or receiving merchandise and materials. A special permit for access shall be given the owners or occupants of such properties, authorizing the use of such part of Nicollet Avenue pursuant to terms set forth in the Nicollet Mall Policy referenced in this chapter. (Ord. No. 2017-079, § 1, 12-8-17)

439.50. - Public carriers.

The city council finds and declares that such part of Nicollet Avenue is served by a transit utility engaged in mass transportation of persons within the city by bus and that continued use of such part of Nicollet Avenue will be a benefit to the city and to the public and to adjacent property, and the buses of such transit utility shall be and are hereby permitted to use such part of Nicollet Avenue for such purposes to the same extent and subject to the same obligations and restrictions as are applicable to such transit utility in the use of other streets of the city. The city council further finds and declares that such part of Nicollet Avenue may be served by additional, future public carriers engaged in mass transportation of persons within the city by means other than buses, and that this section shall not be construed so as to prohibit or limit such additional, future public transit carriers upon receiving proper approval. (Ord. No. 2017-079, § 1, 12-8-17)

439.60. - Block events.

Notwithstanding any other provision to the contrary, block events on such part of Nicollet Mall shall be governed and defined by Chapter 455 of this Code of Ordinances, and the term "Business district" as used therein shall be deemed to include the Nicollet Mall. (Ord. No. 2017-079, § 1, 12-8-17)

439.70. - Control of right-of-way.

Nothing herein contained shall be interpreted or construed to be a vacation, in whole or in part, of any city street or part therein, and the City of Minneapolis and the city council retain all police powers and other rights and powers in such part of Nicollet Avenue. Except as herein expressly otherwise provided, the movement and parking of vehicles and carriers on such part of Nicollet Avenue shall be subject to the general ordinances, officially adopted policies, traffic control devices, and police regulations and directions adopted or made pursuant thereto. (Ord. No. 2017-079, § 1, 12-8-17)

439.80. - Compliance with laws and governing policy.

All activities affecting or taking place on such part of Nicollet Avenue shall comply with the provisions of the city's officially adopted Nicollet Mall Policy. "Nicollet Mall Policy" as used in this chapter means the city's written policy approved by the city council, and kept by the director of public works. The Nicollet Mall Policy is hereby adopted and supersedes any conflicting provisions in the city's initial plan contemplated by Minn. Statute Section 430.101, Subd. 2. The city council may hereafter amend the Nicollet Mall Policy by city council action. (Ord. No. 2017-079, § 1, 12-8-17)

439.90. - Enforcement.

In addition to any other remedy available at equity or law, failure to comply with the provisions of this chapter, including but not limited to the Nicollet Mall Policy, may result in criminal prosecution, or administrative fines, restrictions, or penalties as provided in Chapter 2 of this Code. (Ord. No. 2017-079, § 1, 12-8-17)

CHAPTER 440. - CITY-OWNED PLAZAS

ARTICLE I. - GENERALLY

440.10. - Prohibited conduct without permit.

No person shall use Riverfront Plaza, Cedar-Riverside Plaza, Loring Greenway or any other plaza-like area owned by the City of Minneapolis except for Peavey Plaza for any concert, exhibition, commercial venture, organized play or picnic activities, or for any similar purposes without first obtaining a permit from the city council under this chapter. (76-Or-131, § 1, 8-13-76; 83-Or-253, § 1, 10-14-83; Ord. No. 2019-016, § 1, 3-29-19)

440.20. - Permit applications.

Any applicant for a permit under this chapter shall file an application, on forms provided by the director of public works, who shall review the application and make whatever investigation he or she deems necessary. Among other factors the director of public works should consider in making a recommendation is whether liability insurance should be required, and if so, how much, and whether a bond should be required, and if so, how much. The director of public works shall then make a determination as to whether to issue a permit and as to what conditions, if any, should attach to the permit. In the event the director of public works determines that a permit shall not be issued, the director of public works shall report back to the city council, which shall then make its own determination. (76-Or-131, § 1, 8-13-76; Pet No. 250548, § 10, 10-13-89; 92-Or-005, § 1, 1-10-92; Ord. No. 2017-066, § 10, 11-3-17)

440.30—440.40. - Reserved.

ARTICLE II. - PEAVEY PLAZA

440.50. - Peavey Plaza defined.

Peavey Plaza shall mean the area in the City of Minneapolis at the south end of Nicollet Mall east of the Mall, between 11th Street South and 12th Street South. Peavey Plaza serves as a public amenity for passive recreation, gatherings, organized events and other plaza-like purposes, and is considered a public forum for First Amendment purposes. (Ord. No. 2019-016, § 2, 3-29-19)

440.60. - Conformance with governing policy.

Except as limited by the provisions of this chapter, rules governing conduct in Peavey Plaza may be adopted and amended from time to time by the chair of the downtown public asset committee. "Rules of Peavey Plaza" as used in this chapter shall mean the city's written rules approved by and kept on file with the chair of the downtown public asset committee. (Ord. No. 2019-016, § 2, 3-29-19)

440.70. - Peavey Plaza operator.

The city may, by written contract, designate a not-for-profit organization to carry out the operation and maintenance of Peavey Plaza. Any such contract must be approved by action of the city council. "Operator" as used in this chapter shall mean any organization falling under the provisions of this section. (Ord. No. 2019-016, § 2, 3-29-19)

440.80. - Assemblies.

Bands, processions, parades, races, military displays, entertainments, exhibitions, public meetings, gatherings and constitutionally protected expressions shall be allowed, given, or held in Peavey Plaza subject to any applicable ordinances, or rules, regulations, or permitting requirements governing the same in the rules of Peavey Plaza. (Ord. No. 2019-016, § 2, 3-29-19)

440.90. - Control of public space.

Permits may be issued pursuant to this ordinance by either the chair of the downtown public asset committee or through contract with an operator consistent with permitting terms approved by the chair of the downtown public asset committee. Permits issued pursuant to this chapter shall not operate so as to transfer ownership or control of Peavey Plaza to permittees, or to any other party.

The consumption of alcohol in Peavey Plaza shall be governed by Title 14, Chapter 364, and any applicable rules of Peavey Plaza. (Ord. No. 2019-016, § 2, 3-29-19)

440.100. - Compliance with laws.

Persons or entities visiting Peavey Plaza shall comply with all applicable federal, state, and local laws as they may be amended from time to time. (Ord. No. 2019-016, § 2, 3-29-19)

440.110. - Enforcement.

In addition to any other remedy available at equity or law, failure to comply with the provisions of Title 14, Chapter 364, or this Chapter 440, including but not limited to the governing policy referenced herein, may result in criminal prosecution, administrative fines, restrictions, or penalties as provided in Chapter 2 of this Code. The provisions of this chapter shall not limit or impair the statutory or common law right of the city or its authorized officers, agents, or officials to make arrests or issue citations for violations of applicable laws or ordinances. (Ord. No. 2019-016, § 2, 3-29-19)

440.120. - Permit fees.

All permit fees, pursuant to Chapter 440, Article II, shall be proposed by the chair of the downtown public asset committee and established from time to time by city council resolution. (Ord. No. 2019-016, § 2, 3-29-19)

CHAPTER 441. - UTILITY CONNECTIONS BEFORE PAVING

441.10. - Required.

Before any street shall be paved, all necessary gas, water and sewer pipes and mains shall be laid therein and connections made with such gas, water and sewer pipes and mains to the front line of each lot abutting on such street ordered to be paved. In the business portion of the city the word "lot" shall be construed to mean a subdivision of twenty-two (22) feet front. (Code 1960, As Amend., § 576.010)

441.20. - Owner's responsibility.

Whenever any street shall be ordered paved by the city council, the owners of property abutting on such street shall put in all necessary branch gas and water pipes and sewers and make all necessary connections with the sewer, gas and water mains in such street to the front line of their respective lots and premises abutting on the same. (Code 1960, As Amend., § 576.020)

441.30. - Action by city; assessment of cost.

In case any of the owners of lots and premises abutting on any street or alley ordered to be paved shall fail to put in branch gas and water pipes and sewers and make connections with the front line of their premises as herein required, within thirty (30) days after notice from the director of public works to do so, the city council shall proceed and cause all such branch gas and water pipes and sewers to be put in and connections made where deemed necessary by the city council, and assess the cost thereof against the respective lots and premises properly chargeable with the same, as provided by Section 5, Chapter 9 of the City Charter. (Code 1960, As Amend., § 576.030; Ord. No. 2017-066, § 11, 11-3-17)

CHAPTER 442. - DOWNTOWN SPECIAL SERVICE DISTRICT

442.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1988, Chapter 719, Article 17, and Minn. Statutes Section 428A.01 to 428A.10, [there is hereby established a] special service district (otherwise referred to herein as the "district") wherein the city may render or contract for public services to be rendered, of a kind or degree not ordinarily provided throughout the city from general fund revenues. The purpose of the district is to provide part of the capital cost of constructing a new pedestrian mall as set forth as special services in section 442.20 of this chapter. Said special service district shall consist of that area described as follows:

Bounded by the center lines of the main channel of the Mississippi River, 5th Avenue South, 4th Street South, Portland Avenue South, 3rd Street South, Chicago Avenue South, 5th Street South, 5th Avenue South, 10th Street South, 4th Avenue South, East 16th Street, 1st Avenue South, Grant Street, Willow Street extended, Hennepin Avenue, Laurel Avenue, 15th Street North, Hawthorne Avenue, 11th Street North, Glenwood Avenue, 10th Street North, and 3rd Avenue North. (89-Or-128, § 1, 7-14-89)

442.20. - Services to be performed.

Within the special service district, the city may render a contract for any of the following services to the extent that such services are not ordinarily provided throughout the city from the general revenues of the city: Design, construction, repair, operation, landscaping, planting and care of trees, shrubs, bushes, flowers, grass, and other decorative material and provide information and signs relating to parking and vehicle and pedestrian movement at street and skyway levels, and provide for administration, coordination, studies and proportions of design of a pedestrian mall on Nicollet Avenue from 11th Street to Washington Avenue, Grant Street to 11th Street, and adjacent streets according to design plans approved by the city council on July 29, 1988 and January 27, 1989, a copy of which is on file in the office of the city clerk. (89-Or-128, § 1, 7-14-89)

442.30. - Service charges.

The city may impose service charges that are reasonably related to the services to be provided. In imposing said service charges, the city shall follow the procedures specified in Minnesota Laws of 1988, Chapter 719, Article 1 and Minn. Statute Section 428A.01 to 428A.10, and said charges shall be imposed only after the filing of the petition required thereby. Only property that is used for commercial, industrial or public utility purposes, or is vacant land zoned or designated on a land use plan for commercial or industrial use or as provided in Minnesota Laws 1988, Chapter 719, Article 17, Section 2, Subd. 1, and located in the district may be subject to the charges imposed by the city on the special service district. Charges for service shall be as nearly as possible proportionate to the cost of furnishing the service, and may be fixed on the basis of the service directly rendered, or by reference to a reasonable classification of the types of premises to which service is furnished, or on any other equitable basis.

The service charges established by city council resolution shall be collected in the same manner as provided for payment and collection of ad valorem taxes. (89-Or-128, § 1, 7-14-89; 89-Or-185, § 1, 9-15-89)

442.40. - Management board.

(a) A management board to be known as the Downtown Special Service District Management Board, consisting of sixteen (16) members who shall be appointed by the city council. A majority of the board must be property owners or tenants in the district subject to the special service charge and at least one shall be an owner of commercial property. They shall serve from their effective dates of appointment until the expiration of the district. Any vacancy shall be filled in the same manner as an original appointment. Board members shall continue to serve until their successors are appointed.

(b) The management board shall advise the city council in connection with the design, construction, maintenance and operation of improvements and the furnishing of special services in the district. The management board shall make recommendations to the city council on the requests and complaints of owners, occupants and users of property within that district and members of the public. The management board shall review and comment upon any proposal by the city council to provide services or to impose special service charges in the district before the adoption of such proposal. (89-Or-128, § 1, 7-14-89)

442.50. - Expiration of district.

The district shall expire twenty-five (25) years after the effective date of this ordinance [89-Or-128], unless it is renewed by following the procedure for establishment of a district in Minnesota Laws of 1988, Chapter 719, Article 14, Section 2. (89-Or-128, § 1, 7-14-89)

442.60. - Governing law.

The provisions of Minn. Statute, Sections 438A.01 to 438A.10 and Minnesota Laws of 1988, Chapter 719, Article 17, shall in all respects govern the creation, existence and operation of the district and the manner of imposing service charges therein and this chapter shall be construed consistently with said statutes. (89-Or-128, § 1, 7-14-89)

442.70. - Effective date.

This chapter shall take effect forty-five (45) days after its date of publication in the official newspaper of the City of Minneapolis. (89-Or-128, § 1, 7-14-89)

CHAPTER 443. - ASSESSMENTS FOR PAVING "T", "L" AND "H" ALLEYS

443.10. - Paving "T" alleys.

(a) Whenever the city council shall determine to cause to be paved, repaved or macadamized an alley in the city under the provisions of Chapter 10 of the city charter, it shall by resolution determine and designate in a general way, as nearly as may be convenient, the character and extent of the improvement and the materials to be used therein. If such alley is what is known as a "T" alley, the city council may by such resolution direct the city engineer, in addition to the report of cost of the improvement required by Section 8 of Chapter 10 of the charter, to include in such report the following:

Where as a result of the paving, repaving or macadamizing of a "T" alley any lot is to be assessed for the improvement along the rear thereof, and the cross alley of such "T" alley runs along the side of any such lot, the city engineer shall report the cost of such improvement along the side of such lot as required by Section 8 of Chapter 10 of the City Charter, and shall also report his recommendation as to the percentage of such cost to be assessed against such lot. Such recommendation as to the percentage to be assessed for such improvement along the side of such lot shall be based upon the judgment of the city engineer as to the actual special benefit accruing to such lot by reason of the improvement.

(b) The city council, at the time of the consideration of such report, estimate and list of the city engineer required by Section 8 of Chapter 10 of the Charter, shall consider such recommendations of the city engineer, and shall hear all persons interested in the matter who may desire to be heard. If the city council shall determine to go on with such improvement it shall, in taking its action estimating and fixing upon the cost of such improvement, fix and determine the percentage of cost to be assessed by reason of the fact that the side of lots or tracts abut upon such cross alley. The percentage of such costs not levied upon such lots shall be paid out of the permanent improvement fund of the city, and in no case shall any of the unassessed portion of such costs be levied against any other lots abutting upon such "T" alley, it being the intention of this chapter that where cross alleys are improved along the rear and side of lots or tracts which are being assessed for the same at the rear thereof, the amount of cost exceeding special benefits shall be borne as a general city charge. (Code 1960, As Amend., § 577.020; Pet. No. 250548, § 11, 10-13-89)

443.20. - "H" and "L" alleys.

In the paving, repaving or macadamizing of "H" alleys and "L" alleys, similar action by the city council may be taken, and similar duties required of the city engineer, to the end that lots similarly situated shall receive similar treatment and similar special assessments where the city council shall determine that original front foot costs exceed special benefits. (Code 1960, As Amend., § 577.030)

443.30. - Assessment of alley paving costs against irregular lots.

Likewise, in the paving, repaving or macadamizing of alleys where the property abutting the same is of such irregular shape or so platted and laid out that front foot assessments will exceed the special benefits thereto, similar action may be taken by the council in the resolution providing for the improvement thereof, and in such resolution the city engineer may be required to make his report and recommendation as to special benefits and assessments as in the case of "T" alleys. The city council, upon the receipt of said report, confirmation thereof, action thereon and levying of assessment, may also take action as in the case of "T" alleys, to the end that such irregularly shaped lots or lots so platted and laid out shall not be assessed in amount in excess of the special benefits thereto by reason of the paving, repaving or macadamizing thereof, and that lots similarly situated shall receive similar treatment in the levying of special assessments where the city engineer, by his report, and the city council, after considering the same, shall have, as herein provided, determined that front foot costs, computed in accordance with Section 8 of Chapter 10 of the city charter, exceed special benefits to such property abutting an alley. The city engineer, in making such determination, and the city council, in passing thereon, shall be governed by principles of law relating to the determination of special benefits, taking into account, among other things, the area of the lot considered, the extent of use of such alley by the owner and occupant of abutting property, the enhancement of the value of the abutting property by reason of the improvement, and all other facts required to be considered in determining special benefits. Methods employed in making such determination shall be as nearly as possible uniform in all such cases, which methods employed shall be briefly referred to in the report of the city engineer. (Code 1960, As Amend., § 577.040)

CHAPTER 444. - DINKYTOWN SPECIAL SERVICE DISTRICT

444.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis located south of Sixth Street Southeast, west of Sixteenth Avenue Southeast, north of a line parallel to and two hundred (200) feet south of University Avenue and east of Twelfth Avenue Southeast. (93-Or-134, § 1, 9-17-93)

444.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas;

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets;

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district;

(d) Poster and handbill removal;

(e) Repair and maintenance of sidewalks;

(f) Installation and maintenance of area-wide security systems;

(g) Provision and coordination of security personnel to supplement regular city personnel;

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces;

(i) Installation, maintenance, and removal of lighting on commercial area trees;

(j) Cost of electrical service for pedestrian and tree lighting;

(k) Repair of low-level pedestrian lights and poles;

(l) Provision of comprehensive liability insurance for public space improvements;

(m) Trash removal and recycling costs;

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events; and

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (93-Or-134, § 1, 9-17-93)

444.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 444.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (93-Or-134, § 1, 9-17-93; 2013-Or-015, § 1, 2-22-13)

444.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 444.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 444.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1993 for services rendered or to be rendered during the calendar years 1993 and 1994. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications

of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (93-Or-134, § 1, 9-17-93; 2013-Or-015, § 3, 2-22-13)

444.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 444.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (93-Or-134, § 1, 9-17-93; 2013-Or-015, § 3, 2-22-13)

444.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1993 for services rendered and to be rendered in the calendar years 1993 and 1994. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 444.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined without regard to captured or original assessed value under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08.

Property exempt from taxation by Minn. Statute, Section 272.02, shall be exempt from such tax. Taxes levied under this section shall not be reduced pursuant to Minn. Statute, Section 273.13, subdivisions 7, 7d or 14a. (93-Or-134, § 1, 9-17-93)

444.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (93-Or-134, § 1, 9-17-93; 2015-Or-028, § 1, 6-5-15)

444.80 - Limitation.

Taxes and service charges may be levied pursuant to this ordinance to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (93-Or-134, § 1, 9-17-93)

444.90. - Advisory board.

(a) An advisory board to be known as the Dinkytown Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even-numbered year, the first term to commence in 1994. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (93-Or-134, § 1, 9-17-93; 2010-Or-025, § 1, 4-16-10; 2015-Or-028, § 2, 6-5-15; Ord. No. 2021-010, § 1, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23; Ord. No. 2025-030, § 1, 7-24-25)

444.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302, and this ordinance shall be construed consistently therewith. (93-Or-134, § 1, 9-17-93)

CHAPTER 445. - SNOW AND ICE REMOVAL

Footnotes:
*--- **(10)** ---*
Charter reference— *Authority of council to provide for removal of snow and ice from streets and sidewalks, Ch. 4, § 5(19).*
Cross reference— *Dumping snow in problem drainage areas, § 225.25.*
State Law reference— *Snow removal, M.S. § 160.21.*

445.10. - Reserved.

Editor's note— Ord. No. 93-Or-115, § 1, repealed § 445.10, which pertained to duty in fire zones 1 and 2. See the Code Comparative Table.

445.20. - Duty elsewhere.

(a) The person having the care, custody or control of any building or lot (except one- and two-family dwellings) adjoining, abutting or bordering on any street located within the city shall, within the first four (4) hours of daytime after the ceasing to fall of any snow, cause the snow and/or ice to be removed from the sidewalk adjoining said building or lot.

(b) The owners, occupants or persons having the care, custody and control of any building that is a one- or two-family dwelling shall cause the snow and/or ice to be removed from the public sidewalk abutting or adjoining the lot upon which such building is situated, within the first twenty-four (24) hours after the ceasing to fall of any snow, and shall cause sand to be sprinkled on the sidewalk where there is snow or ice upon the sidewalk that cannot be removed. (Code 1960, As Amend., § 580.020; Ord. of 9-12-74, § 3; Ord. of 12-12-75, § 2; 80-Or-184, § 1, 8-8-80; 80-Or-283, § 1, 11-26-80)

445.30. - Penalty; "daytime" defined.

(a) Any person who violates, disobeys, omits or neglects, or refuses to comply with any of the provisions of this chapter shall be in violation of this Code and guilty of a petty misdemeanor, and each and every hour after the expiration of said four-hour daytime period, or twenty-four-hour period in case of a violation of section 445.20(b), that the snow shall remain on such sidewalk, shall be deemed to be a separate violation of this Code.

(b) "Daytime" for the purposes of this section shall be the period of time from 8:00 a.m. to 5:00 p.m. (Code 1960, As Amend., § 580.030; Ord. of 9-12-74, § 4; Ord. of 10-10-75, § 1; 80-Or-184, § 2, 8-8-80)

445.35. - Removal by city; assessment of costs.

The city engineer is authorized to remove any snow or ice remaining on the public sidewalks of the city more than twenty-four (24) hours after the ceasing to fall of any snow. The city engineer shall determine the cost of such snow removal, and the owner of the lot abutting the sidewalk from which the city has removed snow shall be charged for said cost. If said charges are not paid within ninety (90) days after a bill of charges has been mailed to the owner, the city council shall assess and levy, and cause to be collected, the amount of such charges as a special assessment upon and against the lands and buildings involved, in the manner as provided by law for the levy and collection of other special assessments, payable in one sum and assessed, levied and collected in the city. (80-Or-184, § 3, 8-8-80)

445.40. - Duty of certain licensees; failure to comply grounds for revocation of license.

Every person carrying on any business, profession, vocation, calling, parking lot or other service within the city which requires a license or permit from the city, and for the service of such business, profession, vocation, calling, parking lot or other service a curb cut or driveway over a public street or boulevard or other public way is required, shall keep and maintain the driveway leading into the place of such business, profession, vocation, calling, parking lot or other service, and the public sidewalk immediately adjoining such place of business, profession, vocation, calling, parking lot or other service free and clear of all snow, ice and other debris. In addition to any and all other penalties, failure to comply with the provisions of this chapter shall be grounds for the revocation of the license or permit of the person violating the terms of this chapter. (Ord. of 10-10-75, § 2)

CHAPTER 446. - CENTRAL AVENUE SPECIAL SERVICE DISTRICT

446.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by the centerline of 26th Avenue Northeast, a line parallel to and twenty-five (25) feet east of the east line of Central Avenue, the centerline of 19th Avenue Northeast and a line parallel to and twenty-five (25) feet west of the west line of Central Avenue. (95-Or-132, § 1, 9-29-95)

446.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (95-Or-132, § 1, 9-29-95)

446.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 446.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (95-Or-132, § 1, 9-29-95; 2013-Or-016, § 1, 2-22-13)

446.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 446.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 446.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1995 for services rendered or to be rendered during the calendar years 1995 and 1996. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (95-Or-132, § 1, 9-29-95; 2013-Or-016, § 2, 2-22-13)

446.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 446.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (95-Or-132, § 1, 9-29-95; 2013-Or-016, § 3, 2-22-13)

446.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1995 for services rendered and to be rendered in the calendar years 1995 and 1996. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 446.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined without regard to captured or original assessed value under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08.

Property exempt from taxation by Minn. Statute, Section 272.02, shall be exempt from such tax. Taxes levied under this section shall not be reduced pursuant to Minn. Statute, Section 273.13, subdivisions 7, 7d or 14a. (95-Or-132, § 1, 9-29-95)

446.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (95-Or-132, § 1, 9-29-95; 2015-Or-029, § 1, 6-5-15)

446.80 - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (95-Or-132, § 1, 9-29-95)

446.90. - Advisory Board.

(a) An advisory board to be known as the Central Avenue Special Service District Advisory Board consisting of seven (7) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even numbered year, the first term to commence in 1996. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (95-Or-132, § 1, 9-29-95; 2010-Or-026, § 1, 4-16-10; Ord. No. 2023-054, § 2, 10-19-23; Ord. No. 2025-030, § 2, 7-24-25)

446.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (95-Or-132, § 1, 9-29-95)

CHAPTER 447. - PARADES/RACES

> ***Footnotes:***
> --- ***(11)*** ---
> ***Editor's note—*** *95-Or-038, § 1, adopted March 10, 1995, renamed Ch. 447 to read as herein set out. The remainder of said ordinance renumbered and amended the sections previously contained in Ch. 447 to read as herein set out. See the Code Comparative Table.*

447.10. - Definitions.

As used in this chapter:

Chief of police shall mean the police chief of the police department, or their duly authorized designee.

City operations officer shall mean the city operations officer, or their duly authorized designee.

Director of public works shall mean the director of the public works department, or their duly authorized designee.

Director of regulatory services shall mean the director of the regulatory services department, or their duly authorized designee.

Downtown area shall mean that area bounded by and including Cedar Avenue on the east, Washington Avenue on the northeast, Hennepin Avenue on the northwest, Lyndale Avenue on the west and Fifteenth Street on the south.

Parade shall mean a procession of people celebrating or commemorating for a non-commercial purpose along one (1) or more contiguous blocks of a street or streets on which traffic has been restricted, for which audience attendance is open to the public.

Parade, large shall mean a parade three (3) hours or more in length.

Race shall mean an organized competition of human speed or endurance consisting of a procession of people along one (1) or more contiguous blocks of a street or streets on which traffic has been restricted, for which audience attendance is open to the public.

Race, large shall mean a race ten (10) kilometers or more in distance.

Rolling closure shall mean a parade or race in which all participants move together as a group on the same block of a parade or race route, and which utilizes traffic management personnel at the front and back of the group of participants to restrict traffic, leaving the route otherwise open to traffic.(95-Or-038, § 3, 3-10-95; 2001-Or-128, § 1, 11-9-01; 2012-Or-047, § 1, 7-20-12, eff. 1-1-13; Ord. No. 2017-066, § 12, 11-3-17; Ord. No. 2023-070, § 1, 12-7-23)

447.20. - Permit Required.

No person shall engage in, participate in, aid, form, or start any parade or race, unless a permit therefor shall have been obtained from the city operations officer as herein provided.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

447.30. - Parade and race restrictions.

The following restrictions apply to all parades and races:

(1) Parades and races may not be scheduled to take place within one (1) block of a polling place during the hours of voting.

(2) Parades and races may not take place:

a. On a block that is closed for construction.

b. On a block that is serving as a detour route for a previously scheduled event.

c. On a block that abuts a hospital or ambulance garage;

d. On a block that abuts a fire station unless the fire station has a secondary entrance that is not obstructed;

e. On a block that is designated as a snow emergency route if a snow emergency has been declared, unless the streets on the parade or race route have already been completely cleared; and

f. On a block when it is scheduled for street sweeping or other maintenance activities or when a maintenance emergency is occurring.

(3) Parades and races may not otherwise interfere with emergency activities.

(4) Parades and races may be held on a street under the jurisdiction of the county or state, provided the appropriate state or county approvals have been obtained. Otherwise, parades and races must be held on a street under the jurisdiction of the city.

(5) Races shall only take place between the hours of 6:00 a.m. and 10:00 p.m. on Saturdays, Sundays, and legal holidays.

(6) Parades shall only take place between the hours of 8:00 a.m. and 10:00 p.m.

(7) No parades or races may take place in the downtown area between the hours of 7:00 a.m. and 9:00 a.m. or 4:00 p.m. and 6:00 p.m. on any day other than a Saturday, Sunday, or legal holiday.(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

447.40. - Application for parade and race permits.

(a) *Form.* Applicants seeking issuance of a parade or race permit shall file a complete application with the city operations officer in person, electronically, by facsimile, or by United States mail on forms provided by the city.

(b) *Deadline for filing of application for parade or race permits.* Applicants seeking issuance of a parade or race permit shall file a complete application in accordance with the following deadlines:

(1) Applications for large parades and large races shall be submitted sixty (60) or more days before the date of the parade or race.

(2) Applications for all other parades and races shall be submitted thirty (30) or more days before the date of the parade or race.

(c) *Fees for application.* The fee for a parade or race permit application shall be as established in Appendix J, the License Fee Schedule and updated pursuant to Section 261.60 of this Code. Payment is due at the time of application, and an application will not be considered complete until the fee has been received by the city. The fee is not refundable.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

447.50. - Review process for parade and race permit applications.(a) Review and conditions. Upon receipt of a complete application for a parade or race permit, the city operations officer will refer the application to the following individuals for review of the following issues and recommendation of conditions:

(1) To the director of public works to determine if the application meets the requirements of this chapter, and to make recommendations regarding the applicant's traffic control and management plan, waste and recycling plan, and parking mitigation plan; and

(2) To the chief of police to review and make recommendations concerning the security plan and traffic control and management plan.

(3) To the director of regulatory services to review and make recommendations concerning the traffic control and management plan.

(b) *Notification of receipt of application.* Upon receipt of a complete application for a parade or race permit, the city operations officer shall notify the mayor and the council member(s) of the ward(s) affected.

(c) *Meeting.* Prior to approval of a permit for a parade or race, the applicant must attend a meeting with the city operations officer, the director of public works, and the chief of police to review the conditions for approval of said permit.

(d) *Denial.* An application for a parade or race permit may be denied if:

(1) The parade or race would create an undue financial hardship upon the city;

(2) The proposed parade or race does not comply with the applicable provisions of this chapter;

(3) The applicant or the applicant's organization has violated the provisions of this chapter within the previous eighteen (18) months;

(4) There have been two (2) or more incidents of assault or disorderly conduct at a parade or race hosted by the applicant or the applicant's organization within the previous eighteen (18) months; or

(5) More than one (1) parade or race permit application is received and pending for the same date(s) in the same location or neighboring blocks. In such cases, any of the applications may be denied based on the following considerations:

a. Whether an applicant has previously held the same parade or race in the same location as the parade or race for which they seek a permit;

b. Whether an applicant has received permits for other parades or races in other areas within the previous twelve (12) months; and

c. The order in which the applications were received.

(e) *Appeal.* Denial of a parade or race permit may be administratively appealed if requested in writing within five (5) business days of said action. The city operations officer shall provide the applicant due notice of a hearing within ten (10) days of an appeal request, and said notice shall specify the time, date, and location of the hearing, as well as any other requirements thereof.

(f) *Approval.* Upon completion of the review required hereby, the city operations officer shall approve the application for a parade or race permit with the conditions recommended, unless a basis for denial exists as described in this chapter.(95-Or-038, § 8, 3-10-95; 2001-Or-128, § 5, 11-9-01; 2006-Or-145, § 1, 12-22-06; Ord. No. 2023-070, § 1, 12-7-23)

447.60. - Issuance of parade and race permits.

(a) *Notice and approval of parades and races.* A permit for a parade or race may be issued only after the applicant has filed the following with the city operations officer:

(1) Evidence that a notice has been provided to all occupants of property abutting the location of the parade or race, including a description of the parade or race, the date and hours of the parade or race, and the name, email address and phone number of the applicant; and

(2) Written approval from all properties with unmitigated vehicle access along the parade or race route. Where a property is occupied by multiple tenants or owners, a homeowners' association, tenant's association, building management association or the like may grant a single approval on behalf of all occupants of the property.

(b) *Insurance and indemnification.* A permit for a parade or race may be issued only after the applicant has filed with the city operations officer evidence of a commercial general liability insurance policy providing coverage in the amount of at least one million dollars ($1,000,000) general aggregate and one million dollars ($1,000,000) per occurrence, providing for the payment by the insurance company on behalf of the insureds of all sums which the insureds shall become obligated to pay by reason of liability imposed upon them by law for injuries or damages to persons or properties arising out of the activities and operations of the insureds pursuant to the provisions of this chapter. The city shall be named as an additional insured on the policy. Applicants shall defend and hold the city harmless from all claims, demands, actions or causes of action, of whatsoever nature or character, including damages to city property, arising out of or by reason of conduct of the parade or race, including attorney fees and all expenses. The applicant shall require any participants of the parade or race using automobiles to carry automobile liability insurance meeting the statutory limits of the State of Minnesota.

(c) *Security Deposit.* A permit for a large parade or large race may be issued only after the applicant has filed with the city operations officer a security deposit as established in Appendix J, the License Fee Schedule and updated pursuant to Section 261.60 of this Code. If the applicant fails to comply with the requirements of Section 477.70(g) of this Code to the satisfaction of the city operations officer, the security deposit will be forfeited to the city. Otherwise, the security deposit shall be returned to the applicant.

(d) *Issuance.* Upon approval of an application for a parade or race permit and satisfaction of the provisions of this section, the city operations officer shall issue the parade or race permit.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

447.70. - Operation of parades and races.(a) Timing. A parade or race may only be held on the date(s) specified on the permit.

(b) *Other approvals.* Applicants will be responsible for obtaining all permits and licenses required for activities to be conducted as part of a parade or race.

(c) *Compliance with Permit Conditions.* Applicants will operate parades and races in accordance with the provisions of their permits.

(d) *Barricades.* Applicants shall provide, install, and remove barricades, signs, and delineation equipment for parades and races, except rolling closures, in accordance with a city-approved traffic control and management plan.

(e) *Restriction of Parking.* For all races and parades, "No Parking" signs will be posted by the city within the parade or race space. Within ten (10) business days following receipt of city invoice, the applicant must reimburse the city for the cost of installing and removing said signage. For parades, except large parades, and for rolling closures, the applicant may utilize a city-approved parking mitigation plan in lieu of these signage requirements.

(f) *Personnel.*

(1) For all races and parades, trained city staff or trained personnel shall perform on-site traffic-management duties at all intersections where traffic crosses the parade or race route, in accordance with the requirements of a city-approved traffic control and management plan. Any certification or training for traffic control management must be approved by the director of regulatory services. During the term of the parade or race, these individuals shall be deemed authorized persons for purposes of Section 466.140 of this Code, with respect to duties performed as required by the permit; and

(2) For all races and parades, trained city staff shall perform on-site traffic-management duties on detour routes, where necessary, in accordance with the requirements of a city-approved traffic control and management plan.

(3) Within ten (10) business days following receipt of city invoice, the applicant must reimburse the city for the cost of city staff's performance of on-site traffic-management duties.

(4) For all races and parades, applicants shall provide on-site personnel to:

a. Administer the event in accordance with the requirements of their permit;

b. Perform event security duties, in accordance with a city-approved security plan;

c. Monitor the barricades at all intersections not requiring traffic-management personnel, in accordance with the requirements of their permit.

(g) *Refuse and recycling.*

(1) Waste handling at a parade or race is required independent of any permanently placed containers, unless otherwise approved by the manager of said permanently placed containers and in the applicant's city-approved waste and recycling plan.

(2) The applicant must, throughout the parade or race and within the three-hour period immediately following the end of a parade or race, clean up, remove, and dispose of all litter, garbage and recyclable materials associated with the parade or race which is placed or left on the street or sidewalk of the block(s) on which the parade or race is held and also on any of the immediately adjacent blocks.

(3) When food and beverages are dispensed, applicants are encouraged to use supplies made of compostable materials and to collect and deliver all compostable materials to an approved composting or processing facility.

(4) All applicants for parades and races shall provide for collection and processing of recyclable material separate from non-recyclable materials, in accordance with a city-approved waste and recycling plan. In furtherance of this requirement, recyclable material collection containers must be equal in number to collection containers for garbage and must be situated within five (5) feet thereof during the parade or race. Signage shall be placed on all collection containers for patrons to easily separate recyclable materials from garbage.

(5) Applicants may be granted an exemption from providing one-to-one garbage and recycling with a city-approved zero waste plan. In the plan, applicants must ensure vendors are uniform in their use of recyclable or compostable materials and that collection containers are available for all recyclable and compostable materials generated at the parade or race. All compostable materials must be delivered to an approved composting or processing facility.

(6) Within ten (10) business days following a parade or race, the applicant must submit to the city proof of weights and delivery locations for all garbage and recyclable and compostable materials collected at the parade or race.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

447.80. - Revocation of permit.

A parade or race permit may be revoked for any violation of this chapter or in the event of an emergency constituting an imminent threat to life or property.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01;Ord. No. 2023-070, § 1, 12-7-23)

447.90. - Effective date.

This chapter shall be effective January 1, 2024.

(95-Or-038, § 6, 3-10-95; 99-Or-022, § 1, 2-5-99; 2001-Or-128, § 3, 11-9-01; Ord. No. 2023-070, § 1, 12-7-23)

CHAPTER 448. - EAT STREET SPECIAL SERVICE DISTRICT

Footnotes:
*--- (**12**) ---*
***Editor's note—** Ord. No. 2015-Or-030, § 1, adopted June 5, 2015, amended the title of Ch. 448 to read as herein set out. Said chapter was formerly titled "Nicollet Avenue South Special Service District."*

448.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by Grant Street West, Grant Street East, a line equidistant between the easterly line of Nicollet Avenue South and the westerly line of 1st Avenue South as shown in Penniman's Addition to Minneapolis, westerly extension of centerline of 17th Street East, centerlines and their northerly and southerly extensions of vacated north-south alleys between Nicollet Avenue South and 1st Avenue South, a line parallel to and one hundred (100) feet northerly of the northerly line of Franklin Avenue East, 1st Avenue South, a line parallel to and one hundred (100) feet southerly of the southerly line of Franklin Avenue East, a line parallel to and one hundred sixty (160) feet westerly of the westerly line of 1st Avenue South, centerline of 22nd Street East, centerlines and their northerly and southerly extensions of north-south alleys between Nicollet Avenue South and 1st Avenue South, a line parallel to and one hundred (100) feet northerly of the northerly line of 26th Street East, 3rd Avenue South, a line parallel to and one hundred (100) feet southerly of the southerly line of 26th Street East, centerlines and their southerly and northerly extensions of north-south alleys between Nicollet Avenue South and 1st Avenue South, centerline of Cecil Newman Lane, centerline of Nicollet Avenue South, 29th Street West, centerline and its southerly and northerly extensions of north-south alley in Block eighteen (18) of J. T. Blaisdell's Revised Addition to Minneapolis, centerline of 27th Street West, centerline and its southerly extension of north-south alley in Rearrangement of Block 13 J. T. Blaisdell's Revised Addition to Minneapolis, a line parallel to and one hundred (100) feet southerly of the southerly line of 26th Street West, Blaisdell Avenue South, a line parallel to and one hundred (100) feet northerly of the northerly line of 26th Street West, centerlines and their northerly and southerly extensions of north-south alleys between Nicollet Avenue South and Blaisdell Avenue South, a line parallel to and one hundred (100) feet southerly of the southerly line of Franklin Avenue West, Blaisdell Avenue South, LaSalle Avenue South, a line parallel to and one hundred (100) feet northerly of the northerly line of Franklin Avenue West, centerline of vacated north-south alley in block one (1) of "Vine-Place Addition to Minneapolis", centerline of Groveland Avenue, a line equidistant between the westerly line of Nicollet Avenue South and the easterly line of LaSalle Avenue South, centerline of Oak Grove Street, a line parallel to and one hundred sixty-five (165) feet easterly of the easterly line of LaSalle Avenue South. (96-Or-073, § 1, 8-9-96)

448.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (96-Or-073, § 1, 8-9-96)

448.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 448.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (96-Or-073, § 1, 8-9-96; 2013-Or-017, § 1, 2-22-13)

448.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 448.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 448.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1998 for services rendered or to be rendered during the calendar years 1998 and 1999. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (96-Or-073, § 1, 8-9-96; 98-Or-029, § 1, 4-10-98; 2013-Or-017, § 2, 2-22-13)

448.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 448.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (96-Or-073, § 1, 8-9-96; 2013-Or-017, § 3, 2-22-13)

448.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1998 for services rendered and to be rendered in the calendar years 1998 and 1999. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 448.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined without regard to captured or original assessed value under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08.

Property exempt from taxation by Minn. Statute, Section 272.02, shall be exempt from such tax. Taxes levied under this section shall not be reduced pursuant to Minn. Statute, Section 273.13, subdivisions 7, 7d or 14a. (96-Or-073, § 1, 8-9-96; 98-Or-029, § 2, 4-10-98)

448.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (96-Or-073, § 1, 8-9-96; 2015-Or-030, § 2, 6-5-15)

448.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (96-Or-073, § 1, 8-9-96)

448.90. - Advisory board.

(a) An advisory board to be known as the Eat Street Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each odd numbered year, the first term to commence in 1997. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this ordinance, the city council may appoint a temporary advisory board consisting of nine (9) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Eat Street Special Service District Advisory Board from its date of appointment through December 31, 1996. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (96-Or-073, § 1, 8-9-96; 2010-Or-027, § 1, 4-16-10; 2015-Or-030, § 3, 6-5-15; Ord. No. 2021-010, § 2, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

448.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (96-Or-073, § 1, 8-9-96)

CHAPTER 449. - DECORATIONS AND BANNERS

Footnotes:
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***Editor's note—** Ord. No. 2010-Or-063, § 1, adopted July 23, 2010, repealed former Ch. 449, §§ 449.10—449.120, which pertained to decorations and banners. Ord. No. 2010-Or-064, § 1, adopted July 23, 2010 added provisions designated as a new Ch. 449, §§ 449.10—449.100 to read as herein set out. See also the Code Comparative Table.*
***Cross reference—** Signs, Ch. 544.*

449.10. - Purpose and criteria.

The purpose of the following is to promote the public health, safety and welfare through the regulation of placement, type, appearance, and servicing of banners and decorations on public rights-of-way so as to:

- Aid in the promotion of cultural and civic events.
- Promote the city and city-sponsored programs.
- Compliment the city's beautification and neighborhood identification efforts.
- Promote safe travel by controlling visual distractions to traffic control and directional signage.
- Provide a unified appearance to city streets. (2010-Or-064, § 1, 7-23-10)

449.20. - Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Banner. Any rigid or flexible material containing a static message directed at the public, either by means of a symbol, graphic design or text attached to poles in the public right-of-way. Any flag, bunting, swag, ribbon, ornament, trimming, lights or other embellishments.

City engineer. City engineer means the city engineer, or the city engineer's designee.

Lineal block. The part of any right-of-way lying between two (2) intersecting rights-of-way. In the event that no intersecting right-of-way exists, the terminating point of the right-of-way or a distance of three hundred thirty (330) feet, whichever is shortest.

Public right-of-way. The surface and space above, below, or otherwise integral to any public thoroughfare established by or located within the complete jurisdiction of the city, including but not limited to roadways, highways, streets, bicycle lanes, boulevards, or sidewalks.

Supporting hardware. Any bracket, wire, clamp, collar or other manufactured product necessary to attach, hold or fix in place a banner. Any electrical or mechanical device ancillary to a banner. (2010-Or-064, § 1, 7-23-10)

449.30. - Permit required; procedure, conditions.

(a) Notwithstanding the provisions for off-premises signs in the zoning code, any person or agency desiring to install any banner or supporting hardware on or over any public right-of-way or city-owned property may do so upon issuance of a permit by the city engineer. An application shall be submitted on a form prepared by the city engineer and shall contain, but not be limited to, the following information:

(1) The name, address and telephone number of the person making the application and to whom the permit will be issued.

(2) The name, address and telephone number of the contractor that will install the banner.

(3) A color, graphic sample of the banner.

(4) The specific dimensions of the banner.

(5) A detailed map depicting the specific location of each installation.

(6) The specific installation and removal dates for the banner.

(b) A nonrefundable application fee shall be charged in accordance with schedule established by the city council.

(c) All such permits shall expire on the date provided for by the city engineer at the time of the issuance thereof.

(d) Any and all such banners, together with any supporting hardware, shall be installed and removed only by a licensed and bonded contractor and all such installations and removals shall be done with the approval of the city engineer.

(e) Any and all such banners shall be taken down and removed within five (5) days from and after the date of the expiration of such permit, notwithstanding the city engineer's approval of permanent supporting hardware as provided for in this section. (2010-Or-064, § 1, 7-23-10)

(Ord. No. 2023-042, § 1, 5-25-23)

449.40. - Banner content.

(a) Banners must identify a historical location, place of public interest, or an event of public interest taking place within or benefiting the city. Banners shall not be used to advertise specific businesses, products, or services. Banners shall not be used to advertise or promote political candidates, parties, issues, or messages.

(b) Banners may be used to promote arts and cultural activities including events, festivals, tourism or civic programs, as well as major sporting events.

(c) Banners may include a logo, name or symbol of a sponsoring agency, provided that no more than fifteen (15) percent of the banner area is utilized for such purpose.

(d) The content of any banner intended as an exhibit of public art shall be reviewed and approved in accordance with the art in public spaces policy adopted by the city council and administered by the office of cultural affairs of the community planning and economic development department. (2010-Or-064, § 1, 7-23-10)

449.50. - Clearance required.

No such banner or supporting hardware shall be installed unless they shall have a clearance over and above the right-of-way as shall be designated and required by the city engineer with due regard to public safety, surrounding circumstances, and physical conditions of the area. (2010-Or-064, § 1, 7-23-10)

449.60. - Permanent supporting hardware.

Wherever any supporting hardware (not including electrical wires or fixtures) are installed which are intended to be kept and maintained as permanent, such supporting hardware may be considered to be permanent and need not be removed if approved by the city engineer. The city engineer, if at any time in their judgment such hardware become defective or dangerous, may require them to be repaired or removed. Any person having a permanent supporting hardware shall provide sufficient public liability insurance therefore, as herein provided. (2010-Or-064, § 1, 7-23-10)

449.70. - Insurance required.

The applicant shall post with the city engineer and maintain in force a public liability insurance policy including the City of Minneapolis as an additional insured, and protecting against any liability which may result from or arise out of the installation or maintenance of the banners or the supporting hardware for which a permit is issued. The policy of insurance shall be maintained in its original amount by the applicant at their expense at all times during the period for which the permit is in effect. In the event that two (2) or more permits are issued to the same person or corporation, one (1) policy of insurance may be furnished to cover all of the permits, provided that upon applying for each additional permit, the applicant shall file a certificate showing that the said policy of insurance on file is currently in effect and covers the activities for which the additional permit is requested. The policy of insurance shall be of a type which maintains coverage for the full limits of the policy for the occurrence of any accident or loss from which liability may occur.

The limits of liability on the policy of insurance posted shall in no case be less than two million dollars ($2,000,000.00) for bodily injuries or death occurring as a result of any one (1) accident, nor less than one hundred thousand dollars ($100,000.00) for bodily injuries to or death of any one (1) person arising out of the accident, and twenty-five thousand dollars ($25,000.00) for loss or damage of property arising out of any one (1) accident. (2010-Or-064, § 1, 7-23-10)

449.80. - Revocation of permit.

Any violation of this chapter shall be grounds for the revocation of any permits granted, and any person violating the provisions of this chapter may be denied any future permits for the purposes set out in this chapter. (2010-Or-064, § 1, 7-23-10)

449.90. - Violations a nuisance.

Any banner or supporting hardware erected or maintained contrary to the provisions of this chapter is declared to be a public nuisance, and any duly authorized city employee may remove or abate the same without any other warrant or authority other than this chapter. (2010-Or-064, § 1, 7-23-10)

449.100. - Severability.

In the event that any portion or section of this chapter is determined to be invalid, illegal or unconstitutional by a court of competent jurisdiction, the decision shall in no manner affect the remaining portions or sections of this chapter, which shall remain in full force and effect. (2010-Or-064, § 1, 7-23-10)

CHAPTER 450. - STADIUM VILLAGE SPECIAL SERVICE DISTRICT

450.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, and as provided for in Laws of Minnesota for 1996, Chapter 471, Article 8, Section 44, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code: That part of Minneapolis bounded by northerly line and its westerly and easterly extensions of Lot two (2) in Block one (1) of St. Anthony City, a line and its northwesterly and southeasterly extensions equidistant between the southwesterly line of 4th Street Southeast and the northeasterly line of University Avenue Southeast as shown in "Regents Addition," centerline and its northeasterly extension of 23rd Avenue Southeast as opened across Lots four (4) and seven (7) in Block sixteen (16) of "Regents Addition," centerline and its northwesterly and

southeasterly extensions of 4th Street Southeast, centerline and its northeasterly and southwesterly extensions of 27th Avenue Southeast, a line and its southeasterly and northwesterly extensions equidistant between the southwesterly line of University Avenue Southeast and the northeasterly line of 2nd Street Southeast (now known as Delaware Street Southeast) as shown in "Regents Addition," centerline and its southwesterly extension of 25th Avenue Southeast, centerline and its easterly and westerly extensions of Delaware Street Southeast, centerline of Huron Boulevard Southeast, southerly line and its easterly extension at Huron Boulevard Southeast and its westerly extension at Erie Street Southeast of Tract B in Registered Land Survey No. 1646 Hennepin County, Minnesota, centerline and its northerly extension of Erie Street Southeast, centerline and its easterly and westerly extensions of Delaware Street Southeast, centerline and its southerly extension of Ontario Street Southeast, southerly lines and their easterly and westerly extensions of Lots five (5) and six (6) in Block seven (7) of Baker's Addition to Saint Anthony, centerline of Oak Street Southeast, a line and its easterly and westerly extensions equidistant between the southerly line of Washington Avenue Southeast and the northerly line of Delaware Street Southeast, centerline of Walnut Street Southeast, southerly lines and their easterly and westerly extensions of Lots four (4) and seven (7) in Block thirty-one (31) of St. Anthony City, centerline and its northerly extension of Harvard Street Southeast, centerline and its southerly extension of vacated Harvard Street Southeast, centerline and its westerly and easterly extensions of vacated Beacon Street Southeast and a line and its southerly and northerly extensions equidistant between the easterly line of Walnut Street Southeast and the westerly line of Oak Street Southeast as shown in St. Anthony City. (97-Or-083, § 1, 10-10-97)

450.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (97-Or-083, § 1, 10-10-97)

450.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 450.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (97-Or-083, § 1, 10-10-97; 2013-Or-018, § 1, 2-22-13)

450.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 450.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 450.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1998 for services rendered or to be rendered during the calendar years 1998 and 1999. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (97-Or-083, § 1, 10-10-97; 98-Or-115, § 1, 10-16-98; 2013-Or-018, § 2, 2-22-13)

450.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 450.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (97-Or-083, § 1, 10-10-97; 2013-Or-018, § 3, 2-22-13)

450.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1998 for services rendered and to be rendered in the calendar years 1998 and 1999. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 450.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from tax. (97-Or-083, § 1, 10-10-97; 98-Or-115, § 2, 10-16-98)

450.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (97-Or-083, § 1, 10-10-97; 2015-Or-031, § 1, 6-5-15)

450.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (97-Or-083, § 1, 10-10-97)

450.90. - Advisory board.

(a) An advisory board to be known as the Stadium Village Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even numbered year, the first term to commence in 1998. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this ordinance, the city council may appoint a temporary advisory board consisting of nine (9) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Stadium Village Special Service District Advisory Board from its date of appointment through December 31, 1997. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (97-Or-083, § 1, 10-10-97; 2010-Or-028, § 1, 4-16-10; 2015-Or-031, § 2, 6-5-15; Ord. No. 2021-010, § 3, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

450.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (97-Or-083, § 1, 10-10-97)

CHAPTER 451. - USE OF CITY-MANAGED PUBLIC RIGHT-OF-WAY

Footnotes:
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***Editor's note—** Ord. No. 2017-039, § 1, adopted Aug. 4, 2017, retitled Ch. 451 from "Use of City-Owned Infrastructure" to read as herein set out.*

451.10. - Definitions.

(a) Except as provided in subsection (b), in this chapter:

(1) *Applicant* means a person who applies to use city infrastructure or city-managed public right-of-way.

(2) *Attachment* includes:

a. On a pole, each aerial cable, together with its associated messenger cable, guy wire, anchors and other appurtenant and incidental facilities;

b. In a conduit, each linear foot of occupancy of a city-owned conduit or duct by each cable or other attachment; and

c. Each antenna, transceiver, amplifier, repeater or other device or equipment of a user supported by, affixed to, contained in, or placed on or in a unit of city-owned infrastructure or on or in a wireless support structure.

(3) *Attachment permit* means the permit for a user to place, install, construct, replace, move, remove, keep, maintain, operate, or use an attachment on or in city-owned infrastructure under this chapter, on or in a wireless support structure, or a permit issued under this chapter.

(4) *Cable* means a wire rope or a bound or sheathed assembly of conductors, wires, or fibers, including fiber optic cable, coaxial cable, and twisted pair copper cable. Each cable that is lashed to another cable or to a common messenger cable is a separate attachment.

(5) *Communications services provider* means a user who provides or offers to provide cable, telecommunications, or video services pursuant to a franchise or a federal or state certificate or other authority and who has a right to use the city's public right-of-way for the provision of those services under federal, state, or local law.

(6) *Director* means the Director of the Minneapolis Public Works Department or, unless the context indicates otherwise, the director's designees.

(7) *Director of public works* means the specific individual, who has been appointed Director of the Minneapolis Public Works Department, or in the case of such person's absence from duties, the duly determined acting director of public works.

(8) *User* means a person who has been granted the right to install an attachment or to use city-managed public right-of-way pursuant to this chapter.

(9) *City* means the City of Minneapolis.

(10) *City-owned infrastructure* includes city-owned facilities as defined specifically in the Minneapolis Right of Way Attachment Policy that are located in the public right-of-way. It does not mean poles or other structures owned by a city contractor. It does not mean state, county or other municipally or government entity-owned infrastructure on city-managed right-of-way. It does not mean infrastructure owned by a public utility. It does not mean infrastructure located outside of the public right-of-way.

(11) *Person* has the meaning given in section 3.60 of this Code.

(12) *Telecommunications right-of-way user* means a person owning or controlling a facility in city-managed public right-of-way, or seeking to own or control a facility in city-managed public right-of-way, that is used or is intended to be used for providing wireless service, or transporting telecommunications or other voice or data information.

(13) *Management costs* or *rights-of-way management costs* means the actual costs the city or related right-of-way managers incur in managing a public right-of-way, and includes such costs, if incurred, as those associated with registering applicants; issuing, processing, and verifying right-of-way or small wireless facility permit applications; inspecting job sites and restoration projects; maintaining, supporting, protecting, or moving user equipment during public right-of-way work; determining the adequacy of right-of-way restoration; restoring work inadequately performed after providing notice and the opportunity to correct the work; and revoking right-of-way or small wireless facility permits.

(14) *Collocate* or *collocation* means to install, mount, maintain, modify, operate, or replace a small wireless facility on, under, within, or adjacent to an existing wireless support structure that is owned privately or by a local government unit.

(15) *Small wireless facility* means:

a. A wireless facility that meets both of the following qualifications:

1. Each antenna is located inside an enclosure of no more than six (6) feet in volume or, in the case of an antenna that has exposed elements, the antenna and all its exposed elements could fit within an enclosure of no more than six (6) cubic feet; and
2. All other wireless equipment associated with the small wireless facility, excluding electric meters, concealment elements, telecommunications demarcation boxes, battery backup power systems, grounding equipment, power transfer switches, cutoff switches, cable, conduit, vertical cable runs for the connection of power and other services, and any equipment concealed from public view within or behind an existing structure or concealment, is in aggregate no more than twenty-eight (28) cubic feet in volume; or

b. A micro wireless facility.

(16) *Wireless facility* means:

a. Equipment at a fixed location that enables the provision of wireless services between user equipment and a wireless service network, including:

1. Equipment associated with wireless service;
2. A radio transceiver, antenna, coaxial or fiber-optic cable, regular and backup power supplies, and comparable equipment, regardless of technological configuration; and
3. A small wireless facility.

b. *Wireless facility* does not include:

1. Wireless support structures;
2. Wireline backhaul facilities; or
3. Coaxial or fiber-optic cables (i) between utility poles or wireless support structures, or (ii) that are not otherwise immediately adjacent to or directly associated with a specific antenna.

(17) *Micro wireless facility* means a small wireless facility that is no larger than twenty-four (24) inches long, fifteen (15) inches wide, and twelve (12) inches high, and whose exterior antenna, if any, is no longer than eleven (11) inches.

(18) *Wireless service* means any service using licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at a fixed location or by means of a mobile device, that is provided using wireless facilities. Wireless service does not include services regulated under Title VI of the Communications Act of 1934, as amended, including a cable service under United States Code, Title 47 of the Communications Act of 1934, as amended, including a cable service under United States Code, Title 47, section 522, clause (6).

(19) *Wireless support structure* means a new or existing structure in a public right-of-way designed to support or capable of supporting small wireless facilities, as reasonably determined by the director.

(20) *Wireline backhaul facility* means a facility used to transport communications data by wire from a wireless facility to a communications network.

(b) If state law governing attachments to city-owned utility infrastructure or city-managed public rights-of-way provides a definition of "attachment" in conflict with and preemptive of the definition in this chapter, the state definition controls. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.20. - Purpose.

This chapter along with state, federal and other local law establishes policy for use of city-owned infrastructure and city-managed public rights-of-way to enable the city to:

(1) Permit fair, reasonable, and non-discriminatory access to the available capacity on city-owned infrastructure located within the public right-of-way to the extent permitted by law;

(2) Safeguard the reliability and integrity of city-owned infrastructure located in the public right-of-way to the extent permitted by law;

(3) Comply with applicable federal, state, and local regulation as applied to city-owned infrastructure and city-managed public rights-of-way;

(4) Support cost-effective, optimal use of public resources and support economic development to the extent permitted by law;

(5) Manage the public right-of-way to protect the public health, safety, and welfare. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.30. - Authority over city-owned infrastructure and city-managed public rights-of-way.

(a) *The right to use city-owned infrastructure and city-managed public rights-of-way not granted by franchise.* The eligibility of a person to apply for or use city-owned infrastructure or city-managed public rights-of-way is governed by this chapter to the extent consistent with applicable federal, state, and local law. The grant of a franchise pursuant to the City Charter, the grant of permits pursuant to chapters 429 and 430 of this Code or the grant of rights under other authority provided by this Code is not a grant of an attachment permit or authorization for the use of city-owned infrastructure or city-managed public rights-of-way without compliance with this chapter.

(b) *Authority of the director.* The director shall operate, maintain, and control city-owned infrastructure and city-managed public rights-of-way, and administer this chapter. The director shall develop non-discriminatory policies and regulations to implement, administer, and enforce this chapter, which shall become effective following approval by the city council. The director may delegate the operation, maintenance, or control of specific types or units of city-owned infrastructure or city-managed public rights-of-way to another city department or unit if the director determines it is in the best interests of the city.

(c) *Priority of usage.* The city has priority of use of city-owned infrastructure.

(1) To the extent consistent with applicable federal, state, and local law, the director may determine that certain classes of city-owned infrastructure or specific units of city-owned infrastructure are necessary for the city's exclusive use due to legal, mechanical, structural, safety, environmental, service, or other requirements, and are unavailable for use by another person.

(2) City-owned infrastructure is the property of the city and a payment of fees or other charges to locate thereon made by a user does not create a right, title, or interest in city-owned infrastructure.

(3) This chapter does not require the city to replace, upgrade, or alter existing city-owned infrastructure or city-managed public rights-of-way to create additional capacity for an attachment or other installation of facilities. To the extent permitted by applicable federal, state, and local law, the city retains discretion as to use of city-owned infrastructure and city-managed public rights-of-way as to both current and subsequent requests to use any particular item of city-owned infrastructure.

(d) *Unauthorized use prohibited.* An applicant, user, or other party does not have the right to place an attachment on city-owned infrastructure or to place any facility in city-managed public right-of-way except as authorized by the director or as otherwise specifically provided by applicable federal, state, and local law. If an unauthorized attachment is discovered, the director may remove the unauthorized attachment from city-owned infrastructure without incurring liability to the owner, and at the owner's sole expense, if the owner of the unauthorized attachment does not:

(1) Remove the unauthorized attachment within three (3) business days; or

(2) Apply for permission to have the attachment on city-owned infrastructure within three (3) business days, including payment of applicable charges or penalties.

An attachment or other facility in city-managed public right-of-way can be removed immediately if necessary to protect public safety or prevent imminent damage to city-owned infrastructure. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.40. - Fees and charges.

(a) The city may recover its right-of-way management costs by imposing:

(1) A fee for registration;

(2) A fee for each right-of-way or small wireless facility permit, or, when appropriate;

(3) A fee applicable to a particular telecommunications right-of-way user when that user causes the local government unit to incur costs as a result of actions or inactions of that user.

The city shall not recover costs from a telecommunications right-of-way user or an owner of a cable communications system awarded a franchise under Minn. Statute, Chapter 238 caused by another entity's activity in the right-of-way.

(b) Fees, or other right-of-way obligations, imposed by the city on telecommunications right-of-way users under this section shall be:

(1) Based on the director's reasonable determination of the actual costs incurred by the city and affiliated agencies in managing the public right-of-way;

(2) Based on the director's reasonable determination of an allocation among all users of the public right-of-way, including the city itself and affiliated agencies, which shall reflect the proportionate costs imposed on the city and affiliated agencies by each of the various types of uses of the public rights-of-way;

(3) Imposed based on the director's reasonable determination based on a competitively neutral basis; and

(4) Imposed on the director's reasonable determination in a manner so that aboveground uses of public rights-of-way do not bear costs incurred by the city and affiliated agencies to regulate underground uses of public rights-of-way.

(c) The rights, duties, and obligations regarding the use of the public right-of-way imposed under this section shall be applied to all users of the public right-of-way, including the city and affiliated agencies, while recognizing regulation must reflect the distinct engineering, construction, operation, maintenance and public and worker safety requirements, and standards applicable to various users of the public rights-of-way. For users subject to the franchising authority of the city, to the extent those rights, duties, and obligations are addressed in the terms of an applicable franchise agreement, the terms of the franchise shall prevail over any conflicting provision in an ordinance.

(d) A communications services provider may collocate small wireless facilities on wireless support structures owned or controlled by the city and located within the public roads or rights-of-way managed by the city without being required to apply for or enter into any individual license, franchise, or other agreement with the city or any other entity, other than a standard small wireless facility collocation agreement prepared by the city pursuant to the authority of Minn. Statute, Section 237.163, subdivision 3a, paragraph (f).

(e) Any initial engineering survey and preparatory construction work associated with collocation must be paid by the cost causer in an amount reasonably determined by the director in the form of a one-time, nonrecurring, commercially reasonable, nondiscriminatory, and competitively neutral charge to recover the costs associated with a proposed attachment.

(f) Total application fees for a small wireless facility permit issued pursuant to this chapter shall comply with Minn. Statute, Section 237.163, subdivision 6 with respect to costs related to the permit.

(g) The director shall charge each small wireless facility attached to a wireless support structure owned by the city or affiliated agency a fee, in addition to other fees or charges allowed under Minn. Statute, Section 237.163, subdivision 6, consisting of:

(1) One hundred fifty dollars ($150.00) per year for rent to occupy space on a wireless support structure;

(2) Twenty-five dollars ($25.00) per year for maintenance associated with the space occupied on a wireless support structure; and

(3) A monthly fee for electricity used to operate a small wireless facility, if not purchased directly from a utility, at the rate of:

a. Seventy-three dollars ($73.00) per radio node less than or equal to one hundred (100) max watts;

b. One hundred eighty-two dollars ($182.00) per radio node over one hundred (100) max watts; or

c. The actual costs of electricity as reasonably estimated by the director, if the actual costs exceed the amount in item 451.40(g)(3)(a) or 451.40(g)(3)(b). (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.50. - Application to use city-owned infrastructure.

(a) *Authorized user.* A person permitted by applicable federal, state, or local law and any person who holds a valid permit, franchise or license to use or cross a city street, highway, or right-of-way will be granted an attachment permit for city-owned infrastructure or other wireless support structures if they meet the requirements of applicable federal, state and local law. A person who applies to use city-owned infrastructure for a private purpose will not be granted an attachment permit.

(b) *Application process.* An applicant must file an application with the city to use city-owned infrastructure as prescribed by the director. Subject to the availability of city-owned infrastructure capacity, the director shall consider each application on a first come, first served basis. If an application cannot be approved as presented, the director may approve a conditional application.

(c) *Additional costs.* The applicant or user is responsible for all costs as determined by the city to replace, enlarge, or upgrade city-owned infrastructure to accommodate the applicant's or user's proposed attachment. Examples may include, but are not limited to, a new pole to support new wireless device, wire and conduit connections, service cabinet changes, etc. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.60. - User's duties and responsibilities.

(a) *Compliance with law.* To the extent this requirement is not preempted or otherwise legally unenforceable, a use shall comply with all applicable federal, state, and local laws, rules, and regulations, city policies, the National Electrical Code, the National Electrical Safety Code, and applicable industry standards.

(b) *Operational and maintenance requirements.*

(1) A user shall install, and continuously operate and maintain an approved attachment to prevent interference with the city's facilities, the city's use of city-owned infrastructure, or the facilities or operations of other users.

(2) A user may not construe a contract, permit, correspondence, or other communication as affecting a right, privilege or duty previously conferred or imposed by the city to or on another person.

(3) A user shall trim trees, with the appropriate permissions of the Minneapolis Park and Recreation Board, as necessary for the safe and reliable operation, use, and maintenance of the user's attachments, as prescribed by the standards promulgated by the Minneapolis Park and Recreation Board, the city arborist, the director or other authority.

(4) A user may not co-lash or co-locate attachments without the prior written consent of the director and subject to the conditions the director reasonably requires or as otherwise provided by law.

(5) A user is solely responsible for the risk and expense of installation, operation, and maintenance of the user's attachments. The city does not warrant or represent that the city-owned infrastructure is suitable for placement of a user's attachments. A user shall submit a structural engineering analysis by a Minnesota registered professional engineer certifying that the pole or other structure that is proposed to support the attachment can reasonably support the proposed attachment considering the conditions of the street, the anticipated hazards from traffic to be encountered at the location and considering the wind, snow, ice and other conditions reasonably anticipated at the proposed location. A user shall inspect the city-owned infrastructure on which the user's attachments will be placed and shall base its determination of the suitability of the city-owned infrastructure for user's purposes on such inspection, on a structural engineering analysis by a Minnesota registered professional engineer certifying that the pole or other structure that is proposed to support the attachment can reasonably support the proposed attachment considering the conditions of the street, the anticipated hazards from traffic to be encountered at the location and considering the wind, snow, ice and other conditions reasonably anticipated at the proposed location. and upon such further information as the user determines is relevant. A user must accept the city-owned infrastructure "as is" and "where is" and assumes all risks related to the use. The city is not liable for any damage to attachment(s) due to an event of damage to the pole or premises.

(6) A user upon or within fourteen (14) calendar days after transfer, assignment, conveyance, or sublet of an attachment that changes the permit and/or billing entity or ownership responsibilities shall provide written notification to the city.

(7) The director shall prepare, with the assistance of the city attorney, a standard small wireless facility collocation agreement pursuant to Minn. Statute, Section 237.163, subdivision 3a, paragraph (f). This agreement shall, to the extent permitted by law, require that any user having its facilities in city right-of-way and on or in city-owned infrastructure placed within the right-of-way, agree to and shall, to the extent permitted by law, defend, indemnify and hold harmless the city, its employees, officers, agents and contractors against any claim of liability or loss of any kind, including administrative orders and regulations, and specifically including, without limitation, any claim of liability or loss from personal injury or property damage resulting from or arising out of the presence of user's equipment in city right-of-way or on city-owned infrastructure placed within the right-of-way and also as to any willful misconduct of the user, its employees, contractors or agents, except to the extent such claims or damages may be due to or caused by the willful misconduct of the city, or its employees, officers, contractors or agents. This agreement shall, to the extent permitted by law, require compliance with the requirements of this chapter and rules established pursuant to this chapter.

(8) The city shall not be liable to the user, or any of its respective agents, representatives, or employees for any lost revenue, lost profits, loss of technology, use of rights or services, incidental, punitive, indirect, special or consequential damages, loss of data, or interruption or loss of use of service, even if the city has been advised of the possibility of such damages, whether under theory of contract, tort (including negligence), strict liability or otherwise that is related to, arises out of, flows from or is, in some part, caused by user's attachment to or use of city-owned infrastructure.

(c) *Termination.*

(1) The city may immediately suspend the permission of a user to make new or additional attachments if the user materially fails to comply with the terms of its permit or collocation agreement if the city provides written notice to the user. If the user fails to cure the default on or before the sixtieth (60th) day after receipt of the notice, the city may terminate the user's permit.

(2) A user shall immediately begin removal of its attachments after termination of a user's permit for violations of the terms of the permit or collocation agreement. Unless the director grants an extension of time, a user must remove all attachments not later than the sixtieth (60th) day after the effective date of termination.

(3) After termination of a user's permit, the user must comply with the terms of this chapter until all attachments are removed. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

451.70. - Unauthorized attachments and facilities prohibited.

(a) No person shall knowingly affix, install, place, attach, maintain, or fail to remove an unauthorized attachment or other facility to city-owned infrastructure or city-managed public right-of-way or other property of the city on demand by the city or any authorized representative thereof.

(b) No person shall use an attachment or other facility on city-owned infrastructure or city-managed public right-of-way or other property of the city to provide a service not authorized by a city franchise, permit, license, or other authority.

(c) Each unauthorized attachment or use is a separate offense. Each day a violation of this chapter continues is a separate offense. (2015-Or-007, § 1, 4-17-15; Ord. No. 2017-039, § 2, 8-4-17)

Editor's note— Ord. No. 2017-039, § 2, adopted Aug. 4, 2017, repealed former § 451.70, which pertained to appeal to city council and derived from Ord. No. 2015-Or-007, § 1, adopted Apr. 17, 2015; and renumbered the subsequent § 451.80 as § 451.70 as herein set out.

451.80. - Small wireless facilities and wireless support structures as a permitted use.

The placement of small wireless facilities and wireless support structures to accommodate small wireless facilities are a permitted use in city-managed public right-of-way, except that the city may require a person to obtain a conditional use permit to install a new wireless support structure for the siting of a small wireless facility in a right-of-way in a district or area zoned for single-family residential use or within a historic district established by federal or state law or city ordinance as of the date of application for a small wireless facility permit. (Ord. No. 2017-039, § 2, 8-4-17)

451.90. - Small wireless facility permits.

(a) The director:

(1) Shall require a telecommunications right-of-way user to obtain a permit or permits under this section to place a new wireless support structure or collocate a small wireless facility in any city-managed public right-of-way;

(2) Shall not require an applicant for a small wireless facility permit to provide any information that:

a. Has previously been provided to the city by the applicant in an application for a small wireless permit, if the applicant provides specific reference to the place where the information sought by the director has been previously provided to the city; and

b. Is not reasonably necessary to review a permit application for compliance with generally applicable and reasonable health, safety, and welfare regulations, and to demonstrate compliance with applicable Federal Communications Commission regulations governing radio frequency exposure, or other information required by this section;

(3) Must ensure that any application for a small wireless facility permit is processed on a nondiscriminatory basis; and

(4) Must specify that the term of a small wireless facility permit is equal to the length of time that the small wireless facility is in use, unless the permit is revoked as provided by law.

(b) An applicant may file a consolidated permit application to collocate up to fifteen (15) small wireless facilities, or a greater number if agreed to by the director, provided that all the small wireless facilities in the application:

(1) Are located within a two (2) mile radius;

(2) Consist of substantially similar equipment; and

(3) Are to be placed on similar types of wireless support structures.

In rendering a decision on a consolidated permit application, the director may approve a permit for some small wireless facilities and deny a permit for others, but may not use denial of one (1) or more permits as a basis to deny all the small wireless facilities in the application.

(c) If the director receives applications within a single seven (7) day period from one (1) or more applicants seeking approval of permits for more than thirty (30) small wireless facilities, the director may extend the ninety (90) day deadline imposed in subdivision (3)(c) [subsection 451.110(b)] by an additional thirty (30) days. If the director elects to invoke this extension, the director must inform in writing any applicant to whom the extension will be applied.

(d) The director shall not require any person to pay a small wireless facility permit fee, obtain a small wireless facility permit, or enter into a small wireless facility collocation agreement solely in order to conduct any of the following activities:

(1) Routine maintenance of a small wireless facility;

(2) Replacement of a small wireless facility with a new facility that is substantially similar or smaller in size, weight, height, and wind or structural loading than the small wireless facility being replaced; or

(3) Installation, placement, maintenance, operation, or replacement of micro wireless facilities that are suspended on cables strung between existing utility poles in compliance with national safety codes.

The director shall require advance notification of these activities if the work will obstruct a public right-of-way. The director shall, upon request, refer the applicant to the appropriate official(s) to obtain appropriate lane use, obstruction, or other permits necessary to legally obstruct city-managed public right-of-way.

(e) Nothing in this chapter affects the need for an entity seeking to place a small wireless facility on a wireless support structure that is not owned by the city to obtain from the owner of the wireless support structure any necessary authority to place the small wireless facility, nor shall any provision of this chapter be deemed to affect the rates, terms and conditions for access to or placement of a small wireless facility or a wireless support structure not owned by a local government unit. This chapter does not affect any existing agreement between the city and an entity concerning the placement of small wireless facilities on city owned wireless support structures.

(f) No later than six (6) months after May 31, 2017, or three (3) months after receiving a small wireless facility permit application from a wireless service provider, the director shall, with the assistance of the city attorney, set forth terms and conditions of collocation in a standard small wireless facility collocation agreement. The director shall develop and make available a standard small wireless facility collocation agreement that complies with the requirements of Minn. Statute, Sections 237.162 and 237.163. The director shall draft and make available a standard small wireless facility collocation agreement that is substantially complete. Notwithstanding any state or local law to the contrary, the director and any applicant may incorporate additional terms and conditions mutually agreed upon into a small wireless facility collocation agreement. A small wireless facility collocation agreement between the city and a wireless service provider is considered public data not on individuals and is accessible to the public under Minn. Statute, Section 13.03.

(g) An approval of a small wireless facility permit under this section authorizes the installation, placement, maintenance, or operation of a small wireless facility to provide wireless service and shall not be construed to confer authorization to:

(1) Provide any service other than a wireless service; or

(2) Install, place, maintain, or operate a wireline backhaul facility in the right-of-way.

(h) The terms and conditions of collocation under this chapter:

(1) Shall be set forth in the small wireless facility collocation agreement prepared and made available by the director;

(2) The small wireless facility collocation agreement prepared by the director shall be nondiscriminatory, competitively neutral, and commercially reasonable; and

(3) The small wireless facility collocation agreement shall comply with Minn. Statute, Sections 237.162 and 237.163. (Ord. No. 2017-039, § 3, 8-4-17)

451.100. - Placement of small wireless facilities.

(a) The director shall not require the placement of small wireless facilities on any specific wireless support structure other than the wireless support structure proposed in the permit application. The director shall review each application for a specific location on its own merits and shall approve or deny each application pursuant to this chapter, Minnesota [Statutes,] Sections 237.162 and 237.163 and other applicable law.

(b) The director shall not limit the placement of small wireless facilities, either by minimum separation distances between small wireless facilities or maximum height limitations, except that each wireless support structure installed in the right-of-way after the effective date of this act shall not exceed fifty (50) feet above ground level, unless the director agrees to a greater height, subject to local zoning regulations, and may be subject to separation requirements in relating to other wireless support structures.

(c) Notwithstanding paragraph (b), a wireless support structure that replaces an existing wireless support structure that is higher than fifty (50) feet above ground level may be placed at the height of the existing wireless support structure, unless the director agrees to a greater height, subject to local zoning regulations.

(d) Wireless facilities constructed in the right-of-way after May 31, 2017, may not extend more than ten (10) feet above an existing wireless support structure in place as of May 31, 2017. (Ord. No. 2017-039, § 3, 8-4-17)

451.110. - Approval of small wireless facility permits.

(a) Except as provided in Minn. Statute, Section 237.163, subdivision 4, the director shall, pursuant to the provisions of this chapter, issue a small wireless facility permit to a telecommunications right-of-way user seeking to install a new or replacement wireless support structure for a small wireless facility, or to collocate a small wireless facility on a wireless support structure in a city-managed public right-of-way. In processing and approving a small wireless facility permit, the director shall condition its approval on compliance with:

(1) Generally applicable and reasonable health, safety, and welfare regulations consistent with the city's public right-of-way management;

(2) Reasonable accommodations for decorative wireless support structures or signs; and

(3) Any reasonable restocking, replacement, or relocation requirements when a new wireless support structure is placed in a public right-of-way.

(b) The director and all other city officials or departments have ninety (90) days after the date a small wireless facility permit application is filed to issue or deny the permit, or the permit is automatically issued pursuant to the terms of Minn. Statute, Section 237.163. To toll the ninety (90) day statutory clock, the director or other permit issuing authority must provide a written notice of incompleteness to the applicant within thirty (30) days of receipt of the application, clearly and specifically delineating all missing documents or information. Information delineated in the notice is limited to documents or information publicly required as of the date of application and reasonably related to the city's determination whether the proposed equipment falls within the definition of a small wireless facility and whether the proposed deployment satisfies all health, safety, and welfare regulations applicable to the small wireless facility permit request. Upon an applicant's submittal of additional documents or information in response to a notice of incompleteness, the city has ten (10) days to notify the applicant in writing of any information requested in the initial notice of incompleteness that is still missing. Second or subsequent notices of incompleteness may not specify documents or information that were not delineated in the original notice of incompleteness. Requests for information not requested in the initial notice of incompleteness do not toll the ninety (90) day clock. Parties can mutually agree in writing to toll the ninety (90) day clock at any time. Minn. Statute, Section 15.99 does not apply to this paragraph or paragraph (c).

For the purposes of this section, "toll the ninety (90) day clock" means to halt the progression of days that count towards the ninety (90) day deadline.

(c) Except as provided in Minn. Statute, Section 237.163, subdivision 3a, paragraph (c), a small wireless facility permit and any associated encroachment or building permit required by a local government unit, are deemed approved if the city fails to approve or deny the application within ninety (90) days after the permit application has been filed, unless the applicant and the city have mutually agreed in writing to extend the ninety (90) day deadline.

(d) Nothing in Minn. Statute, Section 237.163, subdivision 3a or in this chapter precludes the city from applying generally applicable and reasonable health, safety, and welfare regulations when evaluating and deciding to approve or deny a small wireless facility permit. Generally applicable health, safety, and welfare regulations for the purposes of this section specifically includes, without limitation, the following:

(1) The applicant shall submit a structural engineering analysis by a Minnesota registered professional engineer certifying that the pole or other structure that is proposed to support the attachment can reasonably support the proposed attachment considering the conditions of the street, the anticipated hazards from traffic to be encountered at the location and considering the wind, snow, ice and other conditions reasonably anticipated at the proposed location.

(2) The director may deny an application if the director determines based upon reasonable engineering judgment that the proposed attachment is of excessive size or weight or otherwise would, in the reasonable engineering judgment of the director, subject city-owned infrastructure to unacceptable levels of stress.

(3) The director may deny an application if the director reasonably determines in the director's reasonable engineering judgment that the proposed attachment would likely jeopardize the reliability or integrity of the electric system or of individual units of city-owned infrastructure, or would likely violate generally applicable electrical or engineering principles.

(4) The director may deny an application if the proposed attachment would present an unreasonable safety hazard as specifically and reasonably identified by the director.

(5) The director may deny an application if approval would impair the city's ability to operate or maintain city-owned infrastructure in a reasonable manner considering reasonable goals or standards for operating the infrastructure involved.

(6) The director may deny an application if there is insufficient capacity or placement of the attachment would violate the National Electric Safety Code or the city's standard design criteria, and the city infrastructure cannot reasonably be modified or enlarged at the cost of the applicant.

(7) If the director determines based upon a reasoned engineering judgment that a user's attachments impair the safety or structural integrity of city-owned infrastructure, the director may require the user, at user's sole expense and risk, to change, move, remove, or rearrange the attachments.

(8) The director may inspect, at any time, the construction or installation of a user's attachments on city-owned infrastructure. If the director determines that a user's installation or construction may violate this chapter, the National Electric Code, the National Electric Safety Code, the city's standards for the city-owned infrastructure involved, or the conditions of the user's application or permit, the director may suspend the user's construction or installation activities. The director shall send written notice to the user not later than the third business day after a suspension identifying the alleged violation. A suspension under this paragraph is effective until the user corrects the alleged violation, at the user's sole expense. A user may appeal a suspension under this subsection to the director of public works. (Ord. No. 2017-039, § 3, 8-4-17)

451.120. - Permit denial or revocation.

(a) The director may deny any application for a right-of-way or small wireless facility permit if the telecommunications right-of-way user does not comply with a provision of this chapter to the extent consistent with law.

(b) The director may deny an application for a right-of-way permit if the director determines that the denial is necessary to protect the health, safety, and welfare or when necessary to protect the public right-of-way and its current use.

(c) The director may revoke a right-of-way or small wireless facility permit granted to a telecommunications right-of-way user, with or without fee refund, in the event of a substantial breach of the terms and conditions of statute, ordinance, rule, or regulation or any material condition of the permit. A substantial breach by a permittee includes, but is not limited to, the following:

(1) A material violation of a provision of the right-of-way or small wireless facility permit;

(2) An evasion or attempt to evade any material provision of the right-of-way or small wireless facility permit, or the perpetration or attempt to perpetrate any fraud or deceit upon the local government unit or its citizens;

(3) A material misrepresentation of fact in the right-of-way or small wireless facility permit application;

(4) A failure to complete work in a timely manner, unless a permit extension is obtained or unless the failure to complete work is due to reasons beyond the permittee's control; and

(5) A failure to correct, in a timely manner, work that does not conform to applicable standards, conditions, or codes, upon inspection and notification by the director of the faulty condition.

(d) Subject to the other provisions of this chapter, the director may not deny an application for a right-of-way or small wireless facility permit for failure to include a project in a plan submitted to the city pursuant to Minn. Statute, Section 237.163, subdivision 2, paragraph (b), clause (3), when the telecommunications right-of-way user has used commercially reasonable efforts to anticipate and plan for the project.

(e) The director shall not unreasonably withhold approval of an application for a right-of-way or small wireless facility permit, or unreasonably revoke a permit.

(f) Any denial or revocation of a right-of-way or small wireless facility permit shall be made in writing and shall document the basis for the denial. The director shall notify the telecommunications right-of-way user in writing within three (3) business days of the decision to deny or revoke a permit. If a permit application is denied, the telecommunications right-of-way user may cure the deficiencies identified by the director and resubmit its application. If the telecommunications right-of-way user resubmits the application within thirty (30) days of receiving written notice of the denial, it shall not be charged an additional filing or processing fee. The director shall approve or deny the revised application within thirty (30) days after the revised application is submitted. (Ord. No. 2017-039, § 3, 8-4-17)

CHAPTER 452. - LINDEN HILLS SPECIAL SERVICE DISTRICT

Footnotes:

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***Editor's note—** Ord. No. 99-Or-055, § 1, adopted May 21, 1999, amended the Code by adding provisions designated as a new Ch. 452, §§ 452.10—452.100, to read as herein set out. See the Code Comparative Table. Ord. No. 2015-Or-032, § 1, adopted June 5, 2015, amended the title of Ch. 452 to read as herein set out. Said chapter was formerly titled "43rd Street West and Upton Avenue South Special Service District."*

452.10. - Establishment.

Pursuant to the authority granted by Laws of Minnesota 1996, Chapter 471, Article 8, Section 44, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by a line parallel to and three hundred twenty-two (322) feet southerly of the southerly line and its easterly extension of 42nd Street West, centerline of Sheridan Avenue South, northeasterly line and its northwesterly extension of Lot twenty-eight (28) in Block five (5) of First Division of Remington Park, southeasterly lines of Lots twenty-eight (28), twenty-seven (27) and twenty-six (26) in Block five (5) of First Division of Remington Park, northeasterly lines of Lots twenty-one (21) and twenty (20) in Block five (5) of First Division of Remington Park, southeasterly line and its southwesterly extension of Lot twenty (20) in Block five (5) of First Division of Remington Park, centerline of 43rd Street West, southeasterly line and its northeasterly and southwesterly extensions of Lot ten (10) in Block seven (7) of First Division of Remington Park, centerline of the former right-of-way of the Minneapolis, Lyndale and Minnetonka Railway as shown in First Division of Remington Park, southeasterly line and its northeasterly and southwesterly extensions of Lot nineteen (19) in Block eight (8) of First Division of Remington Park, centerline of 44th Street West and its westerly extension, centerline of Upton Avenue South and its southwesterly and northerly extensions, southerly line and its easterly extension of Lot four (4) in Block one (1) of Second Division of Remington Park, westerly lines of Lots four (4), three (3), two (2) and one (1) and the northerly extension of said westerly line of Lot one (1) in Block one (1) of Second Division of Remington Park, centerline of 44th Street West, a north-south line perpendicular to the southerly line of Block twenty-six (26) of First Division of Remington Park (which said north-south line passes through a point in the southerly line of Block twenty-six (26) of First Division of Remington Park distant one hundred (100) feet westerly of the southeasterly corner of Block twenty-six (26) of First Division of Remington Park), a line running from a point in the southerly line of Block twenty-six (26) of First Division of Remington Park distant one hundred (100) feet westerly of the southeasterly corner of Block twenty-six (26) of First Division of Remington Park to a point in the westerly line of Lot one (1) in Block twenty-six (26) of First Division of Remington Park (which said last mentioned point is also on a line parallel to and fifty (50) feet southwesterly of the northeasterly line of Block twenty-six (26) of First Division of Remington Park), westerly line and its northerly extension of Lot one (1) in Block twenty-six (26) of First Division of Remington Park, centerline of the former right-of-way of the Minneapolis, Lyndale and Minnetonka Railway as shown in First Division of Remington Park, northwesterly line and its southwesterly and northeasterly extensions of Lot seven (7) in Block twenty-five (25) of First Division of Remington Park, centerline of 43rd Street West, centerline and its southerly extension of Vincent Avenue South, northerly line and its westerly extension of Lot fifteen (15) in Block twenty-two (22) of First Division of Remington Park and westerly lines of Lots eleven (11), ten (10), nine (9), eight (8), seven (7) and six (6) in Block twenty-two (22) of First Division of Remington Park. (99-Or-055, § 1, 5-21-99)

452.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public area.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (99-Or-055, § 1, 5-21-99)

452.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 452.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (99-Or-055, § 1, 5-21-99; 2013-Or-019, § 1, 2-22-13)

452.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 452.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 452.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1999 for services rendered or to be rendered during the calendar years 1999 and 2000. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (99-Or-055, § 1, 5-21-99; 2013-Or-019, § 1, 2-22-13)

452.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 452.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (99-Or-055, § 1, 5-21-99; 2013-Or-019, § 1, 2-22-13)

452.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1999 for services rendered and to be rendered in the calendar years 1999 and 2000. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 452.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (99-Or-055, § 1, 5-21-99)

452.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (99-Or-055, § 1, 5-21-99; 2015-Or-032, § 2, 6-5-15)

452.80. - Limitation.

Taxes and service charges may be levied pursuant to this ordinance to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (99-Or-055, § 1, 5-21-99)

452.90. - Advisory board.

(a) An advisory board to be known as the Linden Hills Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even-numbered year, the first term to commence in 2000. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (99-Or-055, § 1, 5-21-99; 2010-Or-029, § 1, 4-16-10; 2015-Or-032, § 3, 6-5-15; Ord. No. 2021-010, § 4, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23; Ord. No. 2025-030, § 3, 7-24-25)

452.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (99-Or-055, § 1, 5-21-99)

CHAPTER 453. - RIVERVIEW SPECIAL SERVICE DISTRICT

453.10. - Establishment.

Pursuant to the authority granted by Laws of Minnesota 1996, Chapter 471, Article 8, Section 44, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by a line parallel to and eighty (80) feet northerly of the northerly line of 38th Street East (and its easterly and westerly extensions), centerlines and their southerly and northerly extensions of north-south alleys between 42nd Avenue South and 43rd Avenue South, southerly line and its easterly and westerly extensions of Lot twenty-five (25) in Block four (4) of "L.D. Richardson's 2nd Addition to Minneapolis", centerline of 42nd Avenue South, southerly line and its easterly and westerly extensions of Lot three (3) in Block one (1) of "Lawndale" and centerlines and their northerly and southerly extensions of north-south alleys between 41st Avenue South and 42nd Avenue South. (98-Or-067, § 1, 7-17-98)

453.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public area.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (98-Or-067, § 1, 7-17-98)

453.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 453.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (98-Or-067, § 1, 7-17-98; 2013-Or-020, § 1, 2-22-13)

453.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 453.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 453.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 1998 for services rendered or to be rendered during the calendar years 1998 and 1999. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (98-Or-067, § 1, 7-17-98; 2013-Or-020, § 2, 2-22-13)

453.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 453.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (98-Or-067, § 1, 7-17-98; 2013-Or-020, § 3, 2-22-13)

453.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided, however, that taxes may be levied in the year 1998 for services rendered and to be rendered in the calendar years 1998 and 1999. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 453.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (98-Or-067, § 1, 7-17-98)

453.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (98-Or-067, § 1, 7-17-98; 2015-Or-033, § 1, 6-5-15)

453.80. - Limitation.

Taxes and service charges may be levied pursuant to this ordinance to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (98-Or-067, § 1, 7-17-98)

453.90. - Advisory board.

(a) An advisory board to be known as the Riverview Special Service District Advisory Board consisting of six (6) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years beginning on January first of each odd-numbered year, the first term to commence January 1, 1999. All board members shall be appointed in conformance with the city's open appointments ordinance. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this ordinance, the city council may appoint a temporary advisory board consisting of six (6) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Riverview Special Service District Advisory Board from its date of appointment through December 31, 1998. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (98-Or-067, § 1, 7-17-98; Ord. No. 2023-054, § 2, 10-19-23)

453.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (98-Or-067, § 1, 7-17-98)

CHAPTER 454. - LOWRY HILL SPECIAL SERVICE DISTRICT

Footnotes:

*--- **(16)** ---*

Editor's note— *Ord. No. 2015-Or-034, § 1, adopted June 5, 2015, amended the title of Ch. 454 to read as herein set out. Said chapter was formerly titled "South Hennepin Avenue Special Service District."*

454.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded on the north by the north line of Lots 6 and 14, Block 32, Groveland Addition to Minneapolis and its extensions two hundred six (206) feet west of the west right-of-way line of Hennepin Avenue and forty-four (44) feet east of the west right-of-way line of Hennepin Avenue, and the centerline of Franklin Avenue West, extended two hundred (200) feet east from the centerline of Hennepin Avenue; bounded on the east by a line forty-four (44) feet east of the west right-of-way line of Hennepin Avenue from the easterly extension of the north line of Lot 6, Block 32, Groveland Addition to Minneapolis to the centerline of Franklin Avenue W and a line two hundred (200) feet east of the centerline of Hennepin Avenue from the centerline of Franklin Avenue W to the centerline of 28th Street West; bounded on the south by the centerline of 28th Street West extended two hundred (200) feet east from the centerline of Hennepin Avenue and extended West two hundred fifty (250) feet from the centerline of Hennepin Avenue; bounded on the west by a line two hundred fifty (250) feet west from the centerline of Hennepin Avenue, from the centerline of 28th Street West, to the centerline of Franklin Avenue West, and two hundred six (206) feet west from the west right-of-way line of Hennepin Avenue from the centerline of Franklin Avenue West to the north lot line of Lot 14, Block 32, Groveland Addition to Minneapolis. (2000-Or-028, § 1, 5-5-00)

454.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (2000-Or-028, § 1, 5-5-00)

454.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 454.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2000-Or-028, § 1, 5-5-00; 2013-Or-021, § 1, 2-22-13)

454.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 454.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 454.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2000 for services rendered or to be rendered during the calendar years 2000 and 2001. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2000-Or-028, § 1, 5-5-00; 2013-Or-021, § 2, 2-22-13)

454.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 454.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2000-Or-028, § 1, 5-5-00; 2013-Or-021, § 3, 2-22-13)

454.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided however, that taxes may be levied in the year 2000 for services rendered and to be rendered in the calendar years 2000 and 2001. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 454.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined without regard to captured or original assessed value under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08.

Property exempt from taxation by Minn. Statute, Section 272.02, shall be exempt from such tax. Taxes levied under this section shall not be reduced pursuant to Minn. Statute, Section 273.13, Subdivisions 7, 7d or 14a. (2000-Or-028, § 1, 5-5-00)

454.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2000-Or-028, § 1, 5-5-00; 2015-Or-034, § 2, 6-5-15)

454.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2000-Or-028, § 1, 5-5-00)

454.90. - Advisory board.

(a) An advisory board to be known as the Lowry Hill Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even numbered year, the first term to commence in 2001. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) Advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this ordinance, the city council may appoint a temporary advisory board consisting of nine (9) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as the Lowry Hill Special Service District Advisory Board from its date of appointment through December 31, 1995. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (2000-Or-028, § 1, 5-5-00; 2010-Or-030, § 1, 4-16-10; 2015-Or-034, § 3, 6-5-15; Ord. No. 2021-010, § 5, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

454.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (2000-Or-028, § 1, 5-5-00)

CHAPTER 455. - BLOCK EVENTS

> ***Footnotes:***
> *--- (**17**) ---*
> ***Editor's note—** Ord. No. 2023-070, § 2, adopted December 20, 2023, repealed the former Ch. 455, §§ 455.10—455.55, and enacted a new Ch. 455 as set out herein. The former Ch. 455 pertained to similar subject matter and derived from Ord. No. 82-Or-239, adopted Nov. 24, 1982; Ord. No. 82-Or-018, § 2, adopted Jan. 29, 1982.*

455.10. - Definitions.

As used in this chapter:

Block event shall mean a temporary gathering of people that is held on a blockaded portion of a one (1) or more contiguous blocks of a single street or alley within the city and for which attendance, whether free or for charge, is open to the public.

Block event, large shall mean a block event with expected attendance of at least two thousand five hundred (2,500) people.

Business district shall mean any area which is bordered at any point by property within the residential mixed-use districts, commercial mixed-use districts, downtown districts, production districts, or transportation districts, as delineated in the zoning code.

Chief of police shall mean the police chief of the police department, or their duly authorized designee.

City operations officer shall mean the city operations officer, or their duly authorized designee.

Director of public works shall mean the director of the public works department, or their duly authorized designee.

Director of regulatory services shall mean the director of the regulatory services department, or their duly authorized designee.

Residential district shall mean any area which is entirely bordered on both sides by properties within the urban neighborhood districts as delineated in the zoning code.

(Ord. No. 2023-070, § 2, 12-7-23)

455.20. - Permit required.

No person shall engage in, participate, aid, form or hold any block event, unless a permit therefor shall have been obtained from the city operations officer as herein provided.

(Ord. No. 2023-070, § 2, 12-7-23)

455.30. - Block event restrictions.

(a) The following restrictions apply to all block events:

(1) Block events may not be scheduled to take place within one (1) block of a polling place during the hours of voting;

(2) Block events may not take place:

a. On a block that is closed for construction;

b. On a block that is serving as a detour route for a previously scheduled event;

c. On a block that abuts a hospital or ambulance garage;

d. On a block that abuts a fire station unless the fire station has a secondary entrance that is not obstructed;

e. On a block that is designated as a snow emergency route if a snow emergency has been declared, unless the streets to be used for the block event have already been completely cleared; and

f. On a block when it is scheduled for street sweeping or other maintenance activities or when a maintenance emergency is occurring.

(3) Block events may not otherwise interfere with emergency activities.

(b) The following restrictions apply to block events in a residential district:

(1) Block events, including set up time, may be held only between the hours of 10:00 a.m. and 10:00 p.m.;

(2) Block events must not be held on any street designated as a county state-aid highway or municipal state-aid street, any street used as a bus route by a regional transit provider on a regular and scheduled basis, or any street under the jurisdiction of Hennepin County or the State of Minnesota;

(3) Large block events may not be held in a residential district;

(4) Block events may encompass no more than one (1) contiguous block of a single street or alley; and

(5) Block events must have an expected attendance of no more than five hundred (500) people.

(c) The following restrictions apply to block events in a business district:

(1) Block events, including set up time, may be held only between the hours of 6:00 p.m. and 10:30 p.m. on a weekday, or between 8:00 a.m. and 10:30 p.m. on a Saturday, Sunday, or legal holiday;

(2) Block events must have an expected attendance of at least two hundred and fifty (250) people;

(3) Large block events may be held on a street under the jurisdiction of the county or state, provided the appropriate state or county approvals have been obtained. Otherwise, block events must be held on a street under the jurisdiction of the city; and

(4) Except for large block events, block events may encompass no more than five (5) contiguous blocks of a single street or alley.

(Ord. No. 2023-070, § 2, 12-7-23)

455.40. - Application for block event permits.

(a) *Form.* Applicants seeking issuance of a block event permit shall file a complete application with the city operations officer in person, electronically, by facsimile, or by United States mail, on forms provided by the city.

(b) *Deadline for filing of application for block event permits.* Applicants seeking issuance of a block event permit shall file a complete application in accordance with the following deadlines:

(1) For block event permits in a residential district, not less than five (5) business days before the date of the event;

(2) For large block event permits in a business district, not less than sixty (60) days before the date of the event; and

(3) For all other block event permits in a business district, not less than fourteen (14) days before the date of the event.

(c) *Fees for application.* The fee for a block event permit application shall be as established in Appendix J, the License Fee Schedule and updated pursuant to Section 261.60 of this Code. Applicants shall pay the fee upon submission of an application. The fee is not refundable. Payment is due at the time of application, and an application will not be considered complete until the fee has been received by the city.

(Ord. No. 2023-070, § 2, 12-7-23)

455.50. - Review process for block event permit applications.

(a) *Review and conditions.* Upon receipt of a complete application for a block event permit, the city operations officer will refer the application to the following individuals for review of the following issues and recommendation of conditions:

(1) To the director of public works to determine if the application meets the requirements of this chapter, and to make recommendations regarding the applicant's traffic control and management plan, waste and recycling plan, and parking mitigation plan;

(2) To the chief of police to review and make recommendations concerning the security plan and traffic control and management plan; and

(3) To the director of regulatory services to review and make recommendations concerning the traffic control and management plan.

(b) *Notification of receipt of application.* Upon receipt of a complete application for a block event permit, the city operations officer shall notify the mayor and the council member(s) of the ward(s) affected.

(c) *Meeting.* Prior to approval of a block event in a business district, the applicant must attend a meeting with the city operations officer, the director of public works, the chief of police, and the director of regulatory services to review the conditions for approval of said permit.

(d) *Denial.* An application for a block event permit may be denied if:

(1) The block event would create an undue financial hardship upon the city;

(2) The proposed event does not comply with the applicable provisions of this chapter;

(3) The applicant or the applicant's organization has violated the provisions of this chapter within the previous eighteen (18) months;

(4) There have been two (2) or more incidents of assault or disorderly conduct at block events hosted by the applicant or the applicant's organization within the previous eighteen (18) months; or

(5) More than one (1) block event permit application is received and pending for the same date(s) in the same location or neighboring blocks. In such cases, any of the applications may be denied based on the following considerations:

a. Whether an applicant has previously held the same block event in the same location as the block event for which they seek a permit;

b. Whether an applicant has received permits for other block events in other areas within the previous twelve (12) months; and

c. The order in which the applications were received.

(e)

Appeal. Denial of a block event permit may be administratively appealed if requested in writing within five (5) business days of said action. The city operations officer shall provide the applicant due notice of a hearing within ten (10) days of an appeal request, and said notice shall specify the time, date, and location of the hearing, as well as any other requirements thereof.

(f) *Approval.* Upon completion of the review required hereby, the city operations officer shall approve the application with the conditions recommended, unless a basis for denial exists as described in this chapter.

(Ord. No. 2023-070, § 2, 12-7-23)

455.60. - Issuance of block event permits.

(a) *Notice and approval of block event.* A permit for a block event may be issued only after the applicant has filed the following with the city operations officer:

(1) Evidence that a notice has been provided to all occupants of property abutting the location of the block event, including a description of the block event, the date and hours of the block event, and the name, email address, and phone number of the applicant; and

(2) Written approval of the block event from seventy-five percent (75%) of the properties abutting the location of the block event. Where a property is occupied by multiple tenants or owners, a homeowners' association, tenant's association, building management association, or the like may grant a single approval on behalf of all occupants of the property.

(b) *Insurance and indemnification.* A permit for a block event may be issued only after the applicant has filed with the city operations officer evidence of a commercial general liability insurance policy providing coverage in the amount of at least one million dollars ($1,000,000.00) general aggregate and one million dollars ($1,000,000.00) per occurrence, providing for the payment by the insurance company on behalf of the insureds of all sums which the insureds shall become obligated to pay by reason of liability imposed upon them by law for injuries or damages to persons or properties arising out of the activities and operations of the insureds pursuant to the provisions of this chapter. The city shall be named as an additional insured on the policy. Applicants shall defend and hold the city harmless from all claims, demands, actions, or causes of action, of whatsoever nature or character, including damages to city property, arising out of or by reason of conduct of block events, including attorney fees and all expenses.

(c) *Security deposit.* A permit for a block event in a business district may be issued only after the applicant has filed with the city operations officer a security deposit as established in Appendix J, the License Fee Schedule and updated pursuant to Section 261.60 of this Code. If the applicant fails to comply with the requirements of Section 455.70(h) of this code to the satisfaction of the city operations officer, the security deposit will be forfeited to the city. Otherwise, the security deposit shall be returned to the applicant.

(d) *Issuance.* Upon approval of an application for a block event permit and satisfaction of the provisions of this section, the city operations officer shall issue the block event permit.

(Ord. No. 2023-070, § 2, 12-7-23)

455.70. - Operation of Block Events.

(a) *Timing.* A block event may only be held on the date(s) specified on the permit.

(b) *Other approvals.* Applicants will be responsible for obtaining all permits and licenses required for activities to be conducted as part of block events.

(c) *Compliance with permit conditions.* Applicants will operate block events in accordance with the provisions of their block event permits.

(d) *Access aisle.* Applicants shall maintain an unobstructed aisle at least fourteen (14) feet wide within the block event to permit the entrance and exit of emergency vehicles.

(e) *Barricades.* Applicants shall provide, install, and remove barricades, signs, and delineation equipment for block events in accordance with a city-approved traffic control and management plan.

(f) *Restriction of Parking.* For block events in a business district, "No Parking" signs will be posted by the city within the event space. Within ten (10) business days following receipt of city invoice, the applicant must reimburse the city for the cost of installing and removing said signage.

(g) *Personnel.*

(1) For all block events, trained city staff or trained personnel shall perform on-site traffic-management duties at all intersections where traffic crosses the block event space, in accordance with the requirements of a city-approved traffic control and management plan. Any certification or training for traffic control management must be approved by the director of regulatory services. During the term of the block event, these individuals shall be deemed authorized persons for purposes of Section 466.140 of this Code, with respect to duties performed as required by the permit; and

(2) For all block events, trained city staff shall perform on-site traffic-management duties on detour routes, where necessary, in accordance with the requirements of a city-approved traffic control and management plan.

(3) Within ten (10) business days following receipt of city invoice, the applicant must reimburse the city for the cost of city staff's performance of on-site traffic-management duties.

(4) For all block events, applicants shall provide on-site personnel to:

a. Administer the event, in accordance with the requirements of their permit;

b. Perform event security duties, in accordance with a city-approved security plan;

c. Monitor the barricades at all intersections not requiring traffic-management personnel, in accordance with the requirements of their permit.

(h) *Refuse and recycling.*

(1) Waste handling at an event is required independent of any permanently placed containers, unless otherwise approved by the manager of said permanently placed containers and in the applicant's city-approved waste and recycling plan.

(2) The applicant must, throughout the event and within the three-hour period immediately following the end of a block event, clean up, remove, and dispose of all litter, garbage and recyclable materials associated with the block event which is placed or left on the street or sidewalk of the block(s) on which the event is held and also on any of the immediately adjacent blocks. Additional time for cleanup may be granted to large block event permits.

(3) When food and beverages are dispensed, block event applicants are encouraged to use supplies made of compostable materials and to collect and deliver all compostable materials to an approved composting or processing facility.

(4) All applicants for block events shall provide for the collection and processing of recyclable material separate from non-recyclable materials, in accordance with a city-approved waste and recycling plan. In furtherance of this requirement, recyclable material collection containers must be equal in number to collection containers for garbage and must be situated within five (5) feet thereof during the block event. Signage shall be placed on all collection containers for patrons to easily separate recyclable materials from garbage.

(5) Applicants may be granted an exemption from providing one-to-one garbage and recycling with a city-approved zero waste plan. In the plan, applicants must ensure vendors are uniform in their use of recyclable or compostable materials and that collection containers are available for all recyclable and compostable materials generated at the event. All compostable materials must be delivered to an approved composting or processing facility.

(6) Within ten (10) business days following a large block event, the applicant must submit to the city proof of weights and delivery locations for all garbage and recyclable and compostable materials collected at the event.

(Ord. No. 2023-070, § 2, 12-7-23)

455.80. - Revocation of permit.

A block event permit may be revoked for any violation of this chapter or in the event of an emergency constituting an imminent threat to life or property.

(Ord. No. 2023-070, § 2, 12-7-23)

455.90. - Effective date.

This chapter shall be effective January 1, 2024.

(Ord. No. 2023-070, § 2, 12-7-23)

CHAPTER 456. - FRANKLIN AVENUE EAST SPECIAL SERVICE DISTRICT

456.10. - Establishment.

Pursuant to the authority granted by the legislature in Laws of Minnesota, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except that portion consisting of those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

A line one hundred twenty (120) feet north of the north right-of-way line of Franklin Avenue East and one hundred twenty (120) feet south of the south right-of-way line of Franklin Avenue East, extending from the centerline of Chicago Avenue South to the northerly extension of the centerline of 16th Avenue South, that lies south of Franklin Avenue East. (2000-Or-007, § 1, 2-18-00)

456.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on public right-of-way. (2000-Or-007, § 1, 2-18-00)

456.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 456.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2000-Or-007, § 1, 2-18-00; 2013-Or-022, § 1, 2-22-13)

456.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 456.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 456.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2000 for services rendered or to be rendered during the calendar years 2000 and 2001. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2000-Or-007, § 1, 2-18-00; 2013-Or-022, § 2, 2-22-13)

456.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 456.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2000-Or-007, § 1, 2-18-00; 2013-Or-022, § 3, 2-22-13)

456.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this ordinance for the next ensuing calendar year; provided however, that taxes may be levied in the year 2000 for services rendered and to be rendered in the calendar years 2000 and 2001. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 456.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minn. Statute, Section 273.76, or to the distribution or contribution value under Minn. Statute, Section 473F.08. (2000-Or-007, § 1, 2-18-00)

456.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2000-Or-007, § 1, 2-18-00; 2015-Or-035, § 1, 6-5-15)

456.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2000-Or-007, § 1, 2-18-00)

456.90. - Advisory board.

(a) An advisory board to be known as the Franklin Avenue East Special Service District Advisory Board consisting of nine (9) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even numbered year, the first term to commence in 2001. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) Advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this ordinance, the city council may appoint a temporary advisory board consisting of nine (9) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as the Franklin Avenue East Special Service District Advisory Board from its date of appointment through December 31, 1995. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10.(2000-Or-007, § 1, 2-18-00; 2010-Or-031, § 1, 4-16-10; Ord. No. 2023-054, § 2, 10-19-23)

456.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302 as amended, and this ordinance shall be construed consistently therewith. (2000-Or-007, § 1, 2-18-00)

CHAPTER 457. - 48TH & CHICAGO SPECIAL SERVICE DISTRICT

Footnotes:
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Editor's note— *Ord. No. 2021-010, § 6, adopted Feb. 26, 2021, amended the title of Ch. 457 from "48th Street East and Chicago Avenue South Special Service District" to "48th & Chicago Special Service District," as herein set out.*

457.10. - Establishment.

Pursuant to the authority granted by Laws of Minnesota, 1996, Chapter 471, Article 8, Section 44, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

Beginning at a point at the centerline of 47th St E and the northerly extension of the centerline of the alley in Block 1, Belmont Park Addition, then East along said centerline to the northerly extension of the centerline of the alley in Block 6, Shenandoah Terrace; Then South along said centerline of the alley to the South lot line of Lot 19, Block 7, Shenandoah Terrace; Then West along said South lot line and it's westerly extension, to the South lot line of Lot 8 Block 1, Dunsmoor's Fifth Addition; Then continuing West to the centerline of the alley in Block 1, Dunsmoor's Fifth Addition; Then North along the centerline of said alley to the point of beginning. (2001-Or-047, § 1, 4-6-01)

457.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.

(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(d) Poster and handbill removal.

(e) Repair and maintenance of sidewalks.

(f) Installation and maintenance of area-wide security systems.

(g) Provision and coordination of security personnel to supplement regular city personnel.

(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(i) Installation, maintenance, and removal of lighting on commercial area trees.

(j) Cost of electrical service for pedestrian and tree lighting.

(k) Repair of low-level pedestrian lights and poles.

(l) Provision of comprehensive liability insurance for public space improvements.

(m) Trash removal and recycling costs.

(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(o) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way. (2001-Or-047, § 1, 4-6-01)

457.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 457.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2001-Or-047, § 1, 4-6-01; 2013-Or-023, § 1, 2-22-13)

457.40. - Imposition of service charge; levy.

The service charges shall be levied annually prior to November thirtieth upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 457.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 457.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2001 for services rendered or to be rendered during the calendar years 2001 and 2002. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them.

The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.

(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.

(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2001-Or-047, § 1, 4-6-01; 2013-Or-023, § 2, 2-22-13)

457.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 457.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2001-Or-047, § 1, 4-6-01; 2013-Or-023, § 3, 2-22-13)

457.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2001 for services rendered and to be rendered in the calendar years 2001 and 2002. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 457.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2001-Or-047, § 1, 4-6-01)

457.70. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2001-Or-047, § 1, 4-6-01; 2015-Or-036, § 1, 6-5-15)

457.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2001-Or-047, § 1, 4-6-01)

457.90. - Advisory board.

(a) An advisory board to be known as the 48th & Chicago Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years each even-numbered year, the first term to commence in 2002. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this chapter, the city council may appoint a temporary advisory board consisting of five (5) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the 48th Street East and Chicago Avenue South Special Service District Advisory Board from its date of appointment through December 31, 2001. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10.(2001-Or-047, § 1, 4-6-01; 2010-Or-032, § 1, 4-16-10; Ord. No. 2021-010, § 7, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

457.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302, and this chapter shall be construed consistently therewith. (2001-Or-047, § 1, 4-6-01)

CHAPTER 458. - HENNEPIN THEATRE DISTRICT SPECIAL SERVICES DISTRICT

458.10. - Establishment.

Pursuant to the authority granted by, Laws of Minneapolis, 1985, Chapter 302 as amended in Laws of Minnesota, 1993, Chapter 375 and in Laws of Minnesota, 1995, Chapter 264, Laws of Minnesota, 1988, Chapter 719, Article 17, and Minn. Statute, Chapter 428A there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

That part of Minneapolis bounded by seventy-five (75) feet either side of the following described line:

Commencing at the centerline intersection of Hennepin Avenue and 5th Street; thence southwesterly along said centerline of Hennepin Avenue to the point of intersection with the centerline of 10th Street and there terminating. Excepting therefrom the following described tract of land:

Commencing at the centerline intersection of said Hennepin Avenue and 6th Street; thence southwesterly along centerline of said Hennepin Avenue to the point of intersection with the centerline of 7th Street; thence northwesterly along centerline of said 7th street for a distance of seventy-five feet; thence northeasterly parallel to the centerline of said Hennepin Avenue to the point of intersection with the centerline of said 6th Street; thence southeasterly along centerline of said 6th Street to the point of commencement and there terminating. (2002-Or-049, § 1, 6-7-02)

458.20. - Services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city:

(a) Snow and ice removal and sanding of public areas.
(b) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.
(c) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.
(d) Poster and handbill removal.
(e) Repair and maintenance of sidewalks.
(f) Installation and maintenance of area-wide security systems.
(g) Provision and coordination of security personnel to supplement regular city personnel.
(h) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.
(i) Installation, maintenance, and removal of lighting on commercial area trees.
(j) Cost of electrical service for pedestrian and tree lighting.
(k) Repair of low-level pedestrian lights and poles.
(l) Provision of comprehensive liability insurance for public space improvements.
(m) Trash removal and recycling costs.
(n) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.
(o) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way. (2002-Or-049, § 1, 6-7-02)

458.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 458.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2002-Or-049, § 1, 6-7-02; 2013-Or-024, § 1, 2-22-13)

458.40. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 458.60 hereof, will equal the estimated total costs of the city in providing the services referred to in section 458.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2002 for services rendered or to be rendered during the calendar years 2002 and 2003. Prior to imposing the service charges the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in two (2) separate publications of the city's official newspaper one (1) week apart and the public hearing shall not be held less than three (3) days after the later publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them. The notice of public hearing shall include:

(a) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding the proposed service charge.
(b) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year.
(c) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing service charges within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2002-Or-049, § 1, 6-7-02; 2013-Or-024, § 2, 2-22-13)

458.50. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 458.40, any person aggrieved may appeal to the district court by serving a notice of appeal upon with mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2002-Or-049, § 1, 6-7-02; 2013-Or-024, § 3, 2-22-13)

458.60. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2002 for services rendered and to be rendered in the calendar years 2002 and 2003. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 458.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2002-Or-049, § 1, 6-7-02)

458.70. - Revenue surplus of deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or
(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or
(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or
(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2002-Or-049, § 1, 6-7-02; 2015-Or-037, § 1, 6-5-15)

458.80. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2002-Or-049, § 1, 6-7-02)

458.90. - Advisory board.

(a) An advisory board to be known as the Hennepin Theatre District Special Services District Advisory Board consisting of five (5) members, who are residents of the district or owners of property within the district, shall be appointed by the city council for terms of two (2) years beginning in 2003. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2 Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.
(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.
(d) Upon or after the effective date of this chapter, the city council may appoint a temporary board consisting of five (5) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Hennepin Theatre Special Service District Advisory Board from its date of appointment through December 31, 2001. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (2002-Or-049, § 1, 6-7-02; 2010-Or-033, § 1, 4-16-10; Ord. No. 2023-054, § 2, 10-19-23)

458.100. - Definitions and construction.

The terms used herein shall be defined as provided in Laws of Minnesota, 1985, Chapter 302, and this chapter shall be construed consistently therewith. (2002-Or-049, § 1, 6-7-02)

CHAPTER 459. - CHICAGO AVENUE MALL

459.10. - Findings.

The city council hereby finds that Chicago Avenue (formerly 8th Avenue South) between West River Parkway and Second Street South in the City of Minneapolis is not a part of any state highway, is located primarily in a central business district of the city, is being improved to its maximum width for roadway and sidewalk purposes, and is or would have been congested during all or some substantial part of normal business hours; that reasonably convenient alternate routes exist for private vehicles to other parts of the city and state; that unlimited use of such part of Chicago Avenue by private vehicles would have endangered the safety of pedestrians; that properties abutting such part of Chicago Avenue can reasonably and adequately receive and deliver merchandise and materials from other streets and alleys or by reason of provision herein made for limited use of part of such street by carriers of merchandise and materials; that it would be in the best interests of the city and the public and of benefit to adjacent and nearby properties to use such part of Chicago Avenue primarily for pedestrian purposes; and that pedestrian use is the highest and best use of such part of Chicago Avenue. (2005-Or-078, § 1, 9-2-05)

459.20. - Authority; designation as pedestrian mall.

Pursuant to the provisions of Chapter 430 and Section 450.31, Minn. Statute, the city council hereby designates Chicago Avenue (formerly 8th Avenue South) and the extension thereof from the south side of West River Parkway to the north side of South Second Street (hereinafter call "Chicago Avenue Mall") in the City of Minneapolis as a pedestrian mall. (2005-Or-078, § 1, 9-2-05)

459.30. - Vehicle use regulations.

Except as herein provided, vehicles shall not use the Chicago Avenue Mall. This use limitation does not apply to vehicles on the streets intersecting Chicago Avenue Mall.

(a) *Area-wide exception.* The following classes of vehicles may enter upon and use the Chicago Avenue Mall, subject, however, to the further provisions of this chapter and general laws and ordinances applicable to the use of streets of the city:
  (1) *Emergency vehicles:* Public police and fire vehicles and public and private ambulances;
  (2) *Public works vehicles:* Public street repair and construction vehicles and equipment, public street cleaning and snow removal vehicles and equipment, public water and sewer repair and construction vehicles and equipment, and public vehicles and equipment engaged in construction, service and repair of any other public utility facility; and
  (3) *Bicycles:* Any device propelled by human power upon which a person may ride, having two (2) tandem wheels either of which is over fourteen (14) inches in diameter, or any device generally recognized as a bicycle though equipped with two (2) front or rear wheels or a unicycle. Such vehicles shall not travel at a speed greater than ten (10) miles per hour.
(b) *Driveway access.* The part of the Chicago Avenue Mall generally lying within the northwest forty-eight (48) feet of the southwesterly one hundred seventy-eight (178) feet of the Chicago Avenue Mall is hereby designated as a driveway and shall be clearly posted as such. Motor vehicles may use the driveway to enter or leave the Humboldt Lofts parking facility and service alley. Motor vehicles, including refuse haulers, engaged in delivery of merchandise and materials to or from the property abutting the northwest side of the Chicago Avenue Mall also may use the driveway. Vehicles conducting such operations shall not stop, stand or park within the driveway.
(c) *Temporary special access permit.* The owner or occupant of any property abutting on the Chicago Avenue Mall must apply for a special access permit to use vehicles and equipment on the Chicago Avenue Mall in connection with constructing, maintaining, removing or changing improvements to the property or in other unusual cases. Similarly, the owners of private utility facilities must apply for a special access permit to use vehicles and equipment on the Chicago Avenue Mall for the installation, maintenance and repair of gas, electric, cable, telephone telecommunications or other types of private utility facilities. Nothing herein shall restrict access for the purpose of conducting emergency repairs to existing facilities. The director of public works may grant or deny the permit and specify such reasonable conditions and requirements in connection therewith as the director of public works deems necessary or desirable in conformity with Chapters 429 and 430 of this Code. (2005-Or-078, § 1, 9-2-05; Ord. No. 2017-066, § 13, 11-3-17)

459.40. - No initial assessment.

The city has constructed improvements to the Chicago Avenue Mall. These improvements include concrete pavement and stairs, bollards, light fixtures and interpretive features. No property shall be subject to assessment for initial construction costs of such improvements. Operation, maintenance and annual improvements costs of the Chicago Avenue Mall, however, may be assessed pursuant to and under the authority granted by Chapter 430 and Section 450.31, Minn. Statute. (2005-Or-078, § 1, 9-2-05)

459.50. - Improvement district.

The city council hereby finds and determines that the Chicago Avenue Mall will involve annual costs to operate, maintain and improve and that a portion of such annual costs will provide benefits primarily to adjacent property rather than to the city as a whole. Therefore, the Chicago Avenue Mall improvements and facilities shall be operated, maintained and improved under Section 430.101, Minn. Statute, as amended, and the costs thereof assessed or taxed to benefited properties under Section 430.102, Minn. Statute, as amended, as follows:

(a) *Operation and maintenance costs.* The city will operate and maintain the Chicago Avenue Mall at a level commensurate with a typical downtown street and may, with the input of the advisory board created under Section 459.90 of this Code, agree to provide additional annual maintenance. In the event such additional maintenance is provided, the costs thereof will be assessed and taxed to benefited properties pursuant to Section 430.102, Minn. Statute, as amended.

(b) *Annual improvements costs.* If the city, with input from the advisory board, agrees to provide any annual improvements to the Chicago Avenue Mall, the costs thereof shall be assessed and taxed to benefited properties pursuant to Section 430.102, Minn. Statute, as amended. At such time that the Chicago Avenue Mall requires replacement or renovation, the city will fund that portion of the costs that would be comparable to the replacement or renovation costs of Chicago Avenue had it been improved as a downtown street. The abutting property owners on the northwest side of the Chicago Avenue Mall that benefit from the driveway access provided in Section 459.30(b) will be assessed an amount comparable to the cost to replace or renovate a driveway to Second Street South. Any remaining amount will be assessed and taxed to benefited properties pursuant to Section 430.102, Minn. Statute, as amended.

(c) *Description of district properties.* The following properties shall be subject to assessment and taxation for operation, maintenance and annual improvement costs: Lot 1, Block 1, Guthrie; Unit Numbers 1 through 8, Common Interest Community No. 1114 (Mill City); Lot 12, Auditor's Subdivision No. 39, except that part included in Common Interest Community No. 1114; and all units, Common Interest Community No. 1111 (Humboldt Lofts). Such area shall have the name and may be referred to in all official proceedings as "Chicago Avenue Pedestrian Mall Improvement District." (2005-Or-078, § 1, 9-2-05)

459.60. - Retention of police powers.

Nothing herein contained shall be interpreted or construed to be a vacation, in whole or in part, of any city street or part therein, and the city council shall retain all police powers and other rights and powers on the Chicago Avenue Mall. (2005-Or-078, § 1, 9-2-05)

459.70. - Uses, activities permitted.

The following uses or activities are permitted on the Chicago Avenue Mall to the extent they do not impair the driveway access provided in section 459.30(b) of this Code:

(a) Decorations, banners, etc., when a part of an overall Minneapolis Riverfront District or Mill Quarter promotion or display, subject to compliance with Chapter 449 of this Code.

(b) Decorative waste containers, planters, seating, interpretive and/or wayfinding signage, holiday decorations, bouquets, art works, when authorized by permit granted by the director of public works under Chapter 95 of this Code.

(c) Sidewalk cafes or restaurants, when authorized by permit granted by regulatory services pursuant to Chapter 265 of this Code.

(d) Farmers, arts/crafts and other markets, when authorized by permit granted by regulatory services pursuant to Chapter 265 of this Code.

(e) Theatrical, musical or other performances, subject to arts commission review and permit granted by the director of public works under Chapter 95 of this Code and in compliance with all laws, ordinances and resolutions governing noise.

(f) Block parties as defined in section 455.10 of this Code where block party is of a citywide nature and when authorized by regulatory services pursuant to Chapter 455 of this Code. To the extent authorized in any such permit, the permittee may sell beer, food or food products and goods or merchandise on the public way or public highway notwithstanding the provisions of sections 186.40, 368.40 and 427.130 of this Code.

(g) Sidewalk cart food vendors, when licensed and operated in accordance with Chapter 188 of this Code. The city council will also establish a reasonable fee to be charged each sidewalk food vendor located in the Chicago Avenue Mall, to defray the cost of mall cleanup and maintenance and other policing in connection with such license.

(h) Sidewalk cart flower vendors when licensed and operated in accordance with Chapter 331 of this Code.

(i) Organized events that identify and promote commercial, cultural, educational and/or institutional activities within the pedestrian mall district, when authorized by permit granted by the director of public works pursuant to Chapter 440 of this Code. (2005-Or-078, § 1, 9-2-05; Ord. No. 2017-066, § 14, 11-3-17)

459.80. - Uses and activities prohibited.

The following uses and activities are prohibited on the Chicago Avenue Mall:

(a) Parades unless permitted under Section 459.70(i) of this Code.

(b) Solicitations as defined in Chapter 333, Article I of this Code.

(c) Street displays and/or sales of souvenirs or other merchandise, except as specified in section 459.70 of this Code.

(d) Other uses not specifically authorized by section 459.70 shall be prohibited; provided, however, and subject to all other valid and enforceable legal limitations and regulations by federal and state statutes, the City Charter and ordinances, or other legal limitations, the liberty of all persons to speak, write and publish their ideas and beliefs, including religious and political ideas, shall not be abridged, subject to the criminal and civil liability of persons for any abuse of such liberty. This section (d) shall not relieve or excuse any person from compliance with any law or regulation with respect to protection of the public health, safety or welfare, nor shall it permit the use of words, language or conduct likely to incite violence or public disturbance, or causing obstruction or interference with pedestrian or vehicular traffic, or interference with normal use of the roadway or sidewalks, or any conduct constituting a public or private nuisance. (2005-Or-078, § 1, 9-2-05)

459.90. - Advisory board.

(a) The city council hereby creates a five-person advisory board for the Chicago Avenue Mall. The advisory board shall consist of one (1) representative from the general public who is a resident, property or business owner, or employee within the Downtown East neighborhood, and four (4) owners or occupants of properties abutting the Chicago Avenue Mall or their representatives. The Downtown Minneapolis Neighborhood Association may nominate the Downtown East representative and any owner of abutting property may nominate a representative. Nominations shall be submitted to the city clerk at least sixty (60) days prior to the end of expiring terms or promptly after a vacancy is created by resignation or other cause. The city council shall appoint the board members to two-year terms, beginning on January first of each odd-numbered year; provided, however, that the first board members shall have terms commencing upon appointment and expiring January 1, 2009. Appointments are not subject to the city's open appointments ordinance. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the director of public works and the city council on improvements to the Mall, operation and maintenance of the Mall, and guidelines for use of the Mall, among other things. It may also provide input on activity permits and complaints as set forth in sections 459.100 and 459.110 below. The director of public works will select an employee of the department of public works to staff the advisory board. (2005-Or-078, § 1, 9-2-05; Ord. No. 2017-066, § 15, 11-3-17)

459.100. - Procedure for activity permits.

Requests for permits or licenses for activities described in section 459.70 hereof on the Chicago Avenue Mall shall be submitted in writing to the director of public works or other appropriate department, and shall be forwarded by the director of public works or other appropriate department to the advisory board. The advisory board shall transmit to the director of public works or other appropriate department any recommendations as to such requests within ten (10) days after receipt. The advisory board may establish guidelines that will identify which types of permits and licenses the city may grant without notification of and/or input from the advisory board. (2005-Or-078, § 1, 9-2-05; Ord. No. 2017-066, § 16, 11-3-17)

459.110. - Complaints.

Complaints from the public and from owners and occupants of adjoining property regarding the operation and maintenance of the Chicago Avenue Mall shall likewise be submitted to the director of public works, and referred by the director of public works to the advisory board, which shall promptly consider them and report to the director of public works their recommendations regarding such complaints. (2005-Or-078, § 1, 9-2-05; Ord. No. 2017-066, § 17, 11-3-17)

459.120. - Filing, amendment of plan.

This plan for operation and regulation of the Chicago Avenue Mall shall be filed with the city clerk and open to inspection. It may be amended from time to time by ordinance as the city council may determine. (2005-Or-078, § 1, 9-2-05)

459.130. - Effective date.

This ordinance shall be effective September 30, 2005. (2005-Or-078, § 1, 9-2-05)

CHAPTER 460. - BLOOMINGTON-LAKE SPECIAL SERVICE DISTRICT

460.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, Section 428A.01 through 428A.10, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide services of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

Commencing at centerline intersection of said Lake Street and 12th Avenue South; thence Southerly 90 feet along 12th Avenue South; thence Easterly from center line of 12th Avenue South and parallel to center line of Lake Street to center line of Cedar Avenue South; thence Northerly to 90 feet north of center line Lake Street; thence Easterly and parallel to Lake Street to the centerline of 12th Avenue South; thence Southerly to beginning Lake Street and 12th Avenue South to the point of commencement and there terminating. (2007-Or-013, § 1, 2-9-07)

460.20. - Special services to be performed.

Within the special service district, the city may perform any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city unless an increased level of the service is provided in the special service district:

(1) Snow and ice removal and sanding of public areas.

(2) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(3) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(4) Poster and handbill removal.

(5) Repair and maintenance of sidewalks.

(6) Installation and maintenance of area-wide security systems.

(7) Provision and coordination of security personnel to supplement regular city personnel.

(8) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(9) Installation, maintenance, and removal of lighting on commercial area trees.

(10) Cost of electrical services for pedestrian and tree lighting.

(11) Repair of low-level pedestrian lights and poles.

(12) Provision of comprehensive liability insurance for public space improvements.

(13) Trash removal and recycling costs.

(14) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(15) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way. (2007-Or-013, § 1, 2-9-07)

460.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 460.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2007-Or-013, § 1, 2-9-07; 2013-Or-025, § 1, 2-22-13)

460.40. - Notice of veto power.

Within five (5) days after adoption of this chapter, the city clerk shall mail a summary of this chapter to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge. The notice must meet the requirements of Minn. Statute Chapter 428A, section .09. (2007-Or-013, § 1, 2-9-07)

460.50. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 460.70 hereof, will equal the estimated total costs of the city in providing the services referred to in section 460.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2006 for services rendered or to be rendered during the calendar years 2006 and 2007. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in at least two (2) separate publications of the city's official newspaper two (2) weeks apart and the public hearing shall not be held less than three (3) days after the last publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the area of the proposed district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. Other records may be used to supply the necessary information. Notices must be provided as required by the applicable notice provisions of Minn. Statute, Chapter 428A. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them. The notice of public hearing shall include:

(1) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding a proposed service charge;

(2) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year in which the service charge is to be collected;

(3) A statement that the petition requirements of Minn. Statute, Section 428A.08 have either been met or do not apply to the proposed service charge; and

(4) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2007-Or-013, § 1, 2-9-07; 2013-Or-025, § 2, 2-22-13)

460.60. - Appeal of service charges.

Within thirty (30) days after the adoption of a service charge levied under 460.50, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2007-Or-013, § 1, 2-9-07; 2013-Or-025, § 3, 2-22-13)

460.70. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2006 for services rendered and to be rendered in the calendar years 2006 and 2007. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 460.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statutes. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2007-Or-013, § 1, 2-9-07)

460.80. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2007-Or-013, § 1, 2-9-07; 2015-Or-038, § 1, 6-5-15)

460.90. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and then, only in an amount sufficient to pay for the increase. (2007-Or-013, § 1, 2-9-07)

460.100. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for the resolution setting any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, Sections 428A.01 through 428A.10. Within five days of adoption of the ordinance or any resolution setting rates or fees, in accordance with Minn. Statute, Sections 428A.01 through 428A.10, a summary of the ordinance or resolution must be mailed to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge in the same manner that notice is mailed under Minn. Statute, Section 428A.02. The mailing must include notice that owners subject to the service charge have a right to veto the ordinance by filing the required number of objections with the city clerk before the effective date of the ordinance or resolution and that a copy of the ordinance or resolution is on file with the city clerk for public inspection. (2007-Or-013, § 1, 2-9-07)

460.110. - Advisory board.

(a) An advisory board to be known as the Bloomington-Lake Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, may be appointed by the city council for terms of two (2) years each odd-numbered year, the first term to commence in 2009. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this chapter, the city council may appoint a temporary advisory board consisting of five members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Bloomington-Lake Special Service District Advisory Board from its date of appointment through December 31, 2008. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (2007-Or-013, § 1, 2-9-07; 2010-Or-034, § 1, 4-16-10; Ord. No. 2021-010, § 8, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

460.120. - Definitions and construction.

The terms used herein shall be defined as provided in Minn. Statute, Chapter 428A Sections 428A.01 through 428A.10 and said Statute shall in all respects govern the creation, existence, and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2007-Or-013, § 1, 2-9-07)

460.130. - Bonds.

At any time after a contract for the construction of all or part of an improvement authorized under Minn. Statute, Chapter 442 to 442.170 has been entered into or the work has been ordered done by day labor, the city council may issue obligations in the amount it deems necessary to defray in whole or in part the expense incurred and estimated to be incurred in making the improvement, including every item of cost from inception to completion and all fees and expenses incurred in connection with the improvement or the financing. The obligations are payable primarily out of the proceeds of the service charge based on net tax capacity imposed under sections 460.50 and 460.150 or from any other special assessments or nontax revenues available to be pledged for their payment under charter or statutory authority, or from two or more of those sources.

The city council may, by resolution adopted prior to the sale of obligations, pledge the full faith, credit, and taxing power of the city to assure payment of the principal and interest if the proceeds of the service charge in the district are insufficient to pay the principal and interest. The obligations must be issued in accordance with Minn. Statute, Chapter 475, except that an election is not required, and the amount of the obligations need not be included in determining the net debt of the city under the provisions of any law or charter limiting debt. (2007-Or-013, § 1, 2-9-07)

460.140. - Notice to commissioner of revenue.

Within 30 days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2007-Or-013, § 1, 2-9-07)

460.150. - Exemption of certain properties from taxes and service charges.

Property exempt from taxation by section 460.10 is exempt from any service charges based on net tax capacity imposed under sections 460 to 460.170. (2007-Or-013, § 1, 2-9-07)

460.160. - Collection of service charges.

Service charges may be imposed on the basis of the net tax capacity of the property on which the service charge is imposed but must be spread only upon the net tax capacity of the taxable property located in the geographic area described in the ordinance. Service charges based on net tax capacity may be payable and collected at the same time and in the same manner as provided for payment and collection of ad valorem taxes. When made payable in the same manner as ad valorem taxes, service charges not paid on or before the applicable due date shall be subject to the same penalty and interest as in the case of ad valorem tax amounts not paid by the respective due date. The due date for a service charge payable in the same manner as ad valorem taxes is the due date given in law for the real or personal property tax for the property on which the service charge is imposed. Service charges imposed on net tax capacity which are to become payable in the following year must be certified to the county auditor by the date provided in section 460.70 for the annual certification of special assessment installments. Other service charges imposed must be collected as provided by ordinance. For the purpose of this section, "net tax capacity" means the net tax capacity most recently determined at the time that tax rates are determined under Minn. Statute, Chapter 275, Section 08. (2007-Or-013, § 1, 2-9-07)

460.170. - Effective date.

This chapter shall become effective forty-five (45) days from and after its date of publication in the official newspaper of the City of Minneapolis. (2007-Or-013, § 1, 2-9-07)

CHAPTER 461. - CHICAGO-LAKE SPECIAL SERVICE DISTRICT

461.10. - Establishment.

Pursuant to the authority granted by Minnesota Statues, Chapter 428A there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

Commencing at centerline Chicago Avenue South, 665 feet North of the center line of Lake Street, thence Westerly 90 feet along a line parallel to Lake Street, thence Southerly on a line parallel to center line of Chicago Avenue South to 90 feet north of center line of Lake Street, thence Westerly parallel to Lake Street South to center of Columbus Avenue South, thence Southerly 180 feet along the center line of Columbus Avenue South, thence Easterly parallel to Lake Street to 90 feet West of center line Chicago Avenue South, thence Southerly parallel to Chicago Avenue South to center line of 31st Street South, thence Easterly to centerline of Chicago Avenue South, thence Southerly along Chicago Avenue South to center line of 31st Street South, thence Easterly 90 feet along 31st Street South, thence Northerly and parallel 90 feet East of Chicago Avenue South 90 feet South of center line Lake Street, thence Easterly and parallel to Lake Street to center line of 12th Avenue South, thence Northerly along centerline of 12th Avenue South to 90 feet North of center line of Lake Street, thence Westerly parallel to Lake Street to 90 feet east of centerline of Chicago Avenue South, thence Northerly and parallel to Chicago Avenue South to a point 665 feet North of the center line of Lake Street, thence Westerly on a line parallel to the center line of Lake Street to the center line of Chicago Avenue South. (2007-Or-014, § 1, 2-9-07)

461.20. - Special services to be performed.

Within the special service district, the city may perform or contract for the performance of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city unless an increased level of the service is provided in the special service district:

(1) Snow and ice removal and sanding of public areas.

(2) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(3) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(4) Poster and handbill removal.

(5) Repair and maintenance of sidewalks.

(6) Installation and maintenance of area-wide security systems.

(7) Provision and coordination of security personnel to supplement regular city personnel.

(8) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(9) Installation, maintenance, and removal of lighting on commercial area trees.

(10) Cost of electrical service for pedestrian and tree lighting.

(11) Repair of low-level pedestrian lights and poles.

(12) Provision of comprehensive liability insurance for public space improvements.

(13) Trash removal and recycling costs.

(14) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(15) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way. (2007-Or-014, § 1, 2-9-07)

461.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 461.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2007-Or-014, § 1, 2-9-07; 2013-Or-026, § 1, 2-22-13)

461.40. - Notice of veto power.

Within five (5) days after adoption of this chapter the city clerk shall mail a summary of this chapter to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge. The notice must meet the requirements of Minn. Statute Chapter 428A Section 09. (2007-Or-014, § 1, 2-9-07)

461.50. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 461.70 hereof, will equal the estimated total costs of the city in providing the services referred to in section 461.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2008 for services rendered or to be rendered during the calendar years 2008 and 2009. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in at least two (2) separate publications of the city's official newspaper two (2) weeks apart and the public hearing shall not be held less than three (3) days after the last publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the area of the proposed district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. Other records may be used to supply the necessary information. Notices must be provided as required by the applicable notice provisions of Minn. Statute, Chapter 428A. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them. The notice of public hearing shall include:

(1) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding a proposed service charge;

(2) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year in which the service charge is to be collected;

(3) A statement that the petition requirements of Minn. Statute, Section 428A.08 have either been met or do not apply to the proposed service charge; and

(4) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2007-Or-014, § 1, 2-9-07; 2013-Or-026, § 3, 2-22-13)

461.60. - Appeal of service charges.

Within thirty (30) days after the adoption of a service charge levied under 461.50, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2007-Or-014, § 1, 2-9-07; 2013-Or-026, § 3, 2-22-13)

461.70. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2006 for services rendered and to be rendered in the calendar years 2006 and 2007. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 461.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2007-Or-014, § 1, 2-9-07)

461.80. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2007-Or-014, § 1, 2-9-07; 2015-Or-039, § 1, 6-5-15)

461.90. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2007-Or-014, § 1, 2-9-07)

461.100. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for the resolution setting any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute Sections 428A.01 through 428A.10. Within five (5) days of adoption of the ordinance or any resolution setting rates or fees, in accordance with Minn. Statute Sections 428A.01 through 428A.10, a summary of the ordinance or resolution must be mailed to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge in the same manner that notice is mailed under Minn. Statute Section 428A.02. The mailing must include notice that owners subject to the service charge have a right to veto the ordinance by filing the required number of objections with the city clerk before the effective date of the ordinance or resolution and that a copy of the ordinance or resolution is on file with the city clerk for public inspection. (2007-Or-014, § 1, 2-9-07)

461.110. - Advisory board.

(a) An advisory board to be known as the Chicago-Lake Special Service District Advisory Board consisting of three (3) members, who are residents of the district or owners of property within the district, may be appointed by the city council for terms of two (2) years each odd-numbered year, the first term to commence in 2009. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2 Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or impose taxes or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal.

(d) Upon or after the effective date of this chapter, the city council may appoint a temporary advisory board consisting of five (5) members who shall be required to have the qualifications specified in paragraph (a) of this section. Said temporary advisory board shall have all of the powers, duties and responsibilities of, and shall be known as, the Chicago-Lake Special Service District Advisory Board from its date of appointment through December 31, 2008. In appointing the temporary advisory board members, the city council shall not be bound by the provisions of Minneapolis Code of Ordinances, Title 2, Chapter 10. (2007-Or-014, § 1, 2-9-07; 2010-Or-035, § 1, 4-16-10; Ord. No. 2021-010, § 9, 2-26-21; Ord. No. 2023-054, § 2, 10-19-23)

461.120. - Definitions and construction.

The terms used herein shall be defined as provided in Minn. Statute 428A.01 through 428A.10 and this chapter shall be construed consistently therewith. (2007-Or-014, § 1, 2-9-07)

461.130. - Bonds.

At any time after a contract for the construction of all or part of an improvement authorized under Minn. Statute, Chapter 442 to 442.170 has been entered into or the work has been ordered done by day labor, the city council may issue obligations in the amount it deems necessary to defray in whole or in part the expense incurred and estimated to be incurred in making the improvement, including every item of cost from inception to completion and all fees and expenses incurred in connection with the improvement or the financing. The obligations are payable primarily out of the proceeds of the service charge based on net tax capacity imposed under sections 461.50 and 461.150 or from any other special assessments or non-tax revenues available to be pledged for their payment under charter or statutory authority, or from two or more of those sources.

The city council may, by resolution adopted prior to the sale of obligations, pledge the full faith, credit, and taxing power of the city to assure payment of the principal and interest if the proceeds of the service charge in the district are insufficient to pay the principal and interest. The obligations must be issued in accordance with Minn. Statute, Chapter 475, except that an election is not required, and the amount of the obligations need not be included in determining the net debt of the city under the provisions of any law or charter limiting debt. (2007-Or-014, § 1, 2-9-07)

461.140. - Notice to Commissioner of Revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2007-Or-014, § 1, 2-9-07)

461.150. - Exemption of certain properties from taxes and service charges.

Property exempt from taxation by section 461.10 is exempt from any service charges based on net tax capacity imposed under sections 461 to 461.170. (2007-Or-014, § 1, 2-9-07)

461.160. - Collection of service charges.

Service charges may be imposed on the basis of the net tax capacity of the property on which the service charge is imposed but must be spread only upon the net tax capacity of the taxable property located in the geographic area described in the ordinance. Service charges based on net tax capacity may be payable and collected at the same time and in the same manner as provided for payment and collection of ad valorem taxes. When made payable in the same manner as ad valorem taxes, service charges not paid on or before the applicable due date shall be subject to the same penalty and interest as in the case of ad valorem tax amounts not paid by the respective due date. The due date for a service charge payable in the same manner as ad valorem taxes is the due date given in law for the real or personal property tax for the property on which the service charge is imposed. Service charges imposed on net tax capacity which are to become payable in the following year must be certified to the county auditor by the date provided in section 461.70 for the annual certification of special assessment installments. Other service charges imposed must be collected as provided by ordinance. For the purpose of this section, "net tax capacity" means the net tax capacity most recently determined at the time that tax rates are determined under Minn. Statute, Chapter 275, Section 08. (2007-Or-014, § 1, 2-9-07)

461.170. - Effective date.

This chapter shall become effective forty-five (45) days from and after its date of publication in the official newspaper of the City of Minneapolis. (2007-Or-014, § 1, 2-9-07)

CHAPTER 462. - EAST LAKE STREET SPECIAL SERVICE DISTRICT

462.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, Section 428A.01 through 428A.10, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for, public services to be provided of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code: Commencing at the centerline Lake Street East and Minnesota Trunk Highway 55, thence northerly on the centerline Minnesota Trunk Highway to a point one hundred (100) feet north of the centerline of Lake Street East, thence easterly on a line parallel to the centerline Lake Street East to its intersection with the centerline of West River Parkway, thence southerly along the centerline of West River Parkway to a point one hundred (100) feet south of the centerline of Lake Street East, thence westerly on a line parallel to the centerline of Lake Street East to a point two hundred five (205) feet east of the centerline of 27th Avenue South extended, thence westerly to its intersection with the centerline Minnehaha Avenue, thence northwesterly on the centerline of Minnehaha Avenue to a point one hundred (100) feet south of the centerline of Lake Street East, thence westerly on a line parallel to Lake Street East to its intersection with the centerline of Minnesota Trunk Highway 55, thence northerly on the centerline of Minnesota Trunk Highway 55 to its intersection with the centerline of Lake Street East to the point of beginning and there terminating. (2008-Or-050, § 1, 7-11-08)

462.20. - Special Services to be performed.

Within the special service district, the city may perform of any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city unless an increased level of the service is provided in the special service district:

(1) Snow and ice removal and sanding of public areas.

(2) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(3) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(4) Poster and handbill removal.

(5) Repair and maintenance of sidewalks.

(6) Installation and maintenance of area-wide security systems.

(7) Provision and coordination of security personnel to supplement regular city personnel.

(8) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(9) Installation, maintenance, and removal of lighting on commercial area trees.

(10) Cost of electrical services for pedestrian and tree lighting.

(11) Repair of low-level pedestrian lights and poles.

(12) Provision of comprehensive liability insurance for public space improvements.

(13) Trash removal and recycling costs.

(14) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(15) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way.

(16) Provide all management services for operation of a Special Service District. (2008-Or-050, § 1, 7-11-08)

462.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 462.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2008-Or-050, § 1, 7-11-08; 2013-Or-027, § 1, 2-22-13)

462.40. - Notice of veto power.

Within five (5) days after adoption of this chapter, the city clerk shall mail a summary of this chapter to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge. The notice must meet the requirements of Minn. Statute Chapter 428A, Section .09. (2008-Or-050, § 1, 7-11-08)

462.50. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 462.70 hereof, will equal the estimated total costs of the city in providing the services referred to in section 462.20 for the next ensuing calendar year. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in at least two (2) separate publications of the city's official newspaper two (2) weeks apart and the public hearing shall not be held less than three (3) days after the last publication. Not less than ten (10) days prior to the hearing, notice shall be mailed to the owner of each parcel of real estate within the area of the proposed district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. Other records may be used to supply the necessary information. Notices must be provided as required by the applicable notice provisions of Minn. Statute, Chapter 428A. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them. The notice of public hearing shall include:

(1) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding a proposed service charge;

(2) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year in which the service charge is to be collected;

(3) A statement that the petition requirements of Minn. Statute, section 428A.08 have either been met or do not apply to the proposed service charge; and

(4) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2008-Or-050, § 1, 7-11-08; 2013-Or-027, § 1, 2-22-13)

462.60. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 462.50, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2008-Or-050, § 1, 7-11-08; 2013-Or-027, § 1, 2-22-13)

462.70. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2009 for services rendered and to be rendered in the calendar years 2009 and 2010. Prior to the levy of such a tax, a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 462.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minn. Statute. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2008-Or-050, § 1, 7-11-08)

462.80. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2008-Or-050, § 1, 7-11-08; 2015-Or-040, § 1, 6-5-15)

462.90. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2008-Or-050, § 1, 7-11-08)

462.100. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for the resolution setting any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, sections 428A.01 through 428A.10. Within five (5) days of adoption of the ordinance or any resolution setting rates or fees, in accordance with Minn. Statute, sections 428A.01 through 428A.10, a summary of the ordinance or resolution must be mailed to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge in the same manner that notice is mailed under Minn. Statute, section 428A.02. The mailing must include notice that owners subject to the service charge have a right to veto the ordinance by filing the required number of objections with the city clerk before the effective date of the ordinance or resolution and that a copy of the ordinance or resolution is on file with the city clerk for public inspection. (2008-Or-050, § 1, 7-11-08)

462.110. - Advisory board.

(a) An advisory board to be known as the East Lake Street Special Service District Advisory Board consisting of three (3) members, who are residents of the district, owners of property within the district, owners or operators of a business located within the district or their designated representative may be appointed by the city council for terms of two (2) years each odd-numbered year, the first term to commence in 2009. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (2008-Or-050, § 1, 7-11-08; 2010-Or-036, § 1, 4-16-10; 2015-Or-040, § 2, 6-5-15; Ord. No. 2021-010, § 10, 2-26-21; Ord. No. 2025-030, § 4, 7-24-25)

462.120. - Definitions and construction.

The terms used herein shall be defined as provided in Minn. Statute, Chapter 428A Sections 428A.01 through 428A.10 and said Statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2008-Or-050, § 1, 7-11-08)

462.130. - Bonds.

At any time after a contract for the construction of all or part of an improvement authorized under Minn. Statute, Chapter 442 to 442.170 has been entered into or the work has been ordered done by day labor, the city council may issue obligations in the amount it deems necessary to defray in whole or in part the expense incurred and estimated to be incurred in making the improvement, including every item of cost from inception to completion and all fees and expenses incurred in connection with the improvement or the financing. The obligations are payable primarily out of the proceeds of the service charge based on net tax capacity imposed under section 462.50 and 462.150 or from any other special assessments or nontax revenues available to be pledged for their payment under charter or statutory authority, or from two (2) or more of those sources.

The city council may, by resolution adopted prior to the sale of obligations, pledge the full faith, credit, and taxing power of the city to assure payment of the principal and interest if the proceeds of the service charge in the district are insufficient to pay the principal and interest. The obligations must be issued in accordance with Minn. Statute, Chapter 475, except that an election is not required, and the amount of the obligations need not be included in determining the net debt of the city under the provisions of any law or charter limiting debt. (2008-Or-050, § 1, 7-11-08)

462.140. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2008-Or-050, § 1, 7-11-08)

462.150. - Exemption of certain properties from taxes and service charges.

Property exempt from taxation by section 462.10 is exempt from any service charges based on net tax capacity imposed under sections 462 to 462.70. (2008-Or-050, § 1, 7-11-08)

462.160. - Collection of service charges.

Service charges may be imposed on the basis of the net tax capacity of the property on which the service charge is imposed but must be spread only upon the net tax capacity of the taxable property located in the geographic area described in the ordinance. Service charges based on net tax capacity may be payable and collected at the same time and in the same manner as provided for payment and collection of ad valorem taxes. When made payable in the same manner as ad valorem taxes, service charges not paid on or before the applicable due date shall be subject to the same penalty and interest as in the case of ad valorem tax amounts not paid by the respective due date. The due date for a service charge payable in the same manner as ad valorem taxes is the due date given in law for the real or personal property tax for the property on which the service charge is imposed. Service charges imposed on net tax capacity which are to become payable in the following year must be certified to the county auditor by the date provided in section 462.50 for the annual certification of special assessment installments. Other service charges imposed must be collected as provided by ordinance. For the purpose of this section, "net tax capacity" means the net tax capacity most recently determined at the time that tax rates are determined under Minn. Statute, Chapter 275, section 08. (2008-Or-050, § 1, 7-11-08)

462.170. - Effective date.

This ordinance shall become effective forty-five (45) days from and after its date of publication in the official newspaper of the City of Minneapolis. (2008-Or-050, § 1, 7-11-08)

CHAPTER 463. - LYNDALE-LAKE SPECIAL SERVICE DISTRICT

463.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, Section 428A.01 through 428A.10, there is hereby established a special service district (otherwise referred to herein as the "district") wherein the city may provide, or contract for public services to be provided, of a kind or to a degree not required or performed elsewhere in the city. Said special service district shall consist of the following area, except for those portions thereof within those zoning districts in which business, commercial and industrial uses are not permitted under the Minneapolis Zoning Code:

> Commencing at the intersection of Lake Street West and Dupont Avenue South, thence northerly on the centerline of Dupont Avenue South to a point ninety (90) feet north of the centerline of Lake Street West, thence easterly on a line parallel to the centerline of Lake Street West to a point one hundred seventy (170) feet west of the centerline of Lyndale Avenue South, thence northerly on a line parallel to the centerline of Lyndale Avenue South to its intersection with the centerline of 29th Street West, thence easterly on the centerline of 29th Street West to its intersection with the centerline of Lyndale Avenue South, thence northerly on the centerline of Lyndale Avenue South a distance of sixty (60) feet, thence easterly on a line parallel with the centerline of 29th Street West extended a distance of one hundred eighty (180) feet, thence southerly on a line parallel to the centerline of Lyndale Avenue South to a point that is ninety (90) feet north of the centerline of Lake Street West, thence easterly on a line that is parallel to the centerline of Lake Street West to the centerline of Blaisdell Avenue, thence southerly on the centerline of Blaisdell Avenue to a point ninety (90) feet south of the intersection of Blaisdell Avenue and Lake Street West, thence westerly on a line parallel to the centerline of Lake Street West to a point one hundred fifty-five (155) feet west of the centerline of Garfield Avenue, thence southerly on a line parallel to the centerline of Garfield Avenue to the centerline of 31st Street West, thence westerly on the centerline of 31st Street West to a point two hundred twenty (220) feet west of the centerline of Lyndale Avenue South, thence northerly on a line parallel to the centerline of Lyndale Avenue South to a point ninety (90) feet south of the centerline of Lake Street West, thence westerly on a line parallel to the centerline of Lake Street West to its intersection with the centerline of Dupont Avenue South, thence northerly on the centerline of Dupont Avenue South to its intersection with the centerline of Lake Street West to the point of beginning and there terminating. (2008-Or-051, § 1, 7-11-08)

463.20. - Special services to be performed.

Within the special service district, the city may perform any of the following services to the extent that such services are not ordinarily provided throughout the city from ordinary revenues of the city unless an increased level of the service is provided in the special service district:

(1) Snow and ice removal and sanding of public areas.

(2) Cleaning and scrubbing of sidewalks; cleaning of curbs, gutters, alleys, and streets.

(3) Provision, installation, maintenance, removal, and replacement of banners and other decorative items for promotion of the commercial area of the district.

(4) Poster and handbill removal.

(5) Repair and maintenance of sidewalks.

(6) Installation and maintenance of area-wide security systems.

(7) Provision and coordination of security personnel to supplement regular city personnel.

(8) Maintenance, repair, and cleaning of commercial area directories, kiosks, benches, bus shelters, newspaper stands, trash receptacles, information booths, bicycle racks and bicycle storage containers, sculptures, murals, and other public area art pieces.

(9) Installation, maintenance, and removal of lighting on commercial area trees.

(10) Cost of electrical services for pedestrian and tree lighting.

(11) Repair of low-level pedestrian lights and poles.

(12) Provision of comprehensive liability insurance for public space improvements.

(13) Trash removal and recycling costs.

(14) Provision, maintenance, and replacement of special signage relating to vehicle and bicycle parking, vehicle and pedestrian movement, and special events.

(15) Watering, fertilizing, maintenance and replacement of trees and bushes on the public right-of-way.

(16) Provide all management services for operation of a Special Service District. (2008-Or-051, § 1, 7-11-08)

463.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in section 463.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district. (2008-Or-051, § 1, 7-11-08; 2013-Or-028, § 1, 2-22-13)

463.40. - Notice of veto power.

Within five (5) days after adoption of this chapter the city clerk shall mail a summary of this chapter to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge. The notice must meet the requirements of Minn. Statute Chapter 428A, section .09. (2008-Or-051, § 1, 7-11-08)

463.50. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under section 463.70 hereof, will equal the estimated total costs of the city in providing the services referred to in section 463.20 for the next ensuing calendar year. Prior to imposing the service charges, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. Notice of the public hearing shall be given in at least two (2) separate publications of the city's official newspaper two (2) weeks apart and the public hearing shall not be held less than three (3) days after the last publication. Not less than ten (10) days prior to the

hearing, notice shall be mailed to the owner of each parcel of real estate within the area of the proposed district. For the purpose of giving such mailed notice, owners shall be those shown on the records of the county auditor. Other records may be used to supply the necessary information. Notices must be provided as required by the applicable notice provisions of Minn. Statute, Chapter 428A. For properties which are tax exempt or subject to taxation on a gross earnings basis in lieu of property tax and are not listed on the records of the county auditor, the owners shall be ascertained by any practical means, and mailed notice given them. The notice of public hearing shall include:

(1) Petition requirements of Minn. Statute, section 428A.08 have either been met or do not apply to the proposed service charge; and

(2) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding a proposed service charge;

(3) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year in which the service charge is to be collected;

(4) A statement that the that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment. (2008-Or-051, § 1, 7-11-08; 2013-Or-028, § 2, 2-22-13)

463.60. - Appeal of service charges.

Within thirty (30) days after the adoption of the service charge levied under section 463.50, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it. (2008-Or-051, § 1, 7-11-08; 2013-Or-028, § 3, 2-22-13)

463.70. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2009 for services rendered and to be rendered in the calendar years 2009 and 2010. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in section 463.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statutes. Property exempt from taxation by Minnesota Statute shall be exempt from such tax. (2008-Or-051, § 1, 7-11-08)

463.80. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs. (2008-Or-051, § 1, 7-11-08; 2015-Or-041, § 1, 6-5-15)

463.90. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase. (2008-Or-051, § 1, 7-11-08)

463.100. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for the resolution setting any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statute, sections 428A.01 through 428A.10. Within five (5) days of adoption of the ordinance or any resolution setting rates or fees, in accordance with Minn. Statute, sections 428A.01 through 428A.10, a summary of the ordinance or resolution must be mailed to the owner of each parcel included in the special service district and any individual or business organization subject to a service charge in the same manner that notice is mailed under Minn. Statute, section 428A.02. The mailing must include notice that owners subject to the service charge have a right to veto the ordinance by filing the required number of objections with the city clerk before the effective date of the ordinance or resolution and that a copy of the ordinance or resolution is on file with the city clerk for public inspection. (2008-Or-051, § 1, 7-11-08)

463.110. - Advisory board.

(a) An advisory board to be known as the Lyndale Avenue Lake Street Special Service District Advisory Board consisting of three (3) members, who are residents of the district, owners of property within the district, owners or operators of a business located within the district or their designated representative may be appointed by the city council for terms of two (2) years each odd-numbered year, the first term to commence in 2009. All board members shall be appointed in conformance with the city's open appointments ordinance as outlined in Minneapolis Code of Ordinances Title 2, Chapter 10. Any vacancy in an unexpired term shall be filled in the same manner as the original appointment was made and shall be for the unexpired term. Board members shall serve until their successors are appointed.

(b) The advisory board shall advise the city council in connection with the construction, maintenance, and operation of improvements and the furnishing of special services in the district. It shall make recommendations to the city council on requests and complaints of owners, occupants, and users of property within the district and members of the public.

(c) Before the adoption of any proposal by the city council to provide services or service charges within the district, the advisory board of the district must have an opportunity to review and comment upon the proposal. (2008-Or-051, § 1, 7-11-08; 2010-Or-037, § 1, 4-16-10; Ord. No. 2023-054, § 2, 10-19-23; Ord. No. 2025-030, § 5, 7-24-25)

463.120. - Definitions and construction.

The terms used herein shall be defined as provided in Minn. Statute, Chapter 428A sections 428A.01 through 428A.10 and said statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith. (2008-Or-051, § 1, 7-11-08)

463.130. - Bonds.

At any time after a contract for the construction of all or part of an improvement authorized under Minn. Statute, Chapter 442 to 442.170 has been entered into or the work has been ordered done by day labor, the city council may issue obligations in the amount it deems necessary to defray in whole or in part the expense incurred and estimated to be incurred in making the improvement, including every item of cost from inception to completion and all fees and expenses incurred in connection with the improvement or the financing. The obligations are payable primarily out of the proceeds of the service charge based on net tax capacity imposed under section 463.50 and 463.150 or from any other special assessments or nontax revenues available to be pledged for their payment under charter or statutory authority, or from two (2) or more of those sources.

The city council may, by resolution adopted prior to the sale of obligations, pledge the full faith, credit, and taxing power of the city to assure payment of the principal and interest if the proceeds of the service charge in the district are insufficient to pay the principal and interest. The obligations must be issued in accordance with Minn. Statute, Chapter 475, except that an election is not required, and the amount of the obligations need not be included in determining the net debt of the city under the provisions of any law or charter limiting debt. (2008-Or-051, § 1, 7-11-08)

463.140. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue. (2008-Or-051, § 1, 7-11-08)

463.150. - Exemption of certain properties from taxes and service charges.

Property exempt from taxation by section 463.10 is exempt from any service charges based on net tax capacity imposed under sections 463.10 to 463.70. (2008-Or-051, § 1, 7-11-08)

463.160. - Collection of service charges.

Service charges may be imposed on the basis of the net tax capacity of the property on which the service charge is imposed but must be spread only upon the net tax capacity of the taxable property located in the geographic area described in the ordinance. Service charges based on net tax capacity may be payable and collected at the same time and in the same manner as provided for payment and collection of ad valorem taxes. When made payable in the same manner as ad valorem taxes, service charges not paid on or before the applicable due date shall be subject to the same penalty and interest as in the case of ad valorem tax amounts not paid by the respective due date. The due date for a service charge payable in the same manner as ad valorem taxes is the due date given in law for the real or personal property tax for the property on which the service charge is imposed. Service charges imposed on net tax capacity which are to become payable in the following year must be certified to the county auditor by the date provided in section 463.50 for the annual certification of special assessment installments. Other service charges imposed must be collected as provided by ordinance. For the purpose of this section, "net tax capacity" means the net tax capacity most recently determined at the time that tax rates are determined under Minn. Statute, Chapter 275, section .08. (2008-Or-051, § 1, 7-11-08)

463.170. - Effective date.

This chapter shall become effective forty-five (45) days from and after its date of publication in the official newspaper of the City of Minneapolis. (2008-Or-051, § 1, 7-11-08)

CHAPTER 464. - NEWSRACKS

464.10. - Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Director means the Director of the Department of Regulatory Services of the City of Minneapolis, or his or her designee. It may also mean the Director of the Department of Public Works of the City of Minneapolis or his or her designee as it relates to removal and impoundment of newsracks or other issues as may be delegated to the director of public works or designee by the director of regulatory services or designee.

Heritage preservation district means any areas, places, or districts which have been duly designated and listed as heritage preservation districts pursuant to Minneapolis Code of Ordinances, Chapter 599.

Implementation period means the period of time elapsing after passage, approval and publication of this chapter, but before the effective date of this chapter, and during which time the director shall prepare and execute a plan to implement this chapter.

Install or *installed* means to place, affix, erect, construct, operate or maintain a newsrack.

Newsrack means any type of unmanned device for the vending or free distribution of newspapers, news periodicals, advertising supplements, advertising periodicals, political periodicals, and similar publications.

Newsrack corral or *corral* means any structure designed to group newsracks in stable clusters.

Parkway means those streets and avenues that are designated as parkways and boulevards pursuant to the Minneapolis City Charter and the Minneapolis Code of Ordinances including Park Board Ordinances.

Responsible person means an individual who is listed on a master list of newsrack locations pursuant to section 464.40 and who, on behalf of an owner, may receive notice, respond to complaints, and be notified or contacted at any time concerning a newsrack.

Owner means any person which either holds an ownership interest in or operates a newsrack that it seeks to install or has installed in the public right-of-way.

Person means any individual, person or entity, however organized, whether public or private, whether domestic or foreign, whether for profit or nonprofit, and whether natural, corporate, or political. Examples include a business or commercial enterprise organized as any type or combination of corporation, limited liability company, partnership, proprietorship, association, cooperative, or joint venture.

Right-of-way or *public right-of-way* means the area in, on or above a public roadway, highway, street, cartway, boulevard, bicycle lane, sidewalk, parkway or alley which the city owns or over which it has an easement or interest, including other dedicated rights-of-way, for public purposes. (2008-Or-104, § 1, 12-12-08)

464.20. - Purpose and criteria.

The purpose of this chapter is to promote the public health, safety and welfare through the regulation of placement, type, appearance and servicing of newsracks on public rights-of-way so as to:

(a) Provide for pedestrian and driving safety and convenience, and comply with local, state or federal handicapped accessibility regulations.

(b) Restrict unreasonable interference with the public use of the public right-of-way and with the flow of pedestrian or vehicular traffic including ingress into or egress from any residence or place of business, or from the street to the sidewalk by persons exiting or entering parked or standing vehicles.

(c) Provide for the safety of people and property during periods of heavy snow, storms, and other adverse weather conditions, and for the proper functioning of the city's safety and sanitation forces.

(d) Provide reasonable access:

(1) For the use and maintenance of poles, posts, traffic signs or signals, hydrants, utility openings, delivery chutes, trash receptacles, bus or plaza benches, United States postal service mailboxes, parking meters and other public fixtures; and

(2) To locations used for public transportation purposes.

(e) Relocate and/or replace newsracks which result in a visual blight and/or excessive space allocation on the public rights-of-way or which unreasonably detract from the aesthetics of store window displays, adjacent landscaping and other improvements, both public and private, as well as to remove abandoned newsracks.

(f) Maintain and protect the values of surrounding properties, and protect and preserve public property.

(g) Reduce unnecessary exposure of the public to personal injury or property damage.

(h) Treat all publications equally regardless of their size, content, circulation, or frequency of publication.

(i) Maintain and preserve freedom of speech and freedom of the press.

(j) Protect and enhance the city's attraction to residents, tourists and visitors, and serve as a support and stimulus to business and industry, by enhancing the visual and aesthetic character and interest of the city. (2008-Or-104, § 1, 12-12-08)

464.30. - Master list and corresponding sticker or statement required.

No person shall install a newsrack on or in the public right-of-way without first submitting to the director a master list that contains the location of each newsrack and the items described in section 464.40, and without first affixing to the newsrack a sticker or statement pursuant to section 464.90(e). (2008-Or-104, § 1, 12-12-08)

464.40. - Submission of master list and other items.

(a) *Duties of director.* The director is responsible for fairly coordinating and administering the physical placement of newsracks as provided for in this chapter, for ensuring that the items described in this chapter are properly submitted, and for enforcing this chapter.

(b) *Submissions.* Before any newsrack may be installed, and at least every three (3) months thereafter, each newsrack owner shall submit to the director a master list, as well as any fee, hold harmless agreement, and certification required under this chapter. The master list shall specify each newsrack location in numerical order and shall contain the following information and attachments:

(1) The name, address and telephone numbers of each owner of the newsrack.

(2) The name, address and telephone number of a responsible person to whom the city may provide notice or contact at any time concerning the newsrack(s), which notice, if given, shall bind and be deemed actual notice to the owner(s) of the newsrack.

(3) The specific location of each newsrack, listed individually and numerically, including any identifying information for the location, such as a corresponding street address and specific corner of an intersection, where applicable.

(4) Information that allows the director to easily determine whether each newsrack location contained in the list is:

a. A new location (relative to the most recent master list submitted);

b. An existing location (relative to the most recent master list submitted); or

c. That a newsrack location has been removed from the list.

(5) The fee as established pursuant to section 464.60.

(6) A fully executed hold harmless agreement as required by this chapter.

(7) A certification, signed by an individual with the requisite corporate or other power and authority to bind the applicant, which states that the applicant has reviewed, understands, and will comply with all requirements of this chapter, and that all information contained in the master list is truthful, accurate, complete and up-to-date.

(c) *Issuance of certificate of compliance.* Upon a finding by the director that the applicant and all owners of the newsrack are in compliance with the provisions of this chapter for

(1) The proposed newsrack location; and

(2) All other existing newsrack locations, the director shall cause to be issued a certificate of compliance. Such issuance shall be made within fifteen (15) working days of the city's receipt of the completed application.

(d) *Denial of certificate of compliance.* If a certificate of compliance for one or more newsrack locations applied for shall be denied, the applicant shall receive notice of the denial in writing within fifteen (15) working days of the city's receipt of the completed application. The applicant shall be advised of the specific cause of each such denial by the director. The applicant may amend the application and reapply for the same location, or apply for a substitute alternative location, subject to a reprocessing fee for the first reapplication in an amount determined by a resolution of the city council. Any subsequent reapplications shall be subject to the standard application fee. A denial may be appealed pursuant to section 464.70.

(e) *Additional certificate of compliance.* If, at any time after initial application for a certificate of compliance to install a newsrack, an owner wishes to install additional newsracks at additional locations, then subsections (c) and (d) above are to be repeated in accordance with the provisions of this chapter.

(f) *Lapse of unused certificates.* Any certificate of compliance not used to install a newsrack within thirty (30) days from the date of issuance shall be void and automatically deemed revoked, and the owner's newsrack shall not be installed at that location. (2008-Or-104, § 1, 12-12-08)

464.50. - Risk management requirements.

Prior to installation, every newsrack owner who desires to install a newsrack on a public right-of-way shall file a written agreement to indemnify and hold the city harmless. This agreement shall be in a form prescribed from time to time by the city attorney, whereby the newsrack owner, in exchange for the ability to install its newsrack on the public right-of-way, agrees to indemnify and hold harmless the city, its officers and employees from any loss, liability or damage (including costs, disbursements and attorney fees) for bodily or personal injury, including death, and for property damage sustained by any person or entity as a result of a newsrack installed on the public right-of-way. (2008-Or-104, § 1, 12-12-08)

464.60. - Newsrack fee.

A newsrack fee shall be set in an amount designed to reimburse the city for all its expenses incurred in the administration and enforcement of the terms and provisions of this chapter. The fee shall only be used for such purposes. The fee may only be imposed following the preparation of a report from the director to an appropriate committee of the city council reasonably describing such expenses, shall be based on the number of newsracks placed in the public right-of-way by newsrack owners, and shall be established from time-to-time by resolution of the city council. (2008-Or-104, § 1, 12-12-08)

464.70. - Appeal.

(a) If a newsrack owner has reasonable grounds to claim that a notice of violation or a notice of removal has been wrongfully issued or a certificate of compliance has been wrongfully denied and wants to appeal that determination, the appealing owner shall, within ten (10) days of receipt of the notice of violation, notice of removal, or notice of denial of the certificate of compliance demand a review by giving written notice to the director, and including in that notice any exhibits such as photographs or maps or affidavits which support the claim. No oral presentation shall be permitted, and all grounds supporting the appeal shall be provided in writing. The director shall review the claim within fifteen (15) days of receipt of notice from the appealing owner. Within fifteen (15) days of the review, the director shall provide written notice of the decision to the appealing owner. Except for removal pursuant to 464.110(d), any action by the city to remove a newsrack shall be stayed during the ten-day appeal period provided by this section and during the pendency of any subsequent appeal made pursuant to this section.

(b) If the appealing owner believes the director's decision of the appeal under section 464.70(a) is in error and wants the decision further reviewed, the appealing owner shall file a written request for review by an administrative hearing officer pursuant to Title 1, Chapter 2 of this Code. If the appealing owner believes the administrative hearing officer's decision is in error and wants the decision further reviewed, the appealing owner may have the decision reviewed by appropriate action in a court of competent jurisdiction. Except for removal pursuant to 464.110(d), any action by the city to remove a newsrack shall be stayed for ten (10) days following a final decision of the administrative hearing officer and during the pendency of any subsequent judicial proceeding intended to review the decision of the administrative hearing officer. (2008-Or-104, § 1, 12-12-08)

464.80. - Placement generally.

Newsracks may not be installed in any public right-of-way which is used regularly or intended to be used by motor vehicle traffic. Newsracks shall not be installed on bicycle trails. Subject to the prohibitions of this chapter, newsracks may be installed on public sidewalks and public pedestrian areas. The closest edge to the street of any newsrack shall be installed parallel to and not less than eighteen (18) inches nor more than twenty-four (24) inches from the edge of the curb. Newsracks may also be installed, subject to the prohibitions of this chapter, near the wall of a building if the closest edge to the building is placed parallel to and not more than six (6) inches from the wall. Newsracks shall not be installed on the side toward residential property. Every newsrack shall be installed so as to open toward the sidewalk and not toward the street.

464.90. - Installation and maintenance.

(a) Newsracks shall not exceed sixty (60) inches in height, including the height of any coin box on top, thirty (30) inches in width, or twenty-four (24) inches in depth. Multilevel newsracks shall be of uniform depth and width.

(b) No advertising signs or material, other than those advertising the name of the publication contained within the newsrack, shall be displayed on the outside of any newsrack.

(c) Each newsrack which receives coins shall be equipped with a coin-return mechanism to permit a person using the machine to secure an immediate refund in the event he or she is unable to receive the publication paid for. The coin-return mechanism shall be maintained in good working order.

(d) Each newsrack shall have stenciled or otherwise permanently affixed to it in a readily visible place a notice setting forth the name and address of the owner of or the responsible person for the newsrack and the telephone number to call the owner or the responsible person or to report a malfunction, or to secure a refund in the event of a malfunction of the coin-return mechanism, or to give the notice provided for in this chapter.

(e) In order to verify compliance with the master list requirement in sections 464.30 and 464.40, each newsrack shall have stenciled or otherwise permanently affixed to it in a readily visible place a sticker or notice verifying that the newsrack has been listed on a master list previously submitted to the director, and stating the month, year, and corresponding number of the newsrack on that list.

The director may, however, substitute a reasonable alternative to the "corresponding number" requirement in the preceding paragraph, provided that any such alternative must assist the director in verifying compliance with the master list requirement.

(f) Each newsrack shall be maintained in a neat and clean condition and in good repair at all times. Specifically, but without limiting the generality of the foregoing, each newsrack shall be serviced and maintained, or replaced if necessary, so that:

(1) It is reasonably free of dirt and grease;

(2) It is reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof;

(3) It is free of graffiti or other writing or pictures added without the permission of the owner;

(4) It is reasonably free of rust and corrosion in the visible metal areas thereof;

(5) The clear plastic or glass parts thereof, if any, through which the publications therein are viewed are unbroken and reasonably free of cracks, dents, blemishes and discoloration;

(6) The structural and solid parts thereof are not broken, do not contain holes (other than vent holes as part of the design of the newsrack), and are not unduly misshapen;

(7) The dispensing portion of each box shall be fully enclosed and weatherproof so as to keep publications dry and free of snow and dirt;

(8) All surfaces shall be of sturdy impact resistant materials; and

(9) It shall contain no sharp corners or sharp protrusions.

(g) Newsracks for free publications may omit the coin box and may have the pull bar attached to the door to produce an "honor rack." (2008-Or-104, § 1, 12-12-08)

464.95. - Newsrack corrals.

(a) Newsrack corrals may be placed and maintained on the public sidewalks by the city at locations acceptable to the director subject to the provisions of this section. The director may approve any proposed location where, as determined by the director, substantial pedestrian traffic, sidewalk congestion or the presence of an excessive number of newsracks within close proximity of one another suggests the need for certain limits on the number and placement of newsracks.

(b) Subject to the limitations set forth elsewhere in this chapter, the director shall develop equitable criteria to allocate space within a newsrack corral, where necessary, giving first priority to newsracks displaying publications that are then currently displayed within thirty (30) feet of such corral.

(c) Prior to installing corrals at particular locations, the director shall consult with and solicit the views of representatives of relevant city agencies, city council, relevant neighborhood groups and entities which issue regular editions of publications distributed on the public right-of-way.

(d) Subject to the criteria established pursuant to section 464.95(b) above, the director shall allow any person to place or maintain a newsrack within a newsrack corral, so long as such person maintains such newsrack in conformity with all requirements of this chapter and so long as such person is not prohibited from placing such newsrack at the location of such corral by any provision of this chapter.

(e) No person shall place or maintain a newsrack within a newsrack corral unless the newsrack is unobtrusively attached by plastic coated cables, plastic coated chains or otherwise to the corral so as to ensure stability of the newsrack.

(f) No person shall maintain a newsrack within twenty-five (25) feet of a newsrack corral unless the newsrack is lawfully placed within the corral at that location. (2008-Or-104, § 1, 12-12-08)

464.100. - Specific prohibitions.

No newsrack shall be installed:

(a) Within three (3) feet of any marked crosswalk.

(b) Within three (3) feet of any unmarked crosswalk as defined in Minn. Statute (2008), Section 169.011, Subdivision. 20(1).

(c) Within ten (10) feet of any fire hydrant, fire call box, fire stand pipe, police call box or other emergency facility.

(d) On a public right-of-way where it is crossed by a public or private driveway or alley, or within five (5) feet of such public or private driveway or alley crossing, or within five (5) feet of the end of radius or side slope of such public or private driveway or alley crossing where the public or private driveway or alley enters any street or highway.

(e) Within five (5) feet ahead of, and twenty-five (25) feet to the rear of any official public transit bus sign marking a designated bus stop, measured along the edge of pavement.

(f) In or within five (5) feet of the curb in any marked truck zone, passenger loading zone, van pool loading zone, handicapped transfer zone, valet parking zone, or ambulance loading zone.

(g) Within three (3) feet of any bus bench, bus shelter, or plaza bench.

(h) At any location whereby the clear space for passageway of pedestrians is reduced to less than five (5) feet. Provided, however, that in those areas with maximum sidewalk widths on any block side of less than seven (7) feet six (6) inches, the clear space for passageway of pedestrians shall be the maximum amount possible while complying with the other provisions of this chapter, but in no event shall the clear space for passageway of pedestrians be less than four feet. In those areas with maximum sidewalk widths on any block side of less than seven (7) feet six (6) inches, there shall be no more than four (4) total newsracks on the same side of the same block whereby the clear space for passageway of pedestrians is reduced to less than five (5) feet.

(i) On any lawn or on or within twelve (12) inches of any area improved with a hedge, a boulevard garden, or flowers, or within three (3) feet of any tree.

(j) Within one and one-half (1½) feet from any window of any building abutting the sidewalk or parkway or in such a manner as to impede or interfere with the reasonable use of such window for display purpose, unless permission has been obtained from the party having legal authority over the window, or within four (4) feet of a building entrance.

(k) On, attached to, or within two (2) feet of any traffic sign or signal, street light, hydrant, United States Postal Service mailbox, or parking meter.

(l) Chained or bolted or otherwise attached to any property not owned by the owner of the newsrack or to any permanently fixed object if the property owner objects. Provided, however, that only attachment devices that do not damage the property, such as coated chains or cables, shall be used and that by attaching to such property the newsrack owner expressly agrees that the property owner may revoke the permission and may remove the chains or cables without notice and without cause at any time.

(m) By being chained to more than three (3) other newsracks. A maximum of four (4) newsracks may be chained or physically joined together in banks if each of them complies with the requirements of this chapter, and they are joined together in a manner that does not present a hazard to the public. Any bank of four (4) newsracks, whether chained or unchained, that are placed on the curb or street side of a sidewalk must be at least three (3) feet from any other newsrack, except when located within a newsrack corral pursuant to section 464.95.

In heritage preservation districts, no more than three (3) newsracks may be chained or physically joined together.

(n) In violation of local, state or federal handicapped accessibility regulations.

(o) That exceeds thirty-six (36) inches in height and is within a distance of twenty (20) feet from the nearest curb of any intersecting street as measured from a straight line extension of the nearest curb of the intersecting street prior to the beginning of the corner curb section. If there is no curb on the intersecting street, the measurement shall be made from the nearest improved surface of the intersecting street. For the purposes of this paragraph, the height limitation does not include the height of a coin box or other attachment that is attached to the top of the newsrack that is nine (9) inches in width or less and eight (8) inches in depth or less. For purposes of this paragraph, lock guards, lock sleeves, rain-guards, coin-return buttons, and other small protuberances from the coin box or other attachment will not be included in the measurements of the coin box or other attachment.

(p) That exceeds thirty-six (36) inches in height and is within a distance of ten (10) feet from any curb cut of any alley intersecting a street. In the absence of a curb, the measurement shall be made from the nearest improved surface of the intersecting alley. For the purposes of this paragraph, the height limitation does not include the height of a coin box or other attachment that is attached to the top of the newsrack that is nine (9) inches in width or less and eight (8) inches in depth or less. For purposes of this paragraph, lock guards, lock sleeves, rain-guards, coin-return buttons, and other small protuberances from the coin box or other attachment will not be included in the measurements of the coin box or other attachment.

(q) Over, above or on top of any public utility opening, delivery chute, areaway access or other access through the right-of-way.

(r) Upon any parkway, unless the adjacent property is primarily devoted to commercial or industrial uses.

(s) Within five (5) feet of the approved seating area of a permitted sidewalk cafe if the sidewalk cafe is set up.

(t) Within two (2) feet of any garbage or litter container or receptacle. (2008-Or-104, § 1, 12-12-08; 2009-Or-109, § 1, 10-16-09)

464.110. - Enforcement procedures—Nonconforming newsracks.

(a) Any newsrack found installed in violation of the provisions of this chapter may be tagged with a notice of violation stating the violation, date of tagging, and notice of intention to remove the newsrack if the violation is not corrected within ten (10) days and specifying the procedure for obtaining a hearing and opportunity to be heard regarding the violation using the procedures set out in section 464.70. The director shall also provide notice to the owner or responsible person thereof by sending a copy of the notice of violation to the person listed in the master list, if any, pursuant to section 464.40, or to the person listed on the notice affixed to the newsrack as required by section 464.90.

(b) The director may, as an alternative to tagging, have such newsrack(s) realigned or otherwise repositioned in order to restore them to a legal condition.

(c) Any newsrack which has been tagged and remains in violation of the provisions stated on the tag past the ten-day correction period, and for which no appeal has been requested pursuant to section 464.70 during that ten-day correction period, shall be removed and stored in a secure location.

(1) The director shall provide notice to the owner or responsible person thereof by sending a notice of removal to the person listed in the master list, if any, pursuant to section 464.40 or to the person listed on the notice affixed to the newsrack as required by section 464.90. Such notice shall state the date the newsrack was removed, the reasons therefore, and the procedure for obtaining a post-removal hearing and opportunity to be heard regarding the removal using the appeal procedures set out in section 464.70.

(2) Any such newsrack removed and stored pursuant to these provisions shall be released to the owner or responsible person thereof if claimed within sixty (60) days after such removal and upon the payment of reasonable charges of removal and storage. Upon failure of the owner or responsible person to claim such newsrack and pay the reasonable charges within sixty (60) days after the mailing of written notice of removal, such newsrack shall be deemed to be unclaimed or abandoned property and may be disposed of pursuant to provisions outlined in section 427.100 of the Minneapolis Code of Ordinances relating to disposition of property found in streets or as otherwise provided for unclaimed or abandoned property but without the requirement of further hearings or notices.

(d) Any newsrack in violation of the provisions of this chapter, which violation creates an immediate and substantial danger to the health, safety or welfare of the public, which violation cannot be quickly and easily corrected by moving or otherwise repositioning the newsrack, may be summarily removed and stored in a secure location so as to eliminate the danger to the health, safety and welfare of the public. The director shall promptly provide notice to the owner or responsible person as otherwise outlined in this section and allow for a post-deprivation hearing. (2008-Or-104, § 1, 12-12-08)

464.120. - Abandoned newsracks.

(a) A newsrack shall be deemed abandoned when no publication provided by a registered newsrack owner is in the newsrack for a period of more than thirty (30) consecutive days or when the newsrack and location have not been included on a master list as required under this chapter.

(b) In the event a newsrack owner desires to voluntarily abandon a newsrack location, the owner shall provide notice to the director, including the month and the year that the newsrack was first placed on a master list, and the corresponding master list number, and completely remove the newsrack and restore the public right-of-way to a safe condition, leaving no trace.

(c) When the director shall find an abandoned newsrack on the public right-of-way within the city, the director shall cause a notice of violation to be placed upon it pursuant to the procedures established in section 464.110. (2008-Or-104, § 1, 12-12-08)

464.130. - Severability.

If any section, subdivision, sentence, clause or other part of this chapter should be adjudged void or of no effect, such decision shall not affect the validity of any other portions of this chapter. (2008-Or-104, § 1, 12-12-08)

464.140. - Rights of underlying fee title owner.

This chapter shall not in any way limit, lessen, or derogate the rights of ownership or control, if any, of any owner of the underlying fee title of any city right-of-way covered by this chapter. (2008-Or-104, § 1, 12-12-08)

464.150. - Application to other governmental units.

This chapter shall not apply to other governmental units or in any way derogate their power to regulate their property or rights-of-way. All registrations under this chapter are subject to the authority of any other governmental unit. (2008-Or-104, § 1, 12-12-08)

464.160. - Change of surroundings.

Permission to install a newsrack on a public right-of-way is at the sufferance of the city. No property right of any kind is intended or created. The city may at any time, either pursuant to the provisions of this chapter or by ordinance amendment, withdraw or modify its permission. All permission is subject to continual compliance with the provisions of this chapter. If the physical surroundings of a newsrack, which was legally located when originally installed, change so that the newsrack can no longer comply with sections 464.80, 464.100 or any other sections of this chapter, then it shall promptly be removed by its owner and its continuing presence shall be a violation subject to remedy under section 464.110. (2008-Or-104, § 1, 12-12-08)

464.170. - Implementation.

The director shall implement and administer this chapter. The director shall prepare and execute a plan to implement this chapter during the implementation period consistent with the expressed purposes and provisions of this chapter and consistent with the City of Minneapolis Charter and Code of Ordinances. This plan shall be guided by the following:

(a) All determinations regarding newsracks shall be content neutral.

(b) No preference shall be given to any particular type of publication.

(c) The director may authorize the placement of warning notices on newsracks at any time during the implementation period which state that all newsracks are subject to removal on the specified effective date of this chapter unless they are in compliance with the requirements of this chapter. Each such warning notice shall contain information regarding inquiries about compliance. (2008-Or-104, § 1, 12-12-08)

464.180. - Notice.

Unless otherwise specifically provided for in this chapter, any notice which may be required to be or is given shall be in writing and shall be deemed received when it is either:

(a) Personally delivered, or

(b) Placed in the certified U.S. Mail, return receipt requested.

(2008-Or-104, § 1, 12-12-08)

464.190. - Effective date.

(a) This chapter shall be effective as of October 1, 2009.

(b) Notwithstanding paragraph (a) of this section, Sections 464.30, 464.40, 464.60, 464.90(e) and 464.120(b) shall not be effective until this paragraph is further amended to provide a specific effective date for each of these sections or parts of sections.

(2008-Or-104, § 1, 12-12-08; 2009-Or-109, § 2, 10-16-09)

CHAPTER 465. - DOWNTOWN BUSINESS IMPROVEMENT SPECIAL SERVICE DISTRICT

465.10. - Establishment.

Pursuant to the authority granted by Minn. Statute, Chapter 428A, Sections 428A.01 through 428A.10, there is hereby established a Downtown Business Improvement Special Service District (otherwise referred to herein as the "district") wherein services may be furnished of a kind or to a degree not required or performed elsewhere in the city. The district shall consist of the following area:

That part of Section 22, 23, 26 and 27 in Township 29 North, Range 24 West of the 4th Principal Meridian, City of Minneapolis, Hennepin County, Minnesota, described as follows:

Beginning at the intersection of the centerline of 2nd Avenue North right-of-way and the centerline of 2nd Street North right-of-way; thence southeasterly along said centerline of 2nd Street North, to the centerline of Hennepin Avenue right-of-way; thence southwesterly along said centerline of Hennepin Avenue to the intersection of the northwesterly extension of the northeasterly line of Lot 108, Block 6, of Auditors Subdivision No. 137 according to the plat thereof on file at the County Recorder's Office, Hennepin County, Minnesota; thence southeasterly along the extension of said northeasterly line of Lot 108 and its southeasterly extension to the centerline of Marquette Avenue right-of-way; thence northeasterly along said centerline of Marquette Avenue to the intersection of the northwesterly extension of the northeasterly line of Block 12; thence southeasterly along the extension of said northeasterly line of Block 12 and its southeasterly extension to the centerline of 2nd Avenue South right-of-way; thence northeasterly along said centerline of 2nd Avenue South, to the centerline of 2nd Street South right-of-way; thence southeasterly along said centerline of 2nd Street South, to the centerline of Portland Avenue right-of-way; thence southwesterly along said centerline of Portland Avenue to a line 30.00 feet northeast and parallel with the centerline of Washington Avenue South right-of-way; thence southeasterly along previously described said parallel line to the centerline of Chicago Avenue right-of-way; thence southwesterly along said centerline of Chicago Avenue and along the centerline of Centennial Place right-of-way to the centerline of 10th Street South right-of-way; thence northwesterly along said centerline of 10th Street South, to the centerline of 4th Avenue South right-of way; thence southwesterly and southerly along said centerline of 4th Avenue South, to the centerline of 12th Street South right-of-way; thence westerly and northwesterly along said centerline of 12th Street South, to the centerline of 2nd Avenue South right-of-way; thence southwesterly along said centerline of 2nd Avenue South, to the centerline of Grant Street East right-of-way; thence westerly along said centerline of Grant Street East, to the centerline of Nicollet Avenue; thence north along said centerline of Nicollet Avenue to the centerline of Grant Street West right-of-way; thence westerly along said centerline of Grant Street West, to the centerline of LaSalle Avenue right-of-way; thence northerly and northeasterly along said centerline of LaSalle Avenue to the centerline of 12th Street South right-of-way; thence northwesterly along said centerline of 12th Street South, to the centerline of Yale Place right-of-way; thence southwesterly along said centerline of Yale Place to the centerline of Spruce Place right-of-way; thence northwesterly along said centerline of Spruce Place to the centerline of Hennepin Avenue right-of-way; thence northeasterly along said centerline of Hennepin Avenue to the centerline of 11th Street North right-of-way; thence northwesterly along said centerline of 11th Street North, to the easterly right-of-way line of Interstate Highway No. 394; thence northerly and northwesterly along said easterly right-of-way line of Interstate Highway 394 to the centerline of Glenwood Avenue right-of-way; thence easterly along said centerline of Glenwood Avenue to the centerline of 10th Street North right-of-way; thence northeasterly to the intersection of the centerline of 9th Street North right-of-way and the centerline of 2nd Avenue North right-of-way; thence northeasterly along said centerline of 2nd Avenue North, to the point of beginning.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.20. - Special services to be performed; operating plan; service agreement.

(a) The special services to be furnished within the district may include:

(1) Clean and safe programs, including, but not limited to, sweeping, litter pick up, trash removal, sidewalk cleaning, graffiti abatement, snipe and poster bill removal, snow services, security services, closed circuit television (CCTV) systems and monitoring, etc.;

(2) Marketing/promotion/special events, including, but not limited to, event programming, websites, newsletters, etc., district area business recruitment and retention programs, coordination of street markets and street vendors within the district, etc.;

(3) Physical enhancements, including, but not limited to, hanging baskets, landscape planters, trash receptacles, etc.;

(4) Maintenance of enhanced streetscape components above city standard, including, but not limited to, fixtures, sidewalks, electrical and irrigation systems, landscaping, fountains, etc.; and

(5) Management and oversight services and administrative services, including usual and customary start-up and on-going administrative costs.

(b) Each year, prior to imposition of any service charge, the city council will adopt by resolution an operating plan that describes with particularity the special services to be performed. Any physical enhancements to be installed by the district shall be maintained by the district, and to the extent they are not maintained, the city shall have the right to remove them. The district shall not be obligated to maintain any physical enhancements installed by parties other than the district unless and until said maintenance is included in the adopted operating plan. The operating plan, and any amendments that may be made from time to time by subsequent resolution, is hereby incorporated into this chapter. The special services to be furnished in the district may not include a service that is ordinarily provided throughout the city unless an increased level of the service is provided in the district.

(c) The special services described in the operating plan will be furnished by the Minneapolis Downtown Council, its subsidiary or an approved assignee (the "district entity"), in accordance with a service agreement to be entered between the district entity and the city. Notwithstanding any other ordinance provision, the service agreement provided for in this section is hereby exempt from the requirements of the following provisions of the Minneapolis Code of Ordinances: Section 18.200 (equal benefits provisions in contracts); Section 24.220 (prevailing wage); Section 139.50 (non-discrimination and affirmative action provisions in contracts); and Chapter 423 (small and underutilized business enterprise program). Provided, however, that the service agreement shall contain provisions that require the district entity to do the following:

(1) When the district entity seeks competitive bids for special services in the district, in addition to any other bids sought, it shall seek bids from, but not limited to, vendors on a list of small and underutilized businesses provided by the city;

(2) The district entity shall have a modified affirmative action plan that meets city ordinance Section 139.50;

(3) The district entity shall notify and extend any benefits offered to its employees based on marital status to employees with domestic partners registered as such pursuant to Minneapolis Code of Ordinances: Section 142.30 and shall require its contractors and subcontractors to notify and extend the same benefits to any of their employees providing services to the district; and

(4) The district entity shall apply the prevailing wage provisions of Section 24.220 to any construction work that requires funding from more than one (1) year's assessment cycle.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.30. - Service charge.

The city council hereby finds and determines that the annual costs of providing the services specified in Section 465.20 hereof will provide benefits primarily to properties located within the district, rather than to the city as a whole, and that the costs of said services may be recovered by the city by the imposition of service charges to be assessed against properties located within the district.

(2008-Or-102, § 1, 12-12-08; 2013-Or-029, § 1, 2-22-13; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.40. - Notice of veto power.

Within five (5) days after adoption of this chapter the city engineer or designee shall mail a summary of this chapter to the owner of each parcel included in the district and any individual or business organization subject to a service charge. The notice must meet the requirements of Minn. Statute, Section 428A.09.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.50. - Imposition of service charge; levy.

The service charges shall be levied annually upon properties within the district, in an aggregate sum, which, combined with any property tax levied under Section 465.70 hereof, will equal the estimated total costs of the city in providing the services referred to in Section 465.20 for the next ensuing calendar year; provided, however, that service charges may be levied in the year 2010 for services rendered or to be rendered during the calendar years 2009 and 2010 and/or services rendered in 2009 may be invoiced by the city finance department in 2009 and then subsequently levied in 2010 for amounts not paid by property owners in 2009. Prior to imposing the service charges for each year, the department of public works shall approve a list of the several lots and parcels of land which will be subject to the service charges, and the names of the owners of the several parcels as nearly as the department of public works can readily ascertain the same. A public hearing shall be held with respect thereto at which all interested persons may appear and be heard. The notice of the public hearing shall be given as required by the applicable notice provisions of Minn. Statute, Chapter 428A. The notice of public hearing shall include:

(1) A statement that all interested persons will be given an opportunity to be heard at the hearing regarding a proposed service charge;

(2) The estimated cost of improvements to be paid for in whole or in part by service charges imposed under this section, the estimated cost of operating and maintaining the improvements during the first year and upon completion of the improvements, the proposed method and source of financing the improvements, and the annual cost of operating and maintaining the improvements;

(3) The proposed rate or amount of the proposed service charge to be imposed in the district during the calendar year and the nature and character of special services to be rendered in the district during the calendar year in which the service charge is to be collected;

(4) A statement that the petition requirements of Minn. Statute, Section 428A.08 have either been met or do not apply to the proposed service charge; and

(5) A statement that an owner may appeal an assessment of the service charge to district court including the procedure for appeal.

Within six (6) months of the public hearing, the city may adopt a resolution imposing a service charge within the district not exceeding the amount or rate expressed in the notice issued under this section. Any such resolution shall be certified to the county auditor, together with the assessment roll provided for herein, prior to November thirtieth for the annual certification of special assessment installments, and the service charge shall be payable in a single tax year. The city council may increase or decrease assessments to correct omissions, mistakes or erroneous estimates relating to the total cost of the services or any other particular, using the same procedure as required for holding a public hearing and notification of affected property owners as for the original assessment.

(2008-Or-102, § 1, 12-12-08; 2013-Or-029, § 2, 2-22-13; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.60. - Appeal of service charges.

Within thirty (30) days after the adoption of a service charge levied under Section 465.50, any person aggrieved may appeal to the district court by serving a notice of appeal upon the mayor or city clerk; provided that no appeal may be taken unless the person appealing shall have filed a signed, written, objection with the city clerk prior to the assessment hearing or shall have presented it to the presiding officer at the hearing, unless a reasonable cause shall exist for such person's failure to do so. The court may affirm the service charge or, if the appellant's objections have merit, modify or cancel it.

(2008-Or-102, § 1, 12-12-08; 2013-Or-029, § 3, 2-22-13; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.70. - Ad valorem property tax.

The city may, in each calendar year, levy a tax on taxable property in the district based upon the assessed value of the property and such tax shall be assessed and collected in the same manner as other property taxes on property located within the district. The tax shall be levied at a rate that will raise an aggregate sum, which, when combined with any service charges levied in the district, will equal the total costs of the city in providing the services specified in this chapter for the next ensuing calendar year; provided, however, that taxes may be levied in the year 2010 for services rendered and to be rendered in the calendar years 2009 and 2010. Prior to the levy of such a tax a public hearing shall be held. The requirements for the public hearing and the notice of public hearing shall be the same as specified in Section 465.40 with respect to the levy of special service charges, and the tax may be levied not later than six (6) months after the public hearing by a majority vote of all of the members of the city council.

For purposes of determining the appropriate tax rate, taxable property or value shall be determined under Minnesota Statutes. Property exempt from taxation by Minnesota Statutes shall be exempt from such tax.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.80. - Revenue surplus or deficit.

Any annual revenue surplus or deficit shall be addressed in accordance with one (1) of the following procedures:

(1) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the next ensuing year's levy of taxes and service charges may be decreased by a corresponding amount; or

(2) If the total taxes and service charges levied and collected under this chapter, with respect to any calendar year, exceed the cost of services actually rendered in the district in such calendar year, then the subsequent years' annual operating plan may be amended by city council action to incorporate the prior year's excess revenue; or

(3) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then an amount necessary to recoup the excess costs may be levied as taxes, service charges, or both within the next two (2) ensuing years; or

(4) If the cost of services actually rendered in the district in any calendar year exceed the total taxes and service charges levied and collected under this chapter with respect to such calendar year, then the subsequent years' annual operating plan may be amended by city council action to recoup the excess costs.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; 2015-Or-042, § 1, 6-5-15; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.90. - Limitation.

Taxes and service charges may be levied pursuant to this chapter to finance special services ordinarily provided by the city only if the services are provided in the district at an increased level and, then, only in an amount sufficient to pay for the increase.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.100. - Petitions and notices.

Petitions and notices required for hearings, petitions, or notices under this chapter, and for the resolution setting any service charges, fees, or rates, shall be in compliance with any applicable petition and notice requirements imposed pursuant to Minn. Statutes, Sections 428A.01 through 428A.10. Except as otherwise provided in Minn. Statute Chapter 428A, within five (5) days of adoption of the ordinance or any resolution setting rates or fees, in accordance with Minn. Statutes, Sections 428A.01 through 428A.10, a summary of the ordinance or resolution must be mailed to the owner of each parcel included in the district and any individual or business organization subject to a service charge in the same manner that notice is mailed under Minn. Statute, Section 428A.02. The mailing must include notice that owners subject to the service charge have a right to veto the ordinance by filing the required number of objections with the city clerk before the effective date of the ordinance or resolution and that a copy of the ordinance or resolution is on file with the city clerk for public inspection.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.110. - Annual reports.

During the term of the services agreement referenced in Section 465.20, the district entity shall submit to the city finance officer as soon as practical after each calendar year end but prior to adoption of the next year's budget, an annual report of services activity and an independent audit of financial activity for each calendar year in which services are performed in the district.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.120. - Definitions and construction.

The terms used herein shall be defined as provided in Minn. Statute, Sections 428A.01 through 428A.10 and said statute shall in all respects govern the creation, existence and operation of the district and the manner imposing service charges therein and this chapter shall be construed consistently therewith.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.130. - Notice to commissioner of revenue.

Within thirty (30) days after adoption of this chapter, the city clerk shall send a copy of this chapter to the commissioner of revenue.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.140. - Exemption of certain properties from taxes and service charges.

Only property that is classified under Minnesota Statute Section 273.12 and used for commercial, industrial, or public utility purposes, or is vacant land zoned or designated on a land use plan for commercial or industrial use and located in the district may be subject to the charges imposed on the district. Property exempt from taxation by Minnesota Statute, Section 272.02 is exempt from any service charges based on net tax capacity imposed under this chapter.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.150. - Expiration of district.

The district shall expire five (5) years after the effective date of this chapter unless it is renewed by following the procedure as set forth in Minn. Statute, Chapter 428A or as permitted by applicable law. Any renewal of the district that is initiated by the district entity one (1) year prior to actual expiration under this section shall be exempt from the petitioning requirements set out at Minn. Statute, Section 428A.08. Initiating renewal means written notice of intent from the district entity to the city's director of public works.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-005, § 1, 2-10-17; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)

465.160. - Effective date.

This chapter shall become effective forty-five (45) days from and after its date of publication in the official newspaper of the City of Minneapolis.

(2008-Or-102, § 1, 12-12-08; 2013-Or-056, § 1, 5-24-13; Ord. No. 2017-049, § 1, 9-20-17; Ord. No. 2021-042, § 1, 9-24-21; Ord. No. 2025-042, § 1, 9-25-25)